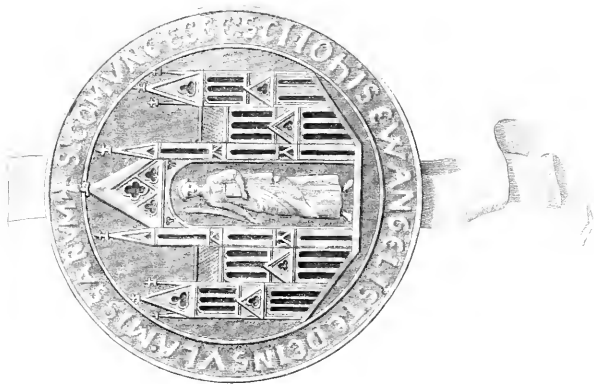




LIBER

INSULE MISSARUM.

EDINBURGH: BALLANTYNE AND HUGHES.



ABBACIE CANONICORUM REGULARIUM
B. VIRGINIS ET S. JOHANNIS DE INCHAFFERY
REGISTRUM VETUS

EDINBURGI MDCCCXLVII



AT a Meeting of the Committee of the BANNATYNE CLUB, held on
Friday, 12th of November 1847.

It having been stated to the Meeting that, agreeably to a former resolution of the Committee, the REGISTRUM DE INCHAFFERY had been sent to press, from the transcript presented to the Club by HENRY DRUMMOND, Esq. of London, and that the Right Honourable the EARL of KINNOULL had granted the use of the original Manuscript preserved in the Library at Dupplin, for the purpose of collation, and the volume being nearly ready for delivery, the Committee accordingly

RESOLVED,—

That the REGISTRUM DE INCHAFFERY, when completed, be circulated among the Members of the Club.

Extracted from the Minutes of the Club.

DAVID LAING, *Secretary.*

THE BANNATYNE CLUB.

OCTOBER M.DCCC.XLVII.

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50 THE EARL OF KINNOULL.

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90 THE HON. CHARLES FRANCIS STUART.

THE DUKE OF SUTHERLAND.

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ADAM URQUHART, ESQ.

99 RIGHT HON. SIR GEORGE WARRENDER, BART.

THE PREFACE.

THE PREFACE.

THE beautiful valley of Stratherne has some peculiar points of interest for the Scotch historian and antiquary. It contains, in the forts scattered over its lower district, and in the remarkable 'round tower' of Abernethy, among the oldest vestiges of civil dominion and of ecclesiastical antiquities that remain to us. The Earldom ascends to a high and romantic antiquity, and it was our only County palatine. Its great Earls, of the ancient Scotch blood, held their own, amid the innovations of David I., as the leaders of the Celtic party, and supported their native customs against the new-fangledness of the Saxon and Norman chivalry.^a The older chroniclers mention them with much of the respect paid to royalty.

Malis was the Count of that time, perhaps the first of the race who accepted the new southern title of honour. He was not a man of parchments; or at least we have no charters granted to him or by him. He was one of the six Earls who attested or consented to the re-erection of the abbey of Scone, by King Alexander I., about the year 1114; and he witnessed another grant to the same monastery;^b one to the cathedral of Glasgow,^c and several charters of David I. to Dunfermline. We know him

^a Ailred de Bello Standardi, &c.

^c Regist. Glasg. p. 9. The charter was

Liber de Scon, N. 1, 3. The second granted in 1136.
charter is between 1122 and 1124.

again only in the lively sketch of the battle of the Standard, by Abbot Ailred, (A.D. 1138.) He wore no armour, but went to battle in his country fashion. He blamed the King for trusting so much to the Frenchmen—"Not one of them, with all his arms, shall be more forward in battle this day than I shall;" and his taunts had nearly led to a quarrel with Alan de Percy, a Norman knight, a follower of David; but the King interposed.

We know no more of the next Earl, Ferteth or Ferquhard. In 1160 he headed a conspiracy of native Scots, irritated at King Malcolm's English counsels. "We will not," said they, "have Henry to rule over us." They assaulted the tower in which the King had sought refuge, and though repulsed, were too powerful and dangerous to be brought to punishment.^d Earl Ferteth witnessed a charter of King Malcolm about the year 1155.^e He is mentioned as alive in a charter to the abbey of Secone, in 1164,^f and he died in 1171.^g

With Earl Gilbert, the son of Ferteth, we become better acquainted. He adopted the Norman fashions; took charters for his lands; practised the usages of knightly heraldry; connected himself with Norman families by marriage, and rivalled the most zealous followers of David in his munificence to the church.

Fordun tells us a strange legend,—that Earl Gilbert of Stratherne divided his earldom in three equal parts, one for the Bishop of Dunblane; another he bestowed on Saint John the Evangelist and the canons of Inchaffray; and reserved the third for himself and his heirs in his earldom.^h Though we find no trace of such extreme munificence, it is certain that Earl Gilbert followed the fashion of the age in liberal endowments to

^d Fordun, VIII. 4, Hailes *ad an.*

^e Regist de Dunferm. p. 24.

^f Liber de Secon.

^g Chron. Mailr.

^h Scotichronicon, VIII. lxxiii.

the church. The family of Stratherne were the only Scotch subjects who could claim the distinction of having founded a bishopric and inheriting its patronage, unless we except the great lords of Galloway, who appear to have renewed the foundation of the venerable see of St Ninian.ⁱ

Whether we adopt Fordun's authority, and hold it as certain that the see of Dunblane was founded by Earl Gilbert, who succeeded in 1171 and died in 1223, or ascribe its erection to a somewhat earlier period, it might be an inquiry of some interest to endeavour to ascertain from what dioceses the territory assigned to the new see was disjoined. It is not probable that the old bishopric of Cumbria extended at any time further to the northward than the limits of the later diocese of Glasgow, which appear on all sides to have been marked out by the ancient boundaries of the British people of Strathclyde and Reged. The see of St Andrews may probably have contributed a portion of its south-western territory to the new bishopric, but it seems likely that the great bulk of its jurisdiction was derived from the diocese of Dunkeld.^j

ⁱ It was probably on this ground, they claimed the right of nominating the Bishops of Whitherne.—*Chron. Lanercost*, pp. 59, 62.

^j The bishopric of Dunkeld, ascending to an antiquity perhaps equal with that of St Andrews,—and (if the obscure intimations of the Irish annalists may be trusted) possessing at one time some sort of primatial or metropolitan dignity,—even in times comparatively modern extended its authority over a vast extent of country. Until the beginning of the 13th century, the whole diocese of Lismore, or Argyll, was included within its bounds.—(*Scotichron.* VI. xl. xli.—“In illo tempore tota Ergadia episcopo Dunkeldensi parebat et ejus jurisdictioni sicut ab antiquo subiacebat.” *Extract. e var. Chron. Scotie*,

p. 80.) And to a much later period the Abbots of Iona acknowledged the Bishops of Dunkeld as their proper diocesans. Abbot Myln, with the records of the cathedral still entire, writes that in the episcopate of William St Clair, Bishop of Dunkeld during the reign of Robert Bruce, Finlay elected Abbot of Y, received episcopal confirmation from him as his ordinary, at his palace of Tybermuir. (*Vit. Episc. Dunk.* p. 13.) The continuator of Fordun relates that in the year 1431, the Abbot of Icolmkil did obeisance (*fecit obedientiam*) to Robert Bishop of Dunkeld.

We may account for this seeming anomaly, which placed one of the Western Isles within a diocese from which it was separated by so great a distance, and by so many natural bar-

Very early in the reign of William (1178-80), Earl Gilbert had a charter of Kinbethach, to be held to him and his heirs, of the King and his heirs, as freely as he held his earldom of Stratherne.^k Among the witnesses to that charter is a person styled Gillecolm Marescald. A few years later (before 1189) the King granted to Earl Gilbert, Maddyrnin (Madderty), with all its pertinents, and with all feudal privileges and jurisdictions, to be held for half a knight's service—but under a remarkable condition—"that no part of the land should ever be sold to Gillecolm Marescall, or his heirs, or any one of his race, seeing the said Gillecolm forfeited that land for felony done against the King, in that he rendered up the King's castle of HERYN feloniously, and afterwards wickedly and traitorously went over to his

riers of sea and land, by supposing that when the Bishops of Dunkeld ceded the western portion of their territory to the new episcopate of Argyll, they reserved Iona to their own jurisdiction, either on account of the dignity which attached to an island illustrious by so many associations, or by reason of the especial reverence in which the memory of Saint Columba was had at Dunkeld, where it has been supposed that his bones found a resting-place, and of whose cathedral church he was the patron saint. It does not appear that Iona was at any time of old included within the Norwegian see of the Isles, which (perhaps even until the 15th century) was considered no suffragan of the Scotch church, but owed its allegiance to the Archbishop of Drontheim, and was acknowledged to be within his province. In like manner the see of Galloway, long after the subjection of the province in civil things to the crown of Scotland, was accounted to belong, in spiritual matters, to the province of York, from whose metropolitan the Bishops of Whitherne

received consecration, even after they were permitted to take their seats in the Scotch parliament, in the 14th century.

In the famous bull of Pope Innocent III. (A.D. 1198-1214) recognising the independence of the Scotch church, only nine bishoprics were enumerated as within its limits—St Andrews, Glasgow, Dunkeld, Dunblane, Brechin, Aberdeen, Moray, Ross, and Caithness. (*Regist. Glasg.* p. 77.) Lismore, or Argyll, had not yet been separated from Dunkeld. Galloway was then acknowledged to be suffragan of York; and Orkney and the Isles were, until long afterwards, in the obedience of the Metropolitan of Drontheim.

Some apology may seem to be required for introducing this notice of the jurisdiction of a few of our ancient bishoprics in this place. The subject is not without interest, and the chartularies still remaining to be published may not afford any opening more appropriate.

^k In the Athol charter-chest. It is printed in the Appendix to the Preface.

mortal enemies, and stood with them against the King, to do him hurt to his power."¹ Who this traitor was, who had betrayed the King's castle of Earn, and joined the rebels, it may be impossible to ascertain. Yet the time suits remarkably with the adventures of that "Gillecolmus archityrannus et latronum princeps," who kept all Lothian in fear, slew certain nobles, and spoiled their lands, and was at length defeated and slain by Roland of Galloway, acting as the King's lieutenant, on the 30th of September 1185. The story is told by John of Fordun.^m It must be remembered, however, that the name of Gillecolm, (servant of Columba,) was very common.

Earl Gilbert must have been early married to his first wife, Matildis, the daughter of William de Aubegni. Some time before the year 1198, he granted a charter upon the marriage of their daughter Matilda with Malcolm, son of Duncan Earl of Fife, of the lands of Glendovan and Carnibo, Aldi and Fossedwege, (Fossoway), to which charter, Gilchrist their eldest son was a witness.ⁿ Gilchrist died in 1198.

Before that time, the Earl had founded the house of Inchaffray;^o but

¹ No. 2.

^m Lib. VIII. c. xxxix. The conditions quoted above seem to imply that Gillecolm's lineage was of some note. A charter of David I., of the year 1136, is witnessed by *Malodeni Marescal*, by Earl Malis of Stratherne, and many others. (*Regist. Glasg.* p. 9.) This *may* have been the father of the traitor Gillecolm; but it is unsafe to rely on the affix of Marescal as being a hereditary and steady surname. For those who are curious in such inquiries it may be allowed to conjecture that the third generation of the sept is recognised in two Scotch pirates, "William of Mariscal" and "Robert of Mariscal," who

about the year 1237 plundered the English traders between Bristol and the Irish ports of Dublin and Drogheda, and for whose apprehension the English king ordered two galleys and a ship to be equipped by the port of Sandwich, and the other ports on the Sussex coast.—*Illustr. of Sc. Hist.* pp. 29, 30.

ⁿ Printed in the Appendix to the Preface.

^o See the charter conferring on the canons, all the escheats and fines of the men of their territory, (given them by the Earl,) though convicted in the Earl's court, which is witnessed by the Countess Matilda, and their six sons, the last-named being Gilchrist, who died in 1198. No. 6, p. 11.

then, the parents having chosen it as the place of burial of their son, they recorded their sorrow in an extended foundation, and more liberal endowment of their monastery. The convent was to be of Augustinian canons regular, of whom a certain Malis the Hermit, in whose piety and discretion the founders had all confidence, was to be the head, and to have the selection. The Earl and Countess declared their affection for the place—"so much do we love it, that we have chosen a place of sepulture in it for us and our successors, and have already buried there our eldest born." It was dedicated to St Mary the Virgin and Saint John the Evangelist, and was, by its great charter (of 1200) endowed with the churches of St Kattanus of Abbyruthven, of St Ethirnanus of Madderty, (the parish formed out of the Earl's new manor of Madderty, forfeited by Gillecoldm), of St Patrick of Strogeth, of St Mechesseok of Ochterardouer, of St Beanus of Kynkell; with the tithe of the Earl's eain and rents of wheat, meal, malt, cheese, and all provisions used throughout the year in his court; with tithe of all fish brought into his kitchen, and of the produce of his hunting; and the tithe of all the profits of his courts of justice, and all offerings. The convent had the liberty of fishing in the Peffer, and of fishing and birding over all the Earl's lands, waters, and lakes. They might take timber, for building and all other uses, from his woods, and have their pannage, or mast feeding for pigs, as well as bark and firewood, in whatever places, and as much as, they chose. Some years later, Earl Gilbert granted to the canons, now seated at Inchaffray, the church of St Beanus of Foulis, with the 'dower' land of the church, and the common pasturage of the parish;^p and the church of the Holy Trinity of Gasc, with the same privileges.^q The charter conveying the latter grant has still appended to it a fragment of the granter's knightly seal, with a counter-seal of arms, which bears no resemblance to the known cognisance

^p Charter in the Appendix to Preface.

^q Charter, *ibidem*.

of the family subsequently.* By his Countess Matildis de Aubigny, Earl Gilbert appears to have had at least seven sons, Gilehris, William, Ferthet, Robert, Fergus, Malis, and Gilbert. The marriage of their daughter Matilda has already been mentioned. Another, Cecilia, married Walter the son of Alan, the ancestor of the family of Gowrie, and had for her dower the land of Kulgasc.^s In his old age the Earl took a second wife, Ysenda, the daughter of a knightly family of the surname of Gasc.^t

A chronicle, which seems to have been written in the diocese, or to be in some other way peculiarly connected with Dunblane, records Earl Gilbert's death—"Gilbertus fundator canonicorum Insule Missarum et episcopatus Dunblanensis obiit Anno Domini 1223."^u

Earl Gilbert was succeeded by his son Robert, who was also the good patron of the canons of Inchaffray. One of his charters, indeed, savours of some estrangement and reconciliation. Earl Robert, in the church of Strogoth, in presence of Abraham Bishop of Dunblane, Gilbert the Archdeacon, and other notable witnesses, binds himself towards Innocent the Abbot, that he will never in all his life vex the said abbot, or his convent, unjustly; nay, will love and everywhere honour them, as his most special friends, and will add to the possessions of their house, whatever he may, by the counsel of his friends. In particular, he confirms to them the churches of Gask and Strogoth.

There are several charters in the present Register throwing light upon the period of Earl Robert and his transactions; and a few original charters of his time are added in the Appendix to the Preface.

It would be out of place here to attempt a deduction of the pedigree of

* See the wood-cut at the end of the Preface. still preserved at Abercainey. It must have been granted about the year 1220.

^s Appendix to Preface, No. 5.

^u Extracta e *chronicis* Scotie, p. 92.

^t No. 65. The original of that charter is

the ancient Earls of Stratherne. This Register of their abbey affords a good deal of information regarding them; and it is hoped the original charters printed in the Appendix may also be found useful in illustrating this interesting and historical family. Some of these have a separate and peculiar interest.

The family of Stratherne, and its possessions, have been so mixed up with the romantic events of Scotch history, that they have been naturally subjected to some exaggeration. The ancient earldom has been described as including "the haill lands lying betwixt Croce Macduff at Newburgh, and the west end of Balquhider, in length; the Oichell hills and the hills called Montes Grampii, in breadth." * This Register, and the charters which accompany it, show that there were many independent lords within that district from the earliest period of record, and almost as early as the earldom can have been held, at least by that title. We even become acquainted with a Royal castle of 'Earn,' that strength betrayed by the traitor Gillecolme; and it may exercise the research of the local antiquary to fix its site. But with due deduction from the magniloquent descriptions of our old writers, the possessions of the family were sufficient to give them a very high place among the great earls of Scotland. It is not, perhaps, to be hoped that the confusion and obscurity that involve the latter descents of the ancient family should be entirely removed, but the documents now collected may be of some service in such an investigation. † They cannot fail,

* Scotstarvet.

† It is scarcely necessary to warn the reader against giving full confidence to the curious certificate of pedigree sanctioned by the Bishop and Chapter of Orkney for the information of the King of Norway. It comes to us in a questionable shape, through the copy of a remarkably ignorant clerk, evidently unacquainted with the writing and

phraseology of old deeds. It is consequently full of errors, and the date is plainly erroneous. But besides, the nature of the document itself is peculiarly open to mistake and mis-statement. It approaches too near to those birth-briefs so common at a later period in Scotland, which were used at first to deceive foreigners ignorant of Scotch pedigrees, and have been the fertile source of

also, to throw light upon the descent of land in the district of the ancient earldom, and the rise of the present possessors of the soil, many of whom owe their establishment there to their connexion with the ancient family. As the documents have been chiefly drawn from the charter-chests of Abercairney and Athol, they naturally bring most into light the ancestors of those two branches of the ancient stock of De Moravia, the former of whom obtained the lands of Abercairney by marriage with a daughter of Malis Earl of Stratherne; the latter acquired Tulybardin through their intermarriage with the family who appear to have been hereditary seneschals of the earldom.

It does not appear when the Earls of Stratherne first obtained the rank of Earls Palatine. The style is not given, in any of the documents now collected, during the time of the old family; though the dependent bishop, and the officer bearing the title of 'the Earl's Chancellor,' certainly argue somewhat like palatinate privileges.* After the ancient line had failed in the direct male descent, and when Maurice de Moray, created Earl by David II., had fallen at the battle of Durham in 1346, leaving no issue, King David bestowed the great earldom upon his nephew Robert, the High Steward, afterwards King Robert II. On his accession to the throne (in 1370) Robert II. granted the earldom of Stratherne to his son David,

error at home, after length of time had rendered it difficult to correct their mis-statements. Deceitful as such documents usually are, they occasionally furnish the most valuable information of events near their own date, and which there could be no object for mis-stating.

* Master Richard de Strevylynn is styled the Earl's Chancellor in 1266 (No. 64). We must remark, however, that the ancient great regalities, and perhaps the great earldoms,

had chancellors. Charters of Thomas Randolph Earl of Moray are attested by his chancellor and chamberlain of his regality of Moray. Patrick de Dunbar Earl of March and Moray addresses a precept to his chancellor in his earldom of Moray (A.D. 1367), and a charter of John de Dunbar Earl of Moray is witnessed by W. de Cheselme, thesaurar of the diocese, the earl's chancellor.—*Notes of Original Charters.*

(his eldest son by his second queen, Eufam of Ross,) and in his favour, if not sooner, it was erected into a palatinate; for five years later we find David, styled Earl Palatine of Stratherne, taking part, along with the Queen his mother, in a contract of marriage between the Queen's sister Jonet de Monymuske and Alexander de Moravia of Drumsergarth; while Walter de Moravia, his brother, is to have to wife (if he choose) the eldest daughter of the said Lady Jonet de Monymuske.⁷

One at least of the marriages thus contracted took place, and was not fortunate. Only three years afterwards we meet the record of a very curious compact. On the 20th of April 1378, in the parish church of Perth, it was covenanted that Hugh de Ross, lord of Balyndolch, shall make to be brought within the diocese of Dunblane, the Lady Johanna (or Jonet) the wife of Alexander de Moravia, at the next coming feast of St John the Baptist, for which he is to have seven marks beforehand, and seven more when he intimates that he has performed his engagement, and the divorce being completed, he is to receive a similar sum; and the said Hugh promises to give his advice and assistance to the said divorce.⁸

The next of the documents here collected furnishes the best illustration of the working of the law of Clan Macduff, which has yet been discovered. It appears that Sir Alexander de Moravia was accused of the slaughter of William de Spaldyne, and indicted for the crime, in the court of the High Justiciar, held by his deputies, Sir John and Morice de Drummond, at Foulis. On the 7th day of December 1391, he appeared with his fore-speakers, protested that inasmuch as he had been once before called in judgment for that slaughter, and repledged to the law of Clan Macduff by

⁷ Indenture 1375. This very curious indenture is printed in the Appendix to the Preface, from the original. It was long ago published by Anderson in the *Diplomata*.

⁸ Printed in Appendix to the Preface. The word in the original is *deforciamentum*. It may mean the forcible bringing of the lady within the jurisdiction.

Robert Earl of Fife, he was not obliged to plead before any other judge to that charge until the said law of Clan Macduff should have had its privilege in regard to him thus repledged to its jurisdiction; and he demanded to be lawfully discharged. The judges made answer, that they would not discharge him but would respite him until the Lord of Brechlyn, the principal justiciar, should take order in the matter.^a

The cathedral of St Blane, originally founded and endowed by the Earls of Stratherne, continued under their protection until the earldom had merged in the crown, and the bishop and chapter held their lands, annual rents, and temporalities, of the earls, as their feudal superiors. In 1442 James II., in Parliament, declared the earldom fallen to the crown, and ordained the bishopric temporalities henceforth to be held in free barony directly of the sovereign.^b

It was some time afterwards, that the last traces of the great civil jurisdiction of the Earls Palatine disappeared. In 1483 Humphrey Murray appeared in the accustomed place of court of the Seneschal of Stratherne, called the stayt of Creiff, and withdrew his suit—"levavit sectam suam de predicta curia,"—which was transferred by crown charter^c to the King's

^a Appendix to Preface, No. 34. The law tradition of the privilege of Clan Macduff is thus given by Skene:—"The croce of Clan Makduffe dividis Stratherne fra Fife abone the Newburgh beside Lundoris. The quhillk had priviledge and liberty of *girth*; in sik sort that when ony man-slayer, being within the ninth degree of kin and bluid to Makduffe sumtime Earle of Fife, came to that Croce and gave nine kye and ane colpindach, he was free of the slaughter committed be him." He further tells us—"I saw ane auld evident bealand that Spens of Wormestoun, beand of Makduffe's kin, injoyed the benefit

and immunity of this law, for the slaughter of ane called Kynnynmouth."—*De verbor. sign. ad voc.*

There is evidence of the privilege of Clan Macduff having saved Hugh de Arbutnot and his accomplices from being proceeded against for the slaughter of John de Melvil of Glenbervy in 1421. (*Analect. Scot. II.* p. 30.) A very curious ancient notice of this privilege occurs in one of the fragments of laws collected at the end of the first volume of the Act. Parl. Scot. p. 382, c. 26.

^b Acta. Parl. II. p. 58.

^c Orig. an Abercainrey.

sheriff court of Perth. On the 16th February 1505, parliament ratified "the creation and making of the baronys of new create and maid within the Kings Earldom of Stratherne, within thir thre yeris last bipast, and relaxit the said baronys and landis annexit to thaim, fra all service aucht therof in the Stewart Courts of the Kings Earldom of Stratherne, and will that the said service be paid in the Kings sheriff court of Perth, in all tymes to cum."^d

The abbey of Inchaffray, though respectably endowed, does not seem to have ranked among the greater monasteries of Scotland. The abbots, though prelates of parliament, occur rarely in public affairs, or in the transactions which so frequently brought together churchmen of various religious houses. We have thus only a very few names of the successive abbots preserved.

Malis, a religious hermit, was the person to whom Earl Gilbert committed the selection of the convent at its first foundation in 1200, and he was the first head of the house.^e

Innocentius appears to have been head of the house as Prior, and was perhaps the first who took the style of Abbot, in the time of Earl Robert, between 1223 and 1231.^f

Alanus occurs as Abbot of Inchaffray, from 1258 till 1271.^g

Hugh, who had been prior of the convent, was afterwards Abbot in 1284.^h

Maurice was the Abbot of Inchaffray who blessed the army of Bruce at Bannockburn (1314, June 24.)ⁱ He was promoted to the see of his own diocese of Dunblane in 1319.^k

Early in his episcopate, a dispute concerning the tithes of Cornetun and Atharay, between him and the Abbot of Dunfermline, was submitted to

^d Act. Parl. II. p. 267.

^e No. 1.

^f No. 70, No. 13, and Orig. Charter in the Appendix to Preface, No. 8.

^g Nos. 47 and 52, and App. to Pref. No. 12.

^h Orig. in the Appendix to Preface No. 17.

ⁱ Fordun.

^k Regist. Aberdeen.

the decision of arbiters, one of whom was Christinus Abbot of Inchaffray.¹

William was Abbot of Inchaffray on the 17th of July 1370.^m He must have held the abbey for a long period, or had a successor of the same christian name. On the feast of St Matthias the apostle, 1398, a deed of Jonet de Murreffe, spouse of Alexander de Mureffe of Abercairney, knight, was witnessed by William Franklyn, abbot, John the prior, and the whole convent of the monastery of Inchaffray.ⁿ

On the 25th January 1468, George Abbot of Inchaffray, obliged himself to make Laurence Lord Oliphant his bailie for life, of the lands of the abbacy, within twenty days after he should be admitted to the spirituality by the ordinary, and by the King to the temporality of the said abbacy. The office of bailie of the abbey lands is said to have been in the family of Oliphant during the reigns of James V., Queen Mary, and James VI.^o

In 1539 Gavin Dunbar, Archbishop of Glasgow, had the abbacy of Inchaffray *in commendam*. He granted to Anthony Murray a tack of the four merk lands of the Raith, "for furnishing of our bulls"—probably for the expense of his confirmation in the abbacy—on the 19th of May 1539.^p

Before the tack had run to an end, the tenure was made perpetual by a feu-charter of the same lands of Raith and of the moor of Maddertie, granted by Alexander, styled Archbishop of Athens, postulate of the Isles, and perpetual commendator of the monastery of Inchaffray, dated at Inchaffray the 24th of December 1554.^q This commendator was Alexander Gordon, brother of George fourth Earl of Huntly, who was defeated in his hopes of the Archbishopric of Glasgow on the death of Archbishop Dunbar, and imperfectly consoled by the high-sounding title of Archbishop of Athens *in partibus infidelium*, the poor sec of the Isles, to which he

¹ Regist. Duuf. No. 355.

^m Appendix, to Preface No. 30.

ⁿ Original charter at Abercairney.

^o Notes of Oliphant charters.

^p Orig. charter in the Crieff charter-chest.

^q Appendix to Preface, No. 38.

was provided on the 26th of November 1553, with the abbacy of Inchaffray *in commendam*. Next year he was made commendator also of the abbacy of Icolmkill. In 1558 he was translated from the bishopric of the Isles to the diocese of Galloway. He was still styled postulate of the Isles in 1561,^r and continued to hold his abbacy of Inchaffray till 1564.^s

In the General Assembly of the Kirk, convened at Edinburgh the 25th of December 1567, Alexander, called Bishop of Galloway, commissioner, was accused, "that he had not visited these three years bygone, the kirks within his charge; that he had left off the visiting and planting of kirks, and he haunted court too much, and had now purchased to be one of the Session and Privy Council, which cannot agree with the office of a pastor or bishop; that he had resigned Inchaffray in favour of a young child, and set diverse lands in feu, in prejudice of the kirk." The Bishop of Galloway "granted that he offended in all that was laid to his charge."^t

The youth in whose favour he had resigned the Abbacy of Inchaffray, was James Drummond of Inverpeffray, the second son of David, second Lord Drummond, who was commendator of Inchaffray on the 13th of March 1556, when David Lord Drummond acted with him as his coadjutor.^u The abbacy of Inchaffray was erected into a temporal lordship in his favour, and he was created Lord Madertie in 1609. From him is descended the noble family of Strathallan.

The ancient Register of the abbey of Inchaffray has been for some time preserved in the library at Duplin Castle. It was referred to by the

^r P. 126.

^s P. 127.

^t Booke of the Universal Kirk of Scotland, pp. 112, 114. For the details of the active life of this trimming prelate, who was Queen's man or King's man as each party was in power; who was a reformer for the same reason, or that he might legitimate his children

and marry their mother; but loved the benefices of the old church well enough to transmit them to his sons,—see the careful and valuable notes of Mr Duncan, *Wodrow's Biogr. Coll.* p. 475. *Maitland Club edition*. Bishop Alexander Gordon died in 1576.

^u P. 129.

antiquaries of the last century as among the papers of Abercairney.¹ These sheets were put in types from a transcript, the property of Mr Henry Drummond; and the Bannatyne Club owes to the Earl of Kinnoul the use of the original Register for a limited period, which enabled the sheets to be collated with it while passing through the press.

The Register is an octavo volume, of fifty-one leaves of vellum,—the last page not written,—in a hand of the fifteenth century.² Several of the original charters recorded in it are still preserved in private repositories, and, tested by comparison with them, the Register appears to be, on the whole, faithful and accurate.³

One document is given in the Appendix, which, though in some degree bearing on the history of our Abbey, is chiefly valuable as throwing light on the early history of the Bishopric of Dunblane, or of Stratherne as it was often named.⁴ It records part of the proceedings under a Papal commission of Pope Gregory IX. ; and affords evidence of a Provincial Council not known to our historians, held at Perth in 1238.

The Bishop of Dunblane had gone in person to the Papal court, and the

¹ Nisbet says the Chartulary of Inchaffray, in his time, was in the possession of Maurice Moray, a brother of Abercairney, from whom he had the use it.—*Appendix, Herald.* 194. Lord Hailes was “permitted to peruse this chartulary by a person who chose to conceal himself.” *Ann. Misc. occurrences*, a. 1258.

² Perhaps some leaves are wanting between fol. 42 and 43, where a new numeration of charters begins in the original, the first series ending with No. 67, and the first charter of the second series corresponding with No. 68, as printed.

³ A few errors may be pointed out,—

No. 4.—The witness spelt Eungi in the

Register is written Cungi in the original charter which is preserved at Gask.

No. 24, is a duplicate copy of No. 13.

No. 35.—The date of this charter (1218) is manifestly wrong. Malis was not Earl in that year. From the witnesses (*vid.* No. 44) it may be conjectured the true time is 1268, and that an l, has been omitted in the numerical letters of the charter.

No. 49.—This composition between Cupar and Inchaffray is also plainly misdated. The occurrence of Hugh, as abbot of Inchaffray, may perhaps point to the true date, about 1282, but it is very uncertain.

⁴ No. 11 of Appendix to the Preface.

narrative of the Papal commission proceeds partly upon his information. It sets forth that the see had been vacant for above ten years, during which time its property had been plundered, so that no fit person could be induced to hold the office, until the Papal commissioners had fixed upon the then Bishop, in the hope that through him the church might breathe again out of its slough of misery—that the new bishop had found it so desolate that he had not where to lay his head in the cathedral. There was no chapter; but in the unroofed church, a certain rustic chaplain performed divine service; while the bishop's revenues were so slender, they scarce afforded fitting maintenance for half the year. Upon this statement, the Pope granted commission for assigning to the Bishop, the fourth of the tithes of the whole parishes of the diocese, from which he was to reserve a fitting sustenance for himself and to provide for a dean and canons to be established by the Papal commissioners. Or otherwise, the commissioners were to assign the fourth of the tithes to the Bishop; to transfer the episcopal see to the monastery of canons regular of St John (of Inchaffray;) and to constitute the canons the electoral chapter of the diocese.

It is certain that the alternative of raising the convent of Inchaffray into the chapter of the diocese did not take effect; and the cathedral continued to be governed by a secular chapter. The Papal commission, contrary to its avowed purpose, produced an abandonment by the Bishop of all right of pension out of the lands or churches of the Earl of Menteth, and a permission to the Earl to found a house of Augustinian canons in the Isle of Inchmahomok, with the churches of Lany and of the isle itself for their endowment. The church of Kippen was assigned by the Earl to form a canonry in the cathedral, and he made over to the Bishop all right to the church of Callendar.

Of the Appendix subjoined to the Register, the first three articles are from records preserved in the General Register House at Edinburgh.

The first part of the fourth consists of an abbreviate of original charters from the charter-chests of Anthony Murray of Creiff, Esq., and of Alexander Anderson Henry, Esq. of Woodend, to whom the Club is indebted for their use. The remainder of the fourth Appendix is an abbreviation of charters, from a transcript of the originals preserved in the library at Innerpeffry, a foundation of David Lord Madertie. The transcript is the property of the Maitland Club, to whose members, as well as to the attentive courtesy of Professor Fleming of Glasgow, the Bannatyne Club is indebted for its use.

It appears that as early as the year 1218, the canons of Inchaffray had reclaimed a portion of the vast marsh in which their 'isle of masses' stood.² Nearly five centuries afterwards, the "heritors, upon the pow of Inchaffray," applied to parliament to appoint commissioners for draining the whole marsh for common benefit. The act which followed upon their petition is the fifth article of the Appendix. The date, which is erroneously printed in the title, is correctly given in the body of the Act—October 9th, 1696.³ It is curious as perhaps the single instance of a great agricultural improvement effected under the authority of the Scotch parliament.

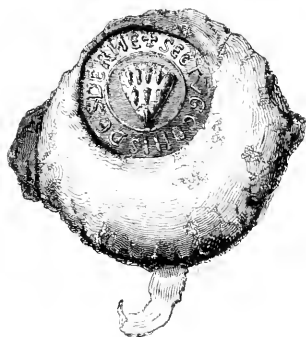
Our heralds tell us, "the old Earls of Stratherne carried for arms *Or*, two cheverons *gules*:" and undoubtedly the Earls Malis of the 13th century bore that coat, as did also their vassals (perhaps too their kinsmen) the family of the Seneschals of Stratherne, from whom the house of Tulibardin is descended. On a seal appended to a charter of Malis Earl of Stratherne, (printed in the Appendix to the Preface, No. 19) the double cheveron is seen both on the shield and over all the housings of the horse. The pretty seal

² No. 8.

³Acta Parl. vol. x. p. 67

of Muriel, the widow of Malis seneschal of Stratherne (appended to No. 16 of Appendix to Preface) gives a shield of the two cheverons, supported by a man's arm, on whose fist a falcon is perched. It is represented imperfectly at the end of the Preface to the Register of the Bishopric of Moray. But one seal is preserved of higher antiquity, and of much interest to the herald and the genealogist. It is the seal of Earl Gilbert, appended to the charter of Trinity Gask, in the charter-chest of the Duke of Athol, (printed in the Appendix to the Preface, No. 5) which gives on the obverse a mounted knight with drawn sword, the horse galloping, a housing very short and fitting to the horse's body, ornamented with points below—no coat armour or bearing on the shield; the circumscription mostly gone, but the word *COMITIS* still legible. On the reverse is a small counterseal, a shield of arms, with the legend—

SECRETVM • G • COMITIS DE STRADERNE.



APPENDIX TO THE PREFACE.

APPENDIX.

Willelmus Rex dat Comiti Gilberto de Stratherne Kinbethack · *Orig. in archivis Ducatus de Athol.*

- 1 **W** · di grā Rex · Scott · Ep̄is · abbatibꝫ · comitibꝫ · baronibꝫ · Justiciis · vice-comitibꝫ · ministris · ⁊ Om̄ibꝫ p̄bis hōibus totius t̄re sue salutē · Seiant p̄sentes ⁊ fut^ui me dedisse ⁊ concessisse · ⁊ hac carta mea cōfirmasse Comitē Gileb de St^rdhern · kinbethach · p̄ suas rectas diuissas · ⁊ cū om̄ibꝫ iustis p̄tinenēciis suis · tenendū sibi ⁊ hēdibꝫ suis de me · ⁊ hēdibꝫ meis · ita libe · ⁊ q̄ete sic tenet . . . comitatū de St^rdhū · Test̄ hug^o Ep̄o Sc̄i andr̄ · D · fre meo · comitē Duncē · Comitē · G · de Aneg^o · Walfo de b̄ket cameŕo · Johe de lundoniis · Roſ de b̄ket · Walcolm̄ Mac Gillis · Gillex^o Mac imensamuel Gillemich Mac Duncē · Gillecōlm̄ Warescald ·

Comes Gilbertus de Straderne dat Walcolmo de Fif · cum Matilda filia sua Glendovan et Carnibo in maritagium · *E transcripto d. Jacobi Balfour ab apographo d. Joannis Skene. MSS. Harl. 4693-4-6.*

- 2 **C**omes Gilbertus de Straderne omnibus hominibus suis et amicis tam clericis quam laicis salutem · Seiant tam futuri quam presentes me dedisse et concessisse et hac mea carta confirmasse Walcolmo filio comitis Duncani cum Matilda filia mea has terras scilicet Glendouan per omnes rectas dinisas

suas et cum omnibus justis pertinentiis suis et Aldi et Fossedwege per omnes rectas divisas suas et cum omnibus justis pertinentiis suis in liberum maritagium in bosco in plano in pratis et paseuis in moris et maresiis in stagnis et molendinis in aquis et piscariis in capellis et ecclesiis et omnibus aliis asiamentis Tenendum habendum et possidendum sibi et heredibus suis de me et heredibus meis ita libere quiete plenarie et honorifice sicut liberius quietius plenius et honorificentius aliquod maritagium alicujus comitis vel baronis tenetur habetur vel possidetur in regno Seotie . His testibus . Johanne episcopo Dunkeldensi . Roberto abbate de Seona . Ernaldo abbate de Cupro . Wātilda comitissa mea . Henrico comite Atholie Wālliffio fratre meo Wackbed vicecomite de Seona . Wilhelmo de Cram' . Symone de Ramsay . Bricio iudice . Gillenaiem dapifero Comitis . Duncano thano de Streuelin . Gilelristo filio comitis etc.

Gillebertus Comes de Strathern dat canonicis de Incheaffren ecclesiam S . Beani de Foulis . *Orig. in archivis Ducatus de Athol.*

- 3 **G** . Comes de Strathern . Om̃ibꝫ amicis ⁊ hominibꝫ suis . clēicis ⁊ laicis p̃sentibꝫ ⁊ futuris sal̃ . Sciatis me dedisse ⁊ concessisse . ⁊ hac mea carta confirmasse dō ⁊ s̃cō Joh̃i apostolo ⁊ euangliste de Incheaffren ⁊ canonicis ibidē dō seruientibꝫ ⁊ seruituris p̃ dī amore ⁊ salute anime mee . ⁊ uxoris mee . aūccellōꝝ meoꝝ ⁊ hēdū meoꝝ eccl̃iā s̃cī Beani de foulis . cū Om̃ibꝫ iustis p̃tinentiis suis . in decimis ⁊ oblaciōibꝫ . ⁊ obnētiōibꝫ . cū dotali t̃ra eccl̃ie cū cōmuni pastura parochie cētisqꝫ aisiaūtis ad p̃dietam eccl̃iam p̃tinētibꝫ . in purā ⁊ p̃petuā elemosinā . ad habend̃ . ⁊ tenēd̃ . ⁊ possidend̃ sibi ⁊ successoribꝫ suis . de me ⁊ hēdibꝫ meis in pp̃os usus p̃petualit̃ . ita libe quiete . plenarie . ⁊ honorifice sic̃ lib̃ius . quieti⁹ . plenari⁹ ⁊ honorificēti⁹ aliqui religiosi in toto regno Seotie eccl̃ias suas habēt tenent ⁊ possident . Hīs Test̃ dñō A . dunb̃ electo . G . ei⁹ dē loci archidiacono . W . fre meo . W . comi-

tiffa . Robto filio ⁊ hede meo . ⁊ aliis filiis meis . Bricio psona de Cref . G . senescallo meo . ⁊ A . filio suo . Wiſto de haia clico meo .

Willelmus Rex dat Comiti Gilleberto de Stradherne Ure . et Lethendin .
Orig. in archivis Ducatus de Athol. a qua pendet sigillum IV. regis.

4 otorū omnib⁹ probis hominib⁹ totius Terre sue clericis ⁊ laicis
Salām . Sciant rie concessisse ⁊ hac carta mea confirmasse
comiti Gilleb . de Stradh . Vre . p ⁊ lethendiū p illas dinisas p
quas Nefius . filius Wiſt . ⁊ Galfrid⁹ de Maleniſt . ⁊ Gille eam pam-
bulauert Malis . frat⁹ ipi⁹ comit . Gilleb . Tenend sibi ⁊ hedib⁹ suis . de me ⁊
heredib⁹ meis i feudo ⁊ heditate in boscho . plano . in pratis ⁊ pascuis . in
aquis ⁊ stagnis . in molendinis ⁊ moris . ⁊ cum omib⁹ iustis ptinentiis suis .
cum Tol ⁊ Them ⁊ infangenethef libere ⁊ Q'ete . plenarie ⁊ honorifice p
seruicium uni⁹ militis . sicut carta predicti Malis testat⁹ . Test Wiſt de
Bosch . cancell mō . Philip⁹ de Wub⁹ . fuleoñ de Sules . Henr . fit comit .
Alex viē de Strinet . D . Warescath . Riē . Reue . Joh de Woraū . Joh . de
Haya . ap⁹ Strinet . xxv die Nouemb .

Gillebertus comes de Stratherne dat canonicis de Insula missarum Eccle-
siam Sancte Trinitatis de Gasc . *Orig. in archivis Ducatus de Athol.*

5 **Gillebertus** comes de Stratherne . vni⁹sis scē mat's ecclie filiis Salā .
Sciatis me dedisse ⁊ concessisse ⁊ hac carta mea confirmasse Deo ⁊ Sō
Johanni aplo ⁊ Euᵃgeliste de insula missar . ⁊ abbi ⁊ canonicis ibidem deo
seruientib⁹ ⁊ seruituris Eccliam Scē Trinitatis de Gasc . In puram ⁊ ppe-
tuam elemosinam . Tenendam s⁹ de me ⁊ hedib⁹ meis inppetuum . In de-
cimis ⁊ oblaconib⁹ ⁊ obuēconib⁹ omimodis cū tra ad eandem eccliam ptinente

7 eū communi pastura parochie 7 cētis aisiañtis òimodis ad p̃dēam Eccliam
ptinentib⁹ . Ita libe 7 quiete plenarie 7 honorifice . sicut aliqui religiosi in
toto Regno Scotie aliq̃m Eccliam de dono alicui⁹ comitis . libius . quietius
plenarius 7 honorificentius hñt . tenent . 7 possident . Hiis Testib⁹ .
Abraham Dunblanensi ep̃o . W . de bosco cācellario dñi Regis . W . abbe
de scona . Gt . archidiacono Dunblañsi . Dompno Roberto canonico de
scona . Ricardo de Kelchou clēico dñi cancellarii . Willmo clēico meo . 7
multis aliis .

Gillebertus comes de Stratheren dat canonicis de Inchefferen partem
maresii in scyro de Foulis . *e transcripto sec. 16. penes H. Drummond gen.*
[*Reg. de Incheffery, No. 8.*]

- 6 Vñiūsis Sācte matris ecclesie filiis et fidelib⁹ p̃ns hoc scriptum visuris vel
auditis Gilebt⁹ comes de Stratheren etñā in doño salutē . novit vñiūsis
vestra me dedisse et cōcessisse et hac carta mea cōfirmasse deo et sancte
marie et sancto Johāni de Inchefferen et canonicis ibidē deo servientib⁹ et
servituris tātum marisii p̃xime adiacentis p̃nōiate Insule in syro de foulis
quantū vallatum erat fossā eodem āno quo hec carta cōposita fuit scilicet āno
ab incarnatione dōini milles⁹ ducentesimo decimo octavo tenendū sibi et
succefforib⁹ suis de me et heredibus meis in puram et ppetuam elemosinā
libe quiete plenarie et honorifice ab òni seculari servicio et exactione . testib⁹
his abrahā dunblanēsi ep̃o . robto fergus malisio gilebto filiis meis . malisio
senescallo meo . bricio psona de criffe . duncano filio malisii . henrico renario
meo . vellelmo clerico meo . trestram filio trestrami et multis aliis .

Carta Yfende sponse com^o G. de fra de Abcarny . *Orig. in archivis de Abercairney. [Reg. de Inchaffery No. 65.]*

- 7 Omnib⁹ scē cōatris Ecclie filiis p̄sent scriptum uisuris ut auditoris Yfenda sponfa Comitib⁹ Gilleb^{ti} de Strathern salē . Sciatis me diuine caritatis intuitu p̄ consensū p̄noīati Comitib⁹ dñi mei dedisse ⁊ cōcessisse ⁊ hac carta mea cōfirmasse Abbī ⁊ Canonicis de Insula Wisslarum . quinq⁹ . acras terre in uilla mea de Abercharni . illam scit . t̄ram q^m eidem Abbī ⁊ Canonicis probis hoīb⁹ p̄sentib⁹ pambulauit . uidelicet dño Ricardo milite ⁊ Galfrido de Gase sribus meis . henrico . ⁊ . Tristrem filiis tristrem . Willmo clīco Comitib⁹ ⁊ mltis aliis tenendū sibi in ppetuā elemosinā . libe ⁊ quiete ab omī seruicio ⁊ exactione seculari . cū cōmuni pastura duodecim vaccarum ⁊ duor⁹ equor⁹ ⁊ cū omīb⁹ aliis aīsiāntis ei⁹dem t̄ritorii ad tantam t̄ram ptinentibus . In Hui⁹ rei testimōium qm eo tempore quo hec carta scā fuit sigillum pprium non habui : huic scripto sigillum Dñi Abrahā Dunblanensis Epī qui hui⁹ donacōnis testis est quod ac hoc ip̄e michi accōmodauit apposui . ut hec autē mea donacio ī ppetuum rata ⁊ icōcussa hēatur hanc cartam p̄notatus Comes dñs meus ī signum sui p̄sentis sigilli sui appositione roborando cōfirmavit . Hiis test⁹ . Dompno Abraham Dūblān epō . G . Archidiacono de Stradhern . W . senescallo Comitib⁹ . Wabet iudice . T . filio arnaldi . ⁊ mltis aliis .

Robertus comes de Stratherne confirmat Waltero filio Alani et Cecilie sorori sue / Kulgasc . *Orig. in archivis publicis Edinburgi .*

- 8 Robtus Comes de Strathe^r . Omīb⁹ p̄sent scriptū uisuris ut auditoris salēm Sciatis me p̄cessisse ⁊ hac carta mea p̄firmasse Walfo filio Alani ⁊ Cecilie forori mee ⁊ hēdib⁹ de predca Cecilia exeuntibus donacōnem illam quam Dñs Comes Gilbertus de Strathe^r pater meus predco Walfo cum predca

forore mea fecit de Terra de Kulgaſc . Tenendam ſibi ⁊ habendam ⁊ hereditibus fuiſ de me ⁊ heredibus meiſ . in feudo ⁊ hereditate p omēſ rectaſ diuiſaſ . ⁊ omībus iuſtiſ p̄tinenēciſ fuiſ . ⁊ in omī lib̄tate . plenarie ⁊ honorifice ſicut carta patriſ mei teſtatur . Ego autē ⁊ heredeſ mei warentizabim⁹ predcō Walſo ⁊ Cecilie ⁊ heredibus fuiſ p̄nominatā Terrā in omībus ſcdm tenorem Carte patriſ mei contra omēſ homīeſ . Reddendo inde annuatim michi ⁊ heredibus meiſ quedam Calcaria deaurata . ut ſex denarioſ ad Pentecoſten . p omī ſeruicio ⁊ auxilio . ⁊ exactione ⁊ oſuetudie ſclari . Hiſ . ꝥ . Dno Huḡ Dunkeld Epō . Rob abbe de ſcoñ . Innoç abbe de Incheaſr . fergus fr̄e Coñ . laurenç de abernith . Malifio ⁊ Gilb . fribuſ Coñ . Malifio ſeneſcaſ . Gilb archid . Duncē Mac Malif . Bricio thano de Duni .

Robertus comes de Stradhern dat canonicis de Insula Wiſſarum terram de Rath . *Orig. penes A. Murray de Creiſſ gen.*

- ⁹ Robertus comes de ſtradhern Omībz hoc ſcriptū uiſuriſ ut audituriſ ſalū . Sciant p̄ſenteſ ⁊ futuri me dediſſe ⁊ cōceſſiſſe ⁊ hac carta mea cōfirmāſſe Deo ⁊ beate marje ⁊ beato Johanni ap̄lo ⁊ euḡgliſte de inſula wiſſarum ⁊ abbi ⁊ canonicis ibidē dō ſeruientibz ⁊ ſeruitoriſ in puram ⁊ p̄petuam elemoſinā terram que dicitur Rath ſcil̄ quartam partē tocius Dunphalin cum omībz iuſtiſ p̄tinenēciſ ſuiſ in boſco ⁊ plano in pratiſ ⁊ paſcuiſ in moriſ ⁊ mareaſiſ in aquiſ ⁊ molendiniſ ⁊ cum cōmuni paſtura ⁊ omībz aliis cōmunibz aſſiſtentiſ ſr̄arum meaꝝ p̄noſate ſr̄e uicinaꝝ . Tenendū de me ⁊ heredibz meiſ libere ⁊ quiete ab omī ſeruicio ⁊ exacōe ſclari excepto ſolummodo auxilio dñi regiſ quādo ſcil̄ ipe dñſ rex cōmune auxilium ſup totum regnum poſuerit . Ego uº ⁊ heredeſ mei totum reliqum ſorinſecū ſeruiciū dñi regiſ quod ad illam ſrā p̄tinet p eiſ p̄petuo faciemuſ . Hiſ teſt . Abraham Dūblanēſi epō . dno Fergus ⁊ malifio fribz meiſ . G . Archidiacono . malifio ſeneſcallo . . . Macbeth iudice ⁊ multiſ aliis .

Alexander II. Rex Scotorum confirmat Conghal filio Donecani filii Malisii / Tulichbardene / quam Robertus comes de Stradherne dederat . *Orig. in archivis Ducatus de Athol.*

- 10 Alex^r Dei G^{ra} Rex Scott^r Omnibus probis hominibus Totius Terre sue Salfm . Sciant presentes ⁊ futuri nos concessisse ⁊ hac carta nostra confirmasse donaconem illam quam Rob^r comes de Stradherñ fecit Conghal filio Donecañ filii Ma^t . p^r homagio ⁊ serviço suo . de villa illa de Catherlauenacñ que dicitur Tulichbardene . Tenend^r ⁊ habend^r eidem Conghal ⁊ heredibz suis quos de Ada filia Radulf sponsa sua fuerit . de p^rdicto . R . com^r ⁊ heredibus suis in feodo ⁊ hereditate p^r rectas diuisas suas ⁊ cum omibz iustis p^rinentiis suis . Ita libere quiete . plenarie ⁊ honorifice . sicut carta dei . R . com^r inde p^rdicto Conghal plenius conf^rca . iuste testatur . saluo seruicio nostro . Test^r . W . e^po Glasgueñ . cancella^r . A . abbe de melro^s . A . abbe de Cup^r . H . abbe de s^ca eruce . H . de Strinct^r fit com^r David . Wi^l de Bre^yh^yn . Eyme^r de Maccuswel . R . fit Gla^y apud schoñ i^ccio die Aprilis . Anno regni domini Regis vicesimo .

Ordinatio iudicium a Papa delegatorum inter Episcopum Dunblanensem et Comitem de Mouteth . A.D. 1238.—*Extat in "Notes on the Priory of Inchmahome."* Edin. 1815. App. I. Collato vero Registro vet. Aberbroth. fol. xvii. ubi scripta est bulla Gregorii longe emendatior.

- 11 Universis Christi fidelibus hoc scriptum visuris vel auditoris Willelmus et Galfridus Dei gratia Glasguensis et Dunkeldensis Episcopi eternam in Domino salutem . mandatum Domini Pape in hec verba suscepimus . Gregorius Episcopus servus servorum Dei venerabilibus fratribus Glasguensi et Dunkeldensi Episcopis salutem et Apostolicam benedictionem . Venera-

bilis frater noster Episcopus Dunblanensis in nostra proposuit presentia constitutus quod cum olim ecclesia Dunblanensis per centum annos et amplius vacauisset / fere omnia bona ejus fuerint a personis secularibus occupata / Et licet processu temporis fuissent in ea plures Episcopi instituti / per simplicitatem tamen et incuriam eorundem non solum revocata non fuerunt taliter occupata verum etiam reliquie que occupantium manus effugerant alienate sunt fere penitus et consumpte / propter quod nullus ydoneus induci poterat ad onus hujusmodi assumendum / pene per decem annos eadem ecclesia interim pastoris solatio destituta . Cumque nos postmodum intellectu miserrabili statu ejus / venerabilibus fratribus nostris Sancti Andree et Brechinensi Episcopis ac tibi frater Dunkeldensis provisionem ipsius duximus committendam / Tu et iidem Episcopi sperantes dictam Ecclesiam per jam dictum Episcopum posse de lacu miserie respirare ipsum eidem Ecclesie prefecistis / quam supradictus Episcopus invenit adeo desolatam quod non repperit ubi posset caput suum in Cathedrali Ecclesia reclinare . Nullum collegium erat ibi / sed in ipsa Ecclesia discooperta quidam capellanus ruralis divina officia celebrabat . Ipsius quoque Episcopi redditus sunt adeo tenues et exiles quod vix per dimidium anni potest exinde congrue sustentari . Quia vero instantia nostra quotidiana est omnium ecclesiarum sollicitudo continua / fraternitati vestre per Apostolica scripta mandamus quatenus ad eandem ecclesiam personaliter accedentes / si rem inveneritis ita esse / quartam partem decimarum omnium Ecclesiarum Parochialium Dunblanensis diocesis faciatis / si absque gravi scandalo fieri poterit / prefato Episcopo assignari / ut ipse de vestro et bonorum virorum consilio / reservata sibi de ipsis pro sustentatione sua congrua portione / decano et canonicis quos ibidem per vos institui volumus et mandamus assignet . Alioquin assignata ipsi Episcopo quarta decimarum omnium ecclesiarum ejusdem diocesis que a personis secularibus detinentur / sedem Episcopalem ad monasterium sancti Johannis Canonicorum regularium predictae diocesis transferatis / eligendi Episcopos eum Ecclesia ipsa vacaverit Canonicis ipsis imposterum potestate concessa /

contradictores si qui fuerint et rebelles per censuram ecclesiasticam appellatione postposita compescendo . Datum Viterbii iii^o Idus Junii pontificatus nostri anno xj . Hujus igitur auctoritate mandati cum tam dictus Episcopus Dunblanensis quam Valterus Cumyng comes de Menteth in nostra presentia essent constituti post altercationes ordinationi nostre se subjecerunt super omnibus contentionibus et querclis inter ipsos motis vel que aliquo tempore poterint super infrascriptis moveri et super reformatione status Ecclesie Dunblanensis / nos habito vero virorum prudentium consilio / in hunc modum inter eos ordinavimus / videlicet Quod dictus Episcopus Dunblanensis nomine Ecclesie sue pro se et successoribus suis omnibus renunciet omni juri quod Episcopi vel antecessores sui nomine Ecclesie Dunblanensis habuerunt vel habere potuerunt vel poterint in terris vel denariis receptis de terris et in canis omnibus Ecclesie et denariis annuatim ab Ecclesiis comitatus de Menteth in quibus dictus comes jus obtinet patronatus nomine pensionis percipitis ut dicebat dictus Episcopus / et omnibus querclis exactionibus vel demandis inter eos motis vel que aliquo tempore ab ipso vel antecessoribus suis contra dictum comitem vel antecessores suos moveri poterant vel poterunt supra predictis . ordinavimus etiam quod licitum sit dicto comiti et successoribus suis domum virorum religiosorum ordinis Sancti Augustini in insula de Inelmaquhomok construere sine impedimento vel contradictione dicti Episcopi vel successorum suorum . Assignavimus etiam ex collatione dicti comitis et de voluntate et assensu dicti Episcopi in puram et perpetuam elemosinam illis viris religiosis in dicta insula Deo servientibus Ecclesias de Lanyu et de dicta insula cum omnibus libertatibus et aisiamentis ad dictas Ecclesias pertinentibus / salvo Episcopalius dicto Episcopo et successoribus suis . Et sciendum est quod non licebit dicto Episcopo vel successoribus suis in dictis duabus Ecclesiis perpetuos vicarios facere sed honesti capellani Episcopo presententur qui ipsi de cura animarum et de spiritualibus et Episcopalibus respondeant . Ordinavimus insuper ut dictus comes pro se et successoribus suis concedat et assignet Ecclesiam de

Kippen ad perpetuum canonicatum in Ecclesia Dunblanensi / salvo sibi et successoribus suis omnibus in perpetuum jure presentandi ad dictum canonicatum quotiescunque vacare contigerit . Ordinavimus similiter ut idem Comes pro se et successoribus suis cedat eidem Episcopo et successoribus suis quicquid juris habuit in Ecclesia de Callendar . Ut autem hec ordinatio nostra rata et inconcussa permaneant huic scripto sigilla nostra unacum sigillo dicti Episcopi Dunblanensis apposuvimus : his testibus existentibus in concilio apud Perth Anno Gratie millesimo ducentesimo tricesimo octavo in octabis Sancti Joannis Baptiste . scilicet G . Episcopo Aberdonensi . de Aberbroth et de Scone et de Cambuskenneth et de Inchaffray Abbatibus / Magistro Petro de Ramsay / Magistro M . Archidiacono Glasguensi / Magistro W . Decano Glasguensi / et multis aliis.

Malisius comes de Strathern dat Gilberto de Haia militi Hachlasky .
E transcripto in archivis Comitum de Errol.

- 12 **O**mnibus Christi fidelibus presens scriptum visuris Walesius comes de Strathern Salutem . Noueritis universi me dedisse concessisse et hac presenti carta mea confirmasse Domino Gilberto de Haia militi et heredibus suis vel suis assignatis / ita tamen ut nullum faciat assignatum nisi de suis liberis ex ipso genitis / pro homagio et servitio suo totam terram que vocatur Hachlasky cum omnibus suis justis pertinentijs et rectis divisis ad predictam terram pertinentibus Tenendam et habendam de me et heredibus meis sibi et heredibus suis vel suis assignatis adeo libere quiete plenarie et honorifice sicut aliqua terra in regno Scocie liberius quicquid plenius et honorificentius de aliquo comite vel barone tenetur et possidetur in bosco et plano in pascuis et pasturis in moris et maresijs in aquis et piscarijs in stagnis et molendinis in feris et avibus in montibus et collibus in vallibus et rupibus et in omnibus alijs aisiamendis ad predictam terram juste pertinentibus. Reddendo inde

annuatim ipse et heredes sui vel sui assignati michi et heredibus meis quedam calcaria deaurata vel sex denarios ad Pentecostem pro omni servitio consuetudine exactione et demanda seculari Salvo forinseco servitio domino Regi quantum pertinet ad terram prenominatam Ego vero dictus Walesius et heredes mei dicto Gilberto et heredibus suis vel suis assignatis terram prenominatam pro servitio predicto michi et heredibus meis annuatim solvendo contra omnes homines et feminas warrantizabimus acquietabimus et defendemus in perpetuum In cujus rei testimonium presentem cartam sigilli mei impressione roboravi Testibus venerabilibus patribus dominis Clemente episcopo Dumblanensi A . abbate de Insula Wissarum dominis Gilberto de Glencarny Malcolm de Moravia Gilberto de Ruthven Joachim de Knibet militibus Nicholao camerario Gilberto filio comitis Gilberto de Knibet Walesio filio Anceul Duncano de Durry Willelmo clerico et multis alijs .

Walisius comes dat Amabilie ipsius forori terram de Kyncardyn, ad ipsam maritandam . *Orig. in archivis Ducis de Montrose.*

- 14 Sciant omnes tam presentes quam futuri quod Ego Walifius comes Strahern dedi concessi et hac presenti carta mea confirmaui Amabilie forori mee ad ipsam maritandam totam terram de Kynkardyn in Kathel leuenas que est juxta Hueterhardouer sine aliquo retinemento . in bosco . in plano . in pratis . in pascuis . in moris et marifeis . In stangnis et molendinis per omnes rectas diuifas suas et cum omnibus libertatibus ayfiamentis et cum omnibus alijs iustis pertinentiis ad dictam terram pertinentibus . tenendam et habendam dicte Amabilie et heredibus suis de corpore suo exeuntibus de me et heredibus meis inperpetuum ita libere et quiete plenarie et honorifice ab omni seculari actione et demanda sicut aliquod maritagium in toto regno Scotie liberius quietius plenius et honorificencius ab aliquo comite

uel barone tenetur et possidetur . Faciendo inde forinsecum seruicium domini Regis quantum pertinet ad illam terram . et Ego vero dictus Walifius comes Strabern et heredes mei dictam terram de Kyncardyn ut predictum est dicte Amabilie forori mee et heredibus suis de corpore suo exeuntibus contra omnes homines et feminas warantizabimus acquietabimus et inperpetuum defendemus . Et ut hec mea donatio et concessio et presentis carte mee confirmatio rata et stabilis permaneat huic scripto sigillum meum apposui . Hiis Testibus domino Alexandro Comyn comite de Buchan tunc Justiciario Scotie . domino Frefkyno de Morauia . domino Johanne de Dundenor . domino Reginaldo le Chen . domino Roberto de Walhopp . domino Walcolmo de morauia . domino W. de Ramefey . domino Johanne de Wemes . militibus . Johanne de Kyndeloch . Radulfo de [La]feles et aliis .

[*From a Note of the late George Smythe, Esq.*]

- 15 In an action before the Sheriff of Perth at the instance of David Lord Drummond against Janet Crichtoun, relict of Hary Drummond of Riecarton, liferenter of the lands and mill of Pitcairn, in the parish of Dunning, and William Drummond, her son, fiar of the said lands, the pursuer produced

“Ane affignation heritable made be umquhil Malicius Erle of Stratherne to the Abbot and canons of Incheffray of 10 merkis annual rent to be upliftit from the lands of Pitcarnis, dated Inverpeffray the morn eftir the Annunciation of our Lady the year of grace 1283—the seal worn off. Also,—

“Ane cognitioun taken at the court of Carfs by umquhil Robert Steward of Scotland and Erle of Stratherne, therein giving, after the sight of the auld euidentis of the annual rent libelled lyand within the parochin of Donyng, state and possession of the said annual rent, commanding the

maris of Donyng for the time that they caus the religious men abbot and convent of Incheaffray to receive the same. Dated Methven, 13 Maii 1358."

Wuriella filia Coneval dat Willelmo de Moravia militi et Ade filie sue terram de Tulibardyn . *Orig. in archivis Ducatus de Athol .*

- 16 **O**mnibus xri fidelibz hoc sc'ptum visu' uel auditu' Wuriela q'ndam filia Coneua' filii Duncani salm et'nam in dno . Sciant p'sentes 7 fut'i me i libera viduitate mea die Jovis p'xia ante festum ap'loꝝ Symonis 7 Jude anno dni mi'ho Ducētesimo . Octoꝝ q'rto dedisse cōcessisse 7 hac p'senti carta mea cōfirmasse Dno Wi'ho de Moravia militi filio Dni Walcolmi de Morauia totā t'ram meā de Tulibardyn . me 7 heredes meos q'cūq; iure i ppetuū cōtingētem . 7 ade filie mee spōse dēi dni Wi'hi de Moraū . p rectas diuicias suas . 7 cū oīmbz iustis p'tinenciis suis . Tenend' 7 habend' p'dēo dno Wi'ho de Moraū . 7 p'fate Ade spōse sue . 7 hēdibz dēe ade . de me 7 hēdibz meis . in feodo 7 hēditate p rectas diuicias suas 7 cū iustis p'tinenciis suis . libe 7 quiete . pacifice . 7 honorifice . plenarie 7 integre i bosco 7 plano . in t'ris 7 aquis . i p'rtis 7 pascuis in moris 7 maresiis . i viis 7 semitis . i stagnis 7 molendinis i piscariis . feris 7 auibus . 7 cū oīmbz aliis libtatibz 7 aysiamētis ad dēam t'ram p'tinētibz . uel de iure aliq' tēpe p'tinere valentibz . Faciendo inde p'dēi dñs Wi'hs 7 ada spōsa sua 7 hēdes dēe Ade forinsecū suiciū dno Comiti de St'herñ q'ntū ad dēam t'ram p'tinet scilic'z suiciū scoticānū . Reddendo etiam annuatim dno comiti de St'herñ duodecim dena' argēti de p'dēa t'ra . 7 michi 7 herēdibz meis p'dēi dñs Wi'hs 7 ada sponsa sua filia mea 7 hēdes dēe Ade unū dena' argenti annuatim ad Pentecost' p oīni suicio seculari . cōsuetudine exaccōne 7 demanda . Ita q dēi dñs Wi'hs de Moraū 7 Ada spōsa sua filia mea . 7 hēdes dēe Ade . liberi erūt 7 quieti ab oīmbz scētis curie . 7 Wardis . 7 releuiis 7 auxiliis que a me 7 hēdibz meis exigi pōtunt . p dēo dena' p'fato

fmio psoluendo . Ego n° Muriella 7 hedes mei totā p̄dcām fram de Tuli-
baryn sepedco dno Wilho de Moraū . 7 ade spōse sue filie mee 7 hēdibz
dēe Ade cont^x oīs homines 7 feminas warantizabim⁹ . acq̄etabim⁹ i ppetuū
7 defendemus . In c⁹ rei testimoīm p̄senti se'pto sigillum meū appensum
est . Hiis testibz Dno Walsio Comit de St^rthern Dnis Patricio de Grahm
7 Wilho de Rotheuen militibz . Dno hug dei grā abbe de Insula missaꝝ
Dno Nicholao Rectore ecclie de creff . Dno Beda Rectore Ecclie de
Wuyethe . Duncano de Buchfudeſ . Walcolmo de Glendoehrad . Colino
filio Gilleglas . et multis aliis .

Henricus filius Walsii senescalli de Stratheren confirmat donationem
Murielle matris ejus . *Orig. in archivis Ducatus de Athol .*

- 17 Omnibz hoc scriptū visuſ ut audituſ Henric⁹ filius q'ndā dñi Walsii
senescalli de St^rtheren etnā in dño salm . Nouit vniūsitā ſrā me pfirmasse
pro me 7 hēdibz meis illā donacionē q'm dña Muriella mat' mea filia con-
newah dedit 7 pcessit dno Wilho de morauia filio dñi Walcolni de Morauia
7 Ade filie dēe dñe Murielle sorori mee . ſre de Tulibardeñ scdm tenorē
carte q'm dēs dñs Wills 7 Ada soror mea habent de p̄dcā dña Muriella
matre mea . Et ad maiorē hui⁹ rei securitatē fideliter obseruādā pro me 7
hēdibz meis ut hec mea pfirmacio firma pmaneat 7 stabit inppetuū huic
scripto sigillū meū apposui . 7 in plena curia dñi Walsii comitis de St^rtheren
tenta apd Dūfally die Martis in vigilia omniū scōꝝ Anno grē . Wilt⁹ duec-
tesimo . octogesimo q'rto . totū jus meū de dēa ſrā dno Wilho de Morauia
7 Ade sorori mee 7 hēdibz suis inppetuū q'etū elamaui . Hiis testibz . dōpno
hug dei grā Abbe de insula missaꝝ . dno Adā de blare milite . dno Nicholao
rectore ecclie de Cref . magro Ricardo de St^ruelyn . Robto de St^rtheren fre
cōitis . Dūcano de buchfud . Walcolmo de Glendoehryth . colino filio Gille-
glasse . Walsio Mac duf . Alano de kynbuc . monach mac Alpy . 7 mltis
aliis .

Maria relicta Eugenii filii Coning quietam clamat terram de Tullibardyn .
Abbreviata ex Orig. in archivis Ducatus de Athol.

- 18 **O**mnibus Maria Relicta q^{ndam} Eugenii filii Coning cum p
 morsum cōciencie mente 7 animo intellexim me in legitima viduitate mea
 cōstitutam cont^r deum 7 iusticiam gr^{avi}u^r deliquisse iniuste vexando dñm
 Wiſhm de Moraunia militē filiū dñi Walcolmi de Moraū militē cont^r sc^{ri}pta 7
 conuēctiones int^r ipm 7 me volo 7 concedo qđ dēs dñs wiſhs . . .
 totam p^{re}dēam medietatē orientalem frē de Tullibardyn impetuū ad feode-
 firmam teneant Reddendo . . . xij m^{er}cas bonoꝝ et legalium ster-
 lingoz volo q^ua liceat dēo dño Wiſho . . . q^uodocūq^{ue} voluit sen
 voluerint 7 poterit seu pōint totam dēam medietatē frē de tulybardy cum
 pertinenciis sine contradicōnem ei aut heredum meorum aut assignatorum
 de predēo dño comite de Stratherne 7 heredibus suis imperpetuum in capite
 tenere 7 possidere si contigerit predictum dominum Wiſhm de Moraū
 ante dñam adam spōsam suam nep^{er} meam inſat decedere qu^a totam dēam
 medietatem frē de tulybardy . . . suo perpetuo teneat . . . Sigillum meum
 presentibus apposui . et quia sigill^u meū non satis est notū sigillum officiali-
 tatis Dñi Wiſhi dī grā Epī Dumblañ una cū sigillo Johis filii Ricardi tūc
 temporis cōstabulañ de pth Testibus Wağro Symone Belle ppetuo
 vicañ de strivelyn . Dño dovenaldo p^{ro}ore de Mothil . Dño Cleñte cap^{ro}ſo
 Decañ x^{an}itatis de Strathern . Dñis Nevino 7 Andr^e cap^{ro}ſis . Rogo de
 laſſelis clīco . Walcolmo de kynros . Hal Judiē . Monach^{us} Walp^{er}g^{us} Hugone
 de Erthe . Randulpho W . . chſenne . Johi filio presb^{ite}ri burgenſ de huch-
 ſardor 7 multis aliis .

Malisius comes de Stratheryn dat Willelmo de Moravia · Dundovan et Pethver · *Orig. in archivis Ducatus de Athol.*

- 19 Omnibꝫ ad quos litte iste pervenīint · Malisius comes de Stratheryn salutem · Sciant tam p̄sentes quam futuri me dedisse ꝓcessisse ⁊ hac carta mea ꝓfirmasse · Willo de Moravia totas t̄ras meas de Dundovan ⁊ de Pethuer per oīns rectas diuisas suas cum omnibꝫ iustis pertinentiis suis in bosco · ⁊ plano · In pratis ⁊ paseuis · in moris ⁊ maresiis in stanguis ⁊ aquis in piscariis ⁊ molendinis · in petariis ⁊ omnibꝫ aliis aysiamētis ad p̄d̄cas t̄ras iuste pertinentibꝫ · pro homagio ⁊ s̄uico suo · Tenendas s̄ ⁊ hereditibꝫ suis de me ⁊ hereditibꝫ meis in feodo ⁊ hereditate · libere · ⁊ quiete plenarie ⁊ honorifice · sicut liberius quietius plenarius honorificentius aliquis comes in toto regno scocie dare ul ꝓcedere potest · Soluendo inde annuatim m^l ⁊ hereditibꝫ meis a se ⁊ hereditibꝫ suis quatuor marcas argenti ad duos anni t̄minos videlicet duas marcas ad penteeoꝛ · ⁊ duas mareas ad festū s̄ci martini in hyempme · pro omni exaccōne seculari · Saluo forinseco s̄uico d̄ni Reḡ quantū ad d̄cas t̄ras [pertinet · Ego vero dictas terras] ut supras̄c̄ptū est d̄co Willo de Moravia ⁊ hereditibꝫ suis ꝓtra omnes hoīes et feminas warantizabimus aquietabimꝫ ⁊ defendemus imperpetnū · In cuiꝫ rei testimoniu sigillū meū p̄sentibꝫ lit̄tis est appositū · hiis testibꝫ · d̄no Hugone priore de Insula m̄issā · d̄no Niehoꝛ rectorē ec̄cie de Cref · d̄no Eugenio rectorē Ec̄cie de kyndrumyn · Duncano filio fergus · Walcolmo de Glendochred · ⁊ multis aliis ·

Earl Malis's seal is attached: A mounted knight, with shield and sword drawn. The horse's housings and the shield bear the two cheverons of Stratherne. Below the horse, a winged dragon. The ground of the seal is sprinkled with stars.

SI MALISII COMITIS DE STRATHERN ·

Malisius Comes de Stratherne concedit se non habere jus petendi ser-
viciū de domino Willelmo de Moravia . *Orig. in archivis Ducatus de*
Athol.

- 20 Omībz hoc sc'p'm visu' ut auditu' Malesius com de St^ehe' e'nam in d'no
sa'm . Nouit vniū'sitas v'ra q' cōcedim⁹ p nobis ⁊ hēdibz n'ris q' non habeam⁹
ius habendū neque petendū aliquod seruiciū de d'no Wi'Ho de Morauia nisi
forinsecum seruiciū scoticānū d'ni regis in q' nobis tenet⁹ de terris quas de
nobis tenet . ⁊ secursum ac auxiliū quod nobis in defensione Regni p
poten'cā suam armigeroz equoz ⁊ armoz fecit . ex lib'a volūtate sua nobis
ex mutuo cōcessit . q're volumus ⁊ cōcedim⁹ p p'sens sc'p'm p nobis ⁊ hēdibz
n'ris q' illud auxiliū non sit p'udiciū d'co d'no Wi'Ho de Mo' n' hēdibz suis
inposterum . In cuius rei testimoniū presenti sc'pto sigillm n'rm apposum⁹ .
Dat ap^a cothyl . die martis px^a post octabas festi purifica'ōis be marie
virg' . Anno gr'e m^o . c^oc^o.no'g . septimo .

Wardrobe accounts, Edward I. *Note from Add MSS. British Museum,*
No. 7965.

- 21 To John Donnyng, the master of Gilbert and Robert sons of the Earl of
Stratherne, being in the retinue of Edward the King's son, to buy him a
robe 20s.

Walisius comes de Stratherne dat Johanni de Moravia de Dromeyrgard militi et heredibus inter ipsum et Mariam filiam Comitis annum redditum de Woneyth. *Orig. in archivis de Abercainey etate valde exesa.*

- 22 **O**mnibꝫ hoc sc̃ptum visuꝛ vel audituꝛ Walisius Comes de Str̃thrn et̃nam in dño factuꝛ . Nouitis nos dedisse . concessisse ⁊ p̃ p̃sens sc̃ptum conf̃mass̃e dño Joh̃i de morauia de Dr̃oc̃yrgard militi pro bono consilio ⁊ labore suo noꝛ impenso ⁊ adhuc impendendo decem marcas sterlingoꝝ de annuali redditu medietatis t̃re de Woneyth . . . Joh̃is filii Gilberti tenētis ñri de eadē . Tenend̃ ⁊ h̃nd̃ eidē Joh̃i [et heredibus] int̃ ip̃m ⁊ mariam filiam ñram spoñsā suam exeuntibꝫ de nobis ⁊ heredibꝫ ñris recipiend̃ quolibꝫ anno p̃ annus eiusdem Joh̃is filii Gilb̃ti vel altius tenentis ñri de eadem ad festa pentec̃h ⁊ sancti martini cuiꝰ . . . In cuiꝰ rei testimoniū sigillū ñrm apposuimus . Hiis testibꝫ Veñabili in x̃po p̃re dño coaurĩco d̃i gr̃a ep̃o Dunblanc̃s . Dño Cristino ead̃ gr̃a abbe de Insula c̃isslaꝝ . d̃nis WiHo olifaunt . Waltero de Rotheweñ militibꝫ . caleolmo de Dromode . WiHo de Crābꝫ ⁊ ñltis aliis .

Walisius comes de Strathern confirmat terram de Tulibardyn Willelmo filio Andree de Morauia. *Orig. in archivis Ducatus de Athol.*

- 23 **O**mnibus hanc cartam visuris vel auditoris Walisius comes de Strathern salutem in Domino sempiternam . Sciatis nos dedisse concessisse et hae presenti carta nostra confirmasse Willelmo de Moravia filio Andree de Moravia de Tulibardy totam terram de Tulibardy cum pertinenciis infra comitatum nostrum de Strathern que fuit domine Ade de Moravia spoñse quondam domini Willelmi de Moravia de Tulibardy militis et quam dieta domina Ada nuper nobis per fustum et baculum fursum reddidit et resig-

navit et pro se et heredibus suis omnino quietam clamavit imperpetuum . Tenendam et habendam prefato Willelmo et heredibus suis de nobis et heredibus nostris in feodo et hereditate per omnes rectas metas et divisas suas adeo libere quiete plenarie et honorifice cum omnibus libertatibus commoditatibus assiamendis et justis pertinenciis suis sicut prefata domina Ada dictam terram de Tulibardy cum pertinenciis liberius quicquid plenius et honorificencius aliquo tempore tenuit et possedit . Faciendo inde prefatus Willelmus et heredes sui forinsecum seruicium regium et nobis et heredibus nostris seruicia debita et consueti quantum ad eandem terram pertinet . ita tamen quod nec nos aut heredes nostri predictam terram de Tulibardy cum pertinenciis ulterius teneamur warantizare vel cuiuscunque alterius actionem rectum vel clameum defendere nisi tantum pro clameo nostro et heredum nostrorum . In cuius rei testimonium presenti carte nostre sigillum nostrum fecimus apponi . Hiis testibus . venerabili in Christo patre domino Mauricio Dei gratia episcopo Dunblanenſi . Domino Willelmo de Monte fixo tunc iusticiario ex parte boreali aque de Forth . domino Johanne de Moravia de Dromfergarth . domino Johanne de Inchemartyn . domino Waltero de Weneteth . militibus . Malcolm de D . . . nych . Willelmo de Crambyth . Johanne de Innerpeffry . et multis aliis.

Malisius comes de Stratherne dat Johanni de Moravia de Dromsyrgart et heredibus de Maria filia comitis exeuntibus / terram de Abbercarny .
Orig. in archivis de Abercainey.

- 24 Vniuſis preſentem cartam viſuris vt auditur Malisius Comes de St^rthrn etiam in dno ſalm . Nouitis nos dediffe . conceſſiſſe . et hac p^rſenti Carta nra oſmaſſe Jo^hi de Morauia de Dromſyrgart totam t^ram de Abbercarny cu ptinenciis que fuit Robti filii magni dicti de St^rthrn q^ondam tenentis nri de eadm / Tenend t^r hndam eid Jo^hi t^r heredibz ſuis de Maria filia nra exeuntibz
f

de nobis ⁊ heredibz nris in feodo ⁊ hereditate p suas rectas diuifas ⁊ cū oībz
 fuis iustis ptinēciis libtatibz cōmoditatibz ⁊ aīfamētis / in bosco ⁊ plano /
 in p^{er}tis ⁊ pascuis / cōris ⁊ cōarisiis / aquis / stagnis / piscariis ⁊ aucupa-
 cōibz / in colendinis ⁊ cōltu^r ⁊ in oībz aliis aīfamētis ad dēam t^{er}ram
 quouomodo iure v^{er}o titulo sp^{er}tantibz ⁊ v^{er}o inpossūm sp^{er}ta^r valentibz tam
 noīatis q^{uā}m nō noīatis / libe / q^{uā}etc / integre / honorifice ⁊ in pace ⁊ faci-
 endo inde forinsecū suiciūm dñi Regis / q^{uā}ntū ptinet ad eandē Et Reddendo
 Abbⁱ ⁊ cōuentui de Insula cōīstāz annuatim sex m^{ar}cas argenti ad t^{er}mios
 cōfuetos . Reddendo etiam nob^{is} ⁊ heredibz nris / vnū duntaxat dena^r ad Pente-
 choste quolibz anno si petat^{ur} . noīe albe t^{er}me / Et faciēdo tres sectas ad t^{er}ra
 capita^r placita nra de st^{er}th^{er}n p annū p oībz aliis suiciis / wardis / releuiis /
 cōaritagiiis ⁊ p oībz aliis cōfuetudinibz . exaccōibz . v^{er}o demandis . que de
 dēa t^{er}ra p nos v^{er}o p hedes nros aliq^{uā}o tempe exigi pōtunt v^{er}o demandari / Et si
 cōtingat dēam Johem ⁊ p^{er}fatam sp^{er}osam suam filiam nram sine hede int^{er} ipos
 p^{er}ato decedere q^{uā} absit volumus qd post decessū ipi^{us} Johis / hedes sui
 dēam t^{er}ram cū ptinēciis hēant teneant ⁊ possideant heredita^r Soluēdo nob^{is} ⁊
 heredibz nris annuatim quatuor m^{ar}cas st^{er}lingoz ad t^{er}mios cōfuetos loco dena^r
 supius cōtēti vna cū aliis seruiciis ⁊ solucōe supius cōtētis siue noīatis m^{ar}
 ⁊ for^{is} quo sup^{er} Nos vero ⁊ hedes nri eandē t^{er}ram cū oībz fuis ptinēciis ⁊
 libtatibz vt sup^{er}dēm est eid^{em} Johi ⁊ heredibz fuis sup^{er}dēis . q^{uā} oēs hoīes ⁊ seīas
 warrantizabim^{us} acq^{uā}etabimus ⁊ defendemus inppetū . In cuius rei testimo-
 niū ⁊ l^{ic}ne p^{re}sentē cartam imp^{re}ssione sigilli nri roborauimus . Hiis testibz dñis
 Walto de Rothvenn . WiHo Olyfaunt ⁊ Rogero de W^{er}gsenū cōiitibz Thōa
 de Haya de Lochorwarde . WiHo de Crambetū / Eugenio de Kynros .
 Symone de cōale^r ⁊ m^{ul}tis aliis .

Malisius comes de Stratheryn confirmat domino Johanni de Moravia de Dromsergart militi / Ogilville / Abircarny Glenferuy / Kyntowy alisque infra comitatum de Stratheryn / ac etiam terras de Egy et Aglismochlen in de Angus . *Orig. in archivis de Abercairney.*

- 25 Omnibus hoc sc̃ptum vifur vel auditur Malisius Comes de Stratheryn sãm in dno Cum Nobilis vir dñs Malisius bone memorie pat̃ ñr quondam Comes de Stratheryn infeodauit dñm Jõhem de moravia de Drom̃gart militē de diũis̃ tris inf̃s . . . videlicet Ogyluile Abircarny Glenferuy de medietate de Kyntow̃ que fuit Alicie de eadem de decem m̃cis annui redditus de cōnyeth ptis videlicet Joh̃is filii Gilb̃ti . ñon de annuo redditu de mocheuuard cū C . . mo . . h̃ybeg inf̃r Cōitatū de Stratheryn ac eciam de terris de Egy . ⁊ Aglismochlen in baronia de Cortaw cōitatū de Angus put in cart̃ p̃d̃ci dñi quōdam pat̃s ñri eidem dño Jõhi ⁊ h̃edibz suis sup eisd̃ confectis pleñ⁹ continet⁹ Nos vero om̃es p̃d̃caỹ traꝝ cartas om̃esq̃ dona- cōes eaydem cū oibz suis ptinenciis ⁊ articulis omnimodis put in d̃cis cartis pleñ⁹ continet⁹ p̃ nob̃ ⁊ h̃edibz ñris appbam⁹ ⁊ p̃ p̃sentes in omnibz conf̃mam⁹ . In Cui⁹ Rei testiōm p̃senti sc̃pto figillū ñrm est appensum . Hiis testibz v p̃rc in xp̃o dño Mauricio dei gr̃a Ep̃o Dunblaneñs dño Cristino dei gr̃a abbat̃ de Insula missaỹ . dño Dauyd de Grah̃m dño Jõh̃ de Inchemartyn dño Willo de montefixo militibz . ⁊ . de Dromōt . Willo de Crambz Jõhe de Inl̃peff̃r ⁊ multis aliis .

[*Note, made by Mr C Innes about the year 1840, of an Original Charter at Dunrobin, now mislaid.*]

- 26 A Charter by King David II. (dated 12 May, an. reg. 32) ratifying and engrossing a charter of Malis Earl of Caithness (styled in his own charter

here engrossed, Earl of the Earldoms of Stratherne, Caithness, and Orkney,) by which he granted to William Earl of Ross, the marriage of his daughter Isabel, (by his wife Marjory,) declaring her his heir of the Earldom of Caithness, failing an heir male of the marriage of the said Earl Malis and Marjory. At Inverness, 8 May 1384.

*Venditio warde et relevii Willelmi de Moravia de Tolibardyn . Orig.
in archivis Ducatus de Athol.*

- 27 Patcat vniß p pñtes nos Johannem de Meneteth vicecomitem de clac-
manane prorsus et libere vendidisse Johanni Mœcer burgenfi de Perth totum
ius et clameum quod habuimus vel habere poterimus in Wardis seu releviiis
terrarum domini Willelmi de Moravia domini de Tolibardy datis et con-
cessis nobis per Willelmum comitem de Sotheyrland et dominam Johannam
comitissam sponsam suam comitissam videlicet de Stratheryn vna cum iure
quod habuimus in annuo redditu de Pytver et Aldy per cristianam Mœre
sponsam quondam Reginaldi Mœre pro quadam summa pecunie nobis inte-
graliter persoluta pre manibz. In cuius rei securitate obligamus nos et heredes
nostros ad warrantizandum predicto Johanni Mœcer et heredibus suis ac
assignatis predictam wardam seu releuium contra prefatum comitem de
Sotheyrland et comitissam de Straheryn sponsam suam legitimam. In cuius
rei testimonium presentibus sigillum nostrum est appensum. una cum sigillo
Walteri Olifant in evidenciis testimonium. Datum apud Perth die Jovis
proximo post festum pentecostis anno domini M^{ccc} quinquagesimo secundo.

See the explanation
of the 4/

Walterus de Moravia dotat uxorem Margaretam ly Barde. *Abbreviata ex orig. in archivis Ducatus de Athol.*

- 28 **O**ibz . . . Walterus de Moravia dñs de tulybardy . . . cum consensu reuerendi dñi mei dñi Roberti Señ Scoē tūc cōitis de St^herī . . . dotasse dilcām meam m^garetam ly barde ac ī libera dote eidm m^garete in mera et libā sua v^ginitate p contractu mat^monii inter me 7 dcām m^garetam cōt^hend dedisse omnes terras meas de St^herne vidz tulybardy nethyr Gask Dalreaghy Aldy petverr dūdovan ly bordland de Glendovan 7 Glencoy quas a p^deto dño meo tenco in capite . . . Tenend . . pro toto tempore vite sue . . . quousque dēe W^garete v^t certo suo a^ctornato de Wⁱh libris st^lingoř bone 7 lega^t monete vno die int so^t ortū et occasū in ecēa magna dūblañ plenarie fuerit satisfc̄m . . . dat^r ap^d insulam S^ci colmaci decio die mens^r novembris anno dñi millesio t^centesio quinq^gesimo octauo.

David II. Rex confirmat Waltero de Moravia Tulibardyne etc. *Orig. in archivis Ducatus de Athol.*

- 29 **D**avid dei grā Rex Scottoz Omibz probis hoīibz tocius t^re sue . c^licis et laicis / salū . Sciatis nos approbasse . Ratificasse et hac p^{nti} carta n^{ra} cōf^r-massē . donacōem illam 7 concessionem quas k^{ns} nepos n^r Robt⁹ senescall Scoē comes de Strathne . fecit 7 concessit dilcō et fideli n^{ro} Walfo de Moravia de Tolibardyne de t^ris de Tolibardyne . petver . aldy . dundovane . de dñico de glendovane . glencoy . nethirgask 7 dalryvach . cū p^{nti}entiis . infra comitatū de Strathne . Tenend . et hnd d^{co} Walfo et h . . . bus suis in feodo et h^{er}editate p omēs Rectas metas et diuisas suas cū omibz lib^litatibz . cōmoditatibz . aysiamētis et iustis p^{nti}enciis quibzcuq^z ad d^{cas} t^ras sp^tantibz seu quoq^o m^o iuste sp^tare valentibz in futurum . adeo libe 7 quiete . plenarie

integre ⁊ honorifice · in om̃ibꝫ et p̃ om̃ia sicut carte siue ĩre dēi nepotis ñri
 p̃fato waltero de dēis ĩris confect̃ in se plenius iuste continent ⁊ pportant ·
 Saluo ſuicio ñro · In cuiꝰ Rei testiōm̃ p̃nti carte cōf̃maçōis ñre Sigillū ñrm
 p̃cepimꝰ apponi · Testibꝫ veñ in x̃ro pat̃bꝫ wiłmo Ẽpo S̃ci andree · et
 pat̃cio Ẽpo Brechiñ cancell̃ ñro · Wiłmo cōite de Roff · Rob̃to de Erskýne
 et archebaldo de douglas militibꝫ / apud Spýný · Tertio die decembr̃ Anno
 Regni ñri Tricesimo tertio ·

Conventio inter Alexandrum de Moravia dominum de Ogyłby et quendam
 husbandum Reginalum Makkyne · *Orig. in archivis de Abercairney.*

- 30 **I**n noīe dñj amē · Hec p̃sens indentura testatꝰ q̃ septodecimo die mēſ Julij
 anno dñj m̃iſſo cccº septuagesimo ap^a monast̃iū Insule m̃iſſaꝫ tať cōuēçō f̃ca
 fuit int̃ Allexandrū de moravia ⁊ dñm de Ogýłbý ex pte vna ⁊ quēdā hus-
 bādū f̃z řginaldū makkyne ex pte alia řz q̃ sup̃^adēs Allexander cōcedit p̃dçō
 řginaldō tam q^m ſuus dñs ſuū dať cōſiliū ⁊ innamē ī oibꝫ ſuis agēd̃ ⁊ p̃dēs
 řginaldº de ſua ſpōtanca volūtate ñe facit ⁊ ordinat ſup̃^adictº Allexandrū ſuū
 heredē diſpoſitorē ⁊ r̃ceptorē oīū bonorꝫ ptis p̃dei řginaldi cōt^adicçōe nō
 obſtante cuiꝰcūqꝫ · ouibꝫ cū vt̃ſiliis domo tātūmº exceptis · ⁊ p̃dēs Allexander
 obligat ſe ad ordinand̃ eā cōſilio p̃habito ſup̃^adēi řginaldi fauēti dō p̃ oibꝫ
 neſſariis expenſ̃ racōnabiľr ī ſuis obſequiis faciendis · In teſtimoniū vero
 ptis remanētis huiꝰ indentur̃ penes ſup̃^adēm Allexandrū · p̃dēs reginaldº ex
 qº ſigillū nō habuit p̃curauit cū magna iſtancia ſigilla řueřndi dñj · dñj
 Wiłi di g̃ra ab̃bis Inſule m̃iſſaꝫ ⁊ dñi Joħis vicarii de ſoulis huie ſc̃p̃t
 apponi anno ⁊ die ſup̃^adict̃ · teſtibꝫ ſup̃^adçō dño abbate cū aliis pluribꝫ
 domº ·

Indentura de matrimonio contrahendo inter Alexandrum de Moravia de Drumsergorth et Jonetam de Monymusk sororem Eufemie Regine Scotie .
Orig. in archivis de Abercairney.

- 31 **P**refens indent^a p modū alphabeti fact² testat² q vicefimo quarto die menf nouemb^r . Anno dñi milmo ccc^{mo} septuagesimo quinto apud Pth in^l excellentiffimā dñam Eufeniā dei grā Regiam Scocie illuſtrē Et nobilem virū ac potentē dñm David Comitē palatinū de St^hherne ⁊ comitē Cattānie ex pte vna Et Alex^m de Moravia de Drumſgorth ex altā in hūc modū extitit concordatū videlicet q dēs Aleḡ ducet in vḡem dñam Jonetā de monymuske fororē dēe dne Regie . Et p^dcā dña Regia ac comes fideſr pmiſſunt facē cū toto confilio ſuo ⁊ auxilio dēm Alex^m hīre confiliū iuris pitoꝝ ⁊ aduocat^r ſūptibz ſuis pprijs ⁊ expenſ pro reenpacōe ſue hēditatis ſedm viſū fuit q ius ſit ad pſecuōem . Inſup concordatū eſt in^l eoſdm q dēa dña Regia inueniet ſufficientē ſuſtentacōem p^dcē ſororis ſue ad temp⁹ vni⁹ aⁿi v^t duoꝝ aⁿoꝝ Preſea concordatū eſt in^l eoſdem q Waſt⁹ de Moravia frat^r dēi Aleḡ ſi velit pro volūtatis ſue libito ſeniorē filiā p^dcē dne Jonete hēbit in vḡem In cui⁹ rei teſtiōm pimplende ⁊ fideſr obſuande pti hui⁹ indēt^e penes dēm Alex^m remanenti figilla p^dcōꝝ dne Regie ⁊ Comitjs ſunt appenſa Parti v^o hui⁹ indenture penes p^dcām dñam regiam remanenti figillū p^dcēi Alex^a eſt appenſum . Act² die anno ⁊ loco ſupradēis .

The ſeals now much decayed ; figured in Diplom. Scotiæ, Plate LVIII.—

1. The Queen's ſeal ; a lady ſtanding ; between two ſhields—Scotland and Roſs.
2. DAVID THANIE—Scotland, with a label.

Conventio inter Hugonem de Roſſ de Balyndolch et Alexandrum de Murraue de Ogilvy de Johanna uxore Alexandri deducenda infra episcopatum Dunblanensem . *Orig. in archivis de Abercainey.*

- 32 **C**oncordat fuit in ecēa pochiali de Perth xx die m̃ſ Ap̃lis . Anno dñi m̃^occc^o lxx^o octuagesimo [*octavo*] iñ honorabiles viros Hugonem de Roſſ dñm de Balyndolch ex pte vna ⁊ Alexandrū de Murraue dñm de Ogilvy ex pte alia q p̃d̃cūs Hugo dñam Johannā tūc dēi Alexandri vxorē iñ^r episcopat̃ Dunblanenſ iñ^r festū Sancti Joh̃is Baptiste p̃xi^{me} fut^{um} faciet deduci ac dēm Alexandrū de eiusd̃ Johe ibid̃ ēe faciet de p̃muniōe vij dieꝝ c̃tificari p quo dēs Alexander dēo Hugoni vij . marē p̃manibꝫ p̃soluit ⁊ dēo Alexandro sic p̃munio alias vij marē iñ^r xiiij dies p̃x^{me} inde sequēs dēo Hugoni p̃soluz ac deforciam̃to completo dēs Alexandr ut sup^r dēo Hugoni p̃soluz Et dēs Hugo dēam dñam Johannā iñ^r dēm episcopat̃ . nō deducēs ut sup^r dicit^o vij marē p̃recept̃ iñ^r petiōm̃ xiiij dieꝝ retrodabit . p̃mittitqꝫ dēs Hugo dēm deforciam̃t̃ cōsilio suo ⁊ auxilio adiuvā ⁊ nullom̃ impedir̃ . In cui^o rei Test̃ sigilla dēoꝝ Hugo ⁊ Alexandr̃ al̃nati sūt appenſ Anno die ⁊ loco sup^r-dēis .

Eufemia Senescalli comitiſſa Palatina de Stratherne cum consensu tutorum confirmat domino Daud de Moravia Camsyny et Benaglis . *Orig. in archivis Ducatus de Athol.*

- 33 **V**niūſ ad quoꝝ noticiā p̃ntes Ire puenit Eufemia Señ . Comitiſſa palatina de St̃hern . S̃m̃ . Sciatis nos cum consensu ⁊ assensu dnoꝝ walt̃i Señ . dñi de brechyñ ⁊ dauid de Lindezey dñi de glenesk . auūculoꝝ nroꝝ ac tutoꝝ legitimoꝝ . donaōes illas ⁊ concessiones quas dñs Walcolmus de Drūmoūd . fecit p cartas suas hereditarie . ṽt ad tempus . vite . dno dauid

de Worauia . militi . de tris de Camsyny . 7 de benaglis in comitatu nro de Strathern appbasse ratificasse 7 p pntes confirmasse p nobis 7 heredibz nris eidm dno dauid . 7 heredibz suis . vt ad tempus vite sue . In omibz punctis 7 articlis . sicut carte pdi dni Malcolmni inde sibi confecte pleni⁹ in se cōtinēt 7 pportant saluo nobis seruiço nro . In cui⁹ rei test^m pntibz Sigillū nrm apponi pcepim⁹ et ad maiore rei euidenciā sigilla pdcoz dnoꝝ Walfi . 7 dauid auūcloꝝ 7 tutoꝝ nroꝝ legitimoꝝ vt pdcm est huic scripto nro similiter appensa sunt . Apud Pth . quito die marcii anno dni millmo ccc^{mo} octogesimo nono .

Of the three seals, the middle one, that of the Countess herself, is gone, except a small part adhering to the back of the tag, containing the little counter-seal, which has a shield of arms—two cheverons. The seals of her tutors are in a fine state of preservation, though not quite entire. They are both beautiful seals, about the size of a half-crown.

1. The royal arms of Scotland within a bordure chequée. On the helmet a coronet of three points. Supporters, two lions. The crest gone.

. . WALTERI TUART.

2. A fess chequée—in the dexter corner in chief, a star. For crest, a swan's head and wings. For supporters, two beasts with lions' bodies and apparently women's heads.

. . . DAVID DE LONDESAY.

Alexander de Woravia miles indictatus super interfectione Willelmi de Spaldyne, coram Justiciariis in iudicio sedentibus apud Foulis, protestatus est quod ex quo fuit antea replegiatus ad legem de Clan macduffe per Robertum comitem de Fyf, non tenebatur coram quocunque alio de dicta interfectione respondere . *Orig. in archivis de Abercairney.*

- 34 In noie dni amen . p pns pūcū infirm cunctis pateat euiden^t q āno eiusdem dni m^{mo} ccc^{mo} nonagesimo p^{mo} Indicōne q^{ntadecima} pontificat⁹ scissimi in

xpo pris ac dni nri dni Clementi diua puiden^e ppe septimi ano q^rrtodecimo mens^e decemb^r die septima . In mei no^rij pñci t testiū suble^optoz pñcia . psonali^o constitut^o nobilis t potens vir dñs Ale^x de Worauia miles cū plocutoribz suis dño Bernardo de Hawden . milite t Jo^he de Logy vocat^o p rotulos ind^otañtoz sup infsecōe WiHi de Spaldyne pput corā Justiciariis viz Jo^he de Drumond milite Woricio de Drōmond . . . oñ f^o . WiHi in iudicio sedentibz apud ffolulis et ptestat^o erat q ex quo semel p infsecōe dñi hōis antea fuit p ind^otañtā iudicio vocat^o et replegiat^o ad legem de Clanm^eduff / p dñm Robtū Comitē de flyf^o : nō tenebat^o corā q^ocūq^o alio [iudice] . . de dñā infsecōe rñde^r qu^osq^o dñā lex de Clanm^eduff suo [gauderet] p^onilegio . de ipso ut p^odicat^o ad ipam legem replegiato . petens ipm legalit^o delibari et p ipos ut eoz ind^otañtē^o sic indebite ul^oti^o nō vexari . quic^odm iudices [responderunt] nolle dñm dñm Alexand^r delibari f^oz ipm bñ vellent respectuar^o eousq^o q dñs de Brechyn . Justiciarius capitalis [super] dñā accōne ordinauit f^m q sibi t suo p^ofilio expedienti^o videret^o q^oquidm dñs Ale^x t sui plocu^otores super] eoz peticōne t ptestacōne p^ole^optf et p^odcōz iudiciū rēspōsione petierūt a me no^rio inf^ole^opto pñcū [instrumentum] Acta fuerūt hec apud ffolū in Itiñe Justic^o ibidm tento . āno mense die Indicōne t pontificatu p^ole^optf [presentibus] nobilibz t dīferet^o viris dñis Woricio archidiacono Dunblān WiHo de g^rme Vmf^odo de Cynyngham David de militibz Woricio de Drōmond t Walfo de Worauia scutiferis testibz ad p^omissa vocat^o spāl^oit^o t rogat^o .

Et ego Joh . Symonis clericus notarius . . . etc .

De matrimonio inter Margaretam filiam domine de le Arde et Angusium de Insulis . *Orig. in archivis de Pitsligo.*

35 **H**ec Indentu^e fac^o ap^o Dynbathlach viii die mens^e Januarii Anno dñi W^o cccc^o scil^o Inter nobilē dñam 7 potentē W^ogaretā de Ard dñā eiusd ex

pte vna et nobilem virū Anguseū filiu Goffredi de Insul ex alt^r Testat^r q^d p^ocordatū ē int^r eosd^m q^d d^os Anguse^o p^odux^t 7 accepit in vxorē legitiam m^ogaretā Juuenē filiā W^ogarete d^one aūdcēte cū qua p^ocessit 7 p^odonauit eid^m aūdcēo Anguseo cū W^ogarēf filia sua p^ofat . xv marcas t^ray vid^z dauachā de Croythel 7 dimid^m dauache de Comyr kynbady jacent^r inf^r metas de Strathglas cū oib^z suis ptineū . Tenend^m 7 habend^m ip^oi Anguseo 7 h^oedib^z int^r dēu Anguseū 7 m^ogaretā Juuenē pereand^m Etiā p^ocordatū ē int^r d^os m^ogarēf 7 Anguseū si p^otingat q^d absit m^ogarēf Juuenis sine h^oede ut h^oedib^z de corpe suo p^oeat^r in fatū decedē dimidietatē p^odēay t^ray decē lib^ray cū d^oidietate bonoy tūc habito^r int^r Anguseū 7 W^ogar^m Juuenē reitent^o W^ogar^m d^one aūdcē 7 h^oedib^z suis . alia dimidietate t^ray cū bonis remanere cū dēo Anguseo p^o t^rpe vite sue / que t^rre p^o obitū dēi Angusei lib^e sine strepitu ut p^odēo ad W^ogar^m d^onam aūdcām 7 filios suos ad recupand^m 7 Inueniend^m dauachā Brebach Carynnes 7 Innvyrnavyr inf^r Strathnavyr Itē duos Gartyis inf^r cōitatū Suthyrlandie Itē Larnyse inf^r Cōitatū Cathanie . 7 quātū p^otigit dēa m^ogar^m et filii sui recupare de t^ris p^ofat^r cū p^osilio auxilio 7 potencia dēi an^og ! ip^oe an^og 7 h^oedes sui de W^ogarēf pereat^r h^oebūt q^rrtam ptem de t^ris aūdcis recupat^r 7 tres alie ptes remanebūt lib^e cū m^o 7 filiis . Termin^o int^oit^o dēi Angusei i xv . marcat^r t^ray p^osc^opt^r erit ad festū pentiē p^ox futu^r p^o p^ofectōem h^o Indent^oe sic q^d f^ome t^rimū pentiē cū m^og^m d^ona aūdcā remaneāt 7 t^rre aūdcē fiant lib^e ad voluntatē dēi Angusei de cetero abinde . Et ut oīa ista fidei^r ob^osuēt^o juramētū corpale ad inuicē p^ostite^rt In e^o Rei testiōum Sigillū .  . d^one aūdcē huic pti Indent^oe remanent^r cū Anguseo ē appen^s 7 sigillū dēi an^og pti Indent^oe remanēt^r cū dōa W^ogar^m ē appen^s . Da^m die 7 loco prenotat^r .

Notes of two charters, from a "Note of writings in the possession of Mr David Erskine, W.S., 15th Jan. 1768,"—at Dunrobin.

- 36 Confirmation by Eufemia Countess Palatine of Stratherne in her viduity (with the consent of Walter Earl of Athol and Caithness her uncle and governor) to her cousin David of Edmonstone, of former grants to his father Sir John of Edmonstone, of the lands of Tullyallan. At Perth 18th March 1414.
- 37 Charter by Archibald of Douglas, the son and heir of Archibald Earl of Douglas, confirming the grants of the lands of Tullyallan by the said Earl, and by Patrick Earl Palatine and Eufemia Countess Palatine of Stratherne, his wife, and cousin of the said Archibald Douglas, in favour of the said Sir John and David of Edmonstone. At Edinburgh, 10th August 1418.

Excerpta e diplomate fide testimonio Thomæ Episcopi Orcadenfis, de profapia comitum Orcadiæ [A.D. 1443?] exscripto in codice MS. olim inter libros Roberti Reid Orcadenfis Episcopi vere venerabilis, quem ipse, anno 1554, dedit familiari suo Thomæ Tulloch de Fluris, postea penes Robertum Norie v. d. ministrum apud Dundee, nunc vero in bibliotheca illa nobili de Panmure asservato .

- 38 Quinidem princeps Rognaldus strenuissimus [Orcadie] comitatum libere et pure donavit cuidam fratri suo Swardo nomine; qui Comes Swardus procreavit quendam filium Gothormum nomine; qui Comes Gothormus possidebat dictum Comitatum per unum annum et decessit sine herede legitimo; et sic reversus est iterato dictus Comitatus dicto principi Rognaldo, qui pure

et libere illum contulit cuidam filio suo Eynar nomine qui postea cognominabatur Turffeinar; qui quidem per longa tempora possidebat dictum Comitatum et habundavit opibus et plenus fuit divitijs. Cui successit filius ejus Thurwider Heddevar; cui successit filius ejus Hlauderver; cui successit filius ejus Comes Swardus robustus ac corpulentus, magnus et strenuissimus bellifer. Adhuc tamen non fuit regeneratus sacri baptismatis lavacro neque alii Comites prenominati. In ejus quidem Comitis Swardi diebus supervenit Olavus Thurgonis filius Rex illustrissimus de occidentalium partium guerris; ejus inductione Comes ille Swardus una cum gente Orchadie devenerunt Christiani, gentilitatis relinquentes errorem. Cui Comiti Swardo successit filius ejus Comes Thurfinus, procreatus ex filia quondam excellentissimi Principis Malcolm Regis Scottorum illustris. Qui quidem Rex contulit dicto Thurfino terras de Cathnes et Suthirland sub unica denominatione comitatus in Scotia; et illis gavus est una cum comitatu Orchadie Zetlandie et pluribus aliis dominiis in Scocie regno jacentibus, et vixerat diu et strenuissimus erat in campis. Post ejus quidem Comitis Thurfini obitum successit sibi ejus filius Comes Erlinus primus; et iste Erlinus primus genuit Comitem Paulum et Erlinum secundum; qui Paulus Comes genuit Comitem Haco. Comes Erlinus secundus procreavit Comitem Magnum gloriosissimum martirem, patronum Orchadie qui sanctissime abiit ab hac luce virgo et martyr. Post ejus quidem Magni martyris decessum et post obitum Comitis Hacon successit Comes Rollandus qui primo fundavit ecclesiam Sancti Magni martyris illamque magnis possessionibus divitiis et redditibus dotavit; predictus virque fuit sapientia et virtute pollebat per plura* bona pietatis opera famabatur venerabaturque et reputabatur pro sancto viro. Post ejus quidem obitum successit ejus frater Ericus comitatus; Cui successit Comes Haraldus; Cui successit Comes Johannes filius ejus; cui Johanni successit Comes Magnus secundus; a quo Alexander Scottorum Rex cepit comitatum de Suthirland. Cui Magno comiti secundo successit Comes Gilbertus primus; cui successit Comes Gilbertus secundus

ejus filius, qui gavifus est comitatibus Orchadie et Cathnes in Scocia . Qui quidem Gilbertus fecundus procreavit Magnum tertium et quandam filiam Matildam nomine . Iste Comes Magnus filius Gilberti secundi genuit Comitem Magnum quartum et quandam Johannem ; et ille Magnus Comes quartus ab hac luce abiit sine prole ; cui fuceffit Johannes ejus frater in antedictis comitatibus Orchadie et Cathnes . Johannes iste genuit quandam Magnum Comitem quintum . Cui Magno quinto jure fuceffionis lineariter fuceffit dominus Malifius comes de Stratherne in Scocia tanquam heres legitimus jure hereditario ad utroſque comitatus Orchadie et Cathnes ſicut clariffime manifeſtant munimenta evidencie et carte utrorumque regnorum Scocie et Norwegie confirmacionis deſuper confeſte . Qui quidem Comes Malifius revera primo deſponſavit filiam Comitis de Menteth in Scocia et ex ea genuit filiam Matildam nomine ; poſt cujus quidem prime uxoris obitum deſponſavit filiam quandam quondam Hugonis Comitis de Roſſ et ex ea procreavit quatuor filias et deceffit ſine mafculis : ſicque ejus dominia terre et poſſeſſiones fuerunt diſiſe inter illas . Filiam vero antiquiorem ex prima uxore procreatam Matildam ſcilicet duxit in uxorem Welandus de Ard, qui ex ea procreavit quandam filium Alexandrum de Ard ; qui Alexander jure regni Scocie et conſuetudine hereditarie fuceffit Comiti Malifio de Strathern in principali manerio ſive manſo ratione ſue matris Comitatus de Cathania et poſſidebat jure et appellacione Comitis et eadem ratione et eodem jure gavifus eſt certa perticata ſive quantitate terrarum Orchadie et gerebat ſe pro ballivo et capitaneo gentis Orcadie, Norwegie Regis ex parte : idemque Alexander de Ard tempore ſuo vendidit et alienavit quondam recolende memorie domino Roberto Stewart primo Scotorum Regi dictum Comitatum de Cathnes manſum ſive manerium principale et omnia alia jura ſpectantia ſeu concernentia ad ſe ratione matris ejus tanquam ad antiquiorem ſorem jure et conſuetudine regni Scocie, cum denominatione comitatus ſive Comitis . Iſte vero Alexander finaliter deceffit ſine herede de ſuo corpore quocunque legitimo procreato . NUNC vero

vertamus filium ad quatuor filias ex secunda uxore procreatas; quarum una desponsata erat cum domino Willelmo de Sancto Claro Domino le Synclare; qui dominus Willelmus ex ea genuit dominum Henricum de Sancto Claro; qui dominus Henricus desponsavit Jonetam filiam domini Walteri de Haliburtoun domini de Dirletoun et ex ea procreavit dominum Henricum de Sancto Claro secundum, qui ultimo decessit comes Orcadie indubitatus; qui in uxorem habuit venerabilem dominam dominam Egidiam filiam filie antedicti quondam domini Roberti Scotorum Regis illustris filiamque quondam strenuissimi domini Wilelmi de Douglas domini de Nydyfdale, et ex ea procreavit presentem dominum Wilelmum de Sancto Claro Comitem Orcadie Dominum le Synclare. Quedam alia filia secunde uxoris desponsata fuit cum quodam milite denominato Here Ginfill de Swethrik partibus oriundo; qui vero miles in Orcadie partibus venit et jure ac ratione sue uxoris gavifus est quadam parte terrarum Orchadie; que quidem uxor ab hac luce sine herede migravit legitimo ex suo corpore procreato. Tertia vero filia secunde uxoris fuit nupta cum quodam Gothredo nomine Gothormo le Spere; qui ex ea procreavit quendam filium dominum Walfinum le Spere militem, qui tandem decessit sine herede legitimo de suo corpore genito. Similiter et quarta filia decessit sine herede ex suo corpore legitime procreato. Verum iste dominus Henricus, primus Dominus le Sinclare, ejus matre, Alexandro de Ard et domino Malefio Spere adhuc viventibus, ad dominum nostrum supremum regem Norwegie adivit Hacon nomine, cum quo rege certas iniit pactiones conditiones et appunctuamenta per quasque reversus est ad Orchadie partes illisque gavifus est usque ad extremum vite sue, comisque Orcadie obiit et pro defensione patrie inibi crudeliter ab inimicis peremptus est. Et post decessum istius Henrici comitis primi in Orcadie partibus, supervenit dicti Comitis Henrici primi mater, filia domini Malefii Comitis prenominati, et ibi fixe remansit usque post obitum filii ejus Henrici Comitis primi; et supervixerat post obitum omnium fororum suarum, filiorum filiarumque suorum; sic quod ipse antedicti

quondam Comitis Henrici primi mater successit omnibus fororibus ejus eorundemque filiis et filiabus tanquam unica et legitima heres comitatus Orcadie et terrarum de Cathnes, sibi tanquam uni forori debitarum; parte dumtaxat et porcione exceptis fororis sue antiquioris de terris de Cathnes sub denominatione et appellacione comitatus sive Comitis; quam partem ut superius dictum est alienavit ac vendidit ipse quondam Alexander de Ardrugi Scocie prenominato. Hujusque rei testes sunt adhuc viventes fidedigni qui ipsam matrem Henrici primi oculis viderunt labilque sunt locuti cum ea communicantes ad plenum. Cui successit ejus nepos Henricus secundus filius primi Henrici; cui Henrico secundo successit prefens et superstes dominus Willelmus Comes modernus Dominus le Sinclair

Patric Maxtounis tack of the merk land of Donydowis. *Orig. at Abercairney.*

39 **B**e it kend to al men be thir present letteris ws Alexander be the permiffioun of God Archbisshop of Athenis postulat of the iles and commendatar of the Abbayis of Inchaiffray and Icolmkil wyth avyse and consent of the priour and convent of our said Abbay of Inchaiffray cheptourlie gathered the vtilite and proffet of our said abbay rypelie consyderit and afoir sein and for certaine otheris causis and consyderatiounis moving ws To have set and for mail lattin and be thir presentis settis and for mail lattis to our louittis Patric Maxtoun and Helene Lambe his spouse and to the langest levand of thame tua thair airis and assignais ane or ma of na liear degre al and hail that our merk land of Donydowis wyth the pertinentis lyand besyd the Kyrk of Foulis wythin the Schirrefdome of Perth now occupeit be Johne Scot wyth toftis croftis housis and biggingis mwriss mossis commune pasture fre ische and entre wyth al and syndry vtheris commoditeis aisimentis and profettis pertening or may pertene tharto sielyk as the said Johne occupeis at

the dait of this present. The entres of the saidis Patrik and Helene in and to the said merk land to be and begin at the fest of Whitsonday last by past and thairefter till indure vnto the compleit end of nynetene yeris next and immediatelie following but ony reuocation stop or impediment or agane calling quhatsumevir. Payand tharfor yeirlye the saidis Patric and Helene his spouse the langer levand of thame thair airis and assignais to ws and our succeffouris abbotis and commendataris of Inchaffray the sowme of xiiij ſ iiiij d vsual money of this realme at tua termes in the yeir Witson-day and Martinmes in winter be equal portiounis alanerlie. And we forsuith Abbot commendatar and convent foirsaid this said afledatioun of nynetein yeris to the saidis Patrik Maxtoun and Helene Lambe his spous the langar levand off tham thair airis and assignais sal warand acquiet and defend aganis al dedelie as law wil. In witnes of the quhilk thing to this present lettre of nynetein yeris tak subseriuit be ws the said commendatar and convent of Inchaffray the comone Scale of our said Abbay is to hungin at Inceaffray the tent day of Junij the year of God j^m v^e fiftie four yeris.

Prowyding that we be payit of harrage carrage and dewf vsit and wont with kayn follis conforme to the rentall.

Alexander Commendator

John Maneris Prior

James Gardinar

James Rannaldson

Thomas Gardiner

Robert Car

William Ruthven

Den Patrik Murray

Andrew Farmour

Paul Cunyngham

Alexander Murray

William Melrose

George Spens

Alexander Vith.

REGISTRUM
ABBACIE B. MARIE VIRGINIS
ET S. JOHANNIS EVANGELISTE
DE INSULA MISSARUM

REGISTRUM

ABBACIE DE INSULA MISSARUM.

Carta Gilberti Comitis de Stratherÿn .

1 **I**n nomine domini nostri Iesu Christi qui coequalis et coeternus est Deo Patri et Spiritui Sancto Ego Gilbertus filius Ferthet Dei indulgentia comes de Stratherÿn et ego Matildis filia Willelmi de Anbegni comitissa inspirante gratia divina volentes in feodo nostro et patrimonio ecclesiam Dei exaltare et ad Dei cultum sancte religionis ibidem plantaria inferere . afficientibus devotioni nostre venerabilibus Episcopis nostris Johanne Dunkeldensi et Jonatha Dunblanensi liberisque nostris militibus et thanis concedentibus . damus concedimus et tradimus Incheafferen quod latine dicitur Insula missarum domino nostro Iesu Christo et beate Marie genetrici ejus sanctoque Johanni apostolo liberam solutam et quietam ab omni exactione servicio consuetudine et subjectione seculari ea voluntate

et intentione qua aliquis locus in toto regno Scottorum liberius solutius quicquid et honorificentius divino cultui et sancte religioni deputatur . eamque cum omnibus possessionibus quas hactenus ei per nos sive per alios fideles divina largitas contulit vel amodo collatura est custodie et dispensationi domini Malicii p . . . et eremite committimus de ipsius discretione et religione plurimum confidentes . Unde volumus ut idem Malicius libera vtatur facultate quoscunque voluerit secum aggregandi et eos secundum regulam sancti Augustini eo quem potius statuerit modo ad Dei seruitium informandi . Post decessum vero illius ex parte Dei prohibemus ne aliquis omnino per cupiditatem congregationi illius loci se proponat nisi quem fratrum concors electio per assensum nostrum sibi preposuerit nec aliquis siue episcopus sit siue heres noster presumat inibi aliquem contra meram fratrum voluntatem intrudere . locum cum eundem ita dilectum habemus quod in eo nobis et successoribus nostris sepulturam eligimus et jam primogenitum nostrum ibidem sepellimus . Deo igitur et sancte Marie semper Virgini et sancto Johanni apostolo eiusdem procuratori et prefato Malisio et omnibus in predicta insula Deo seruientibus et seruituris ecclesias et possessiones subscriptas damus et concedimus et presentis scripti munimine per impressionem sigilli nostri confirmamus . ecclesiam sancti Kattani de Abbyrruothueuen . ecclesiam sancti Ethirvani de Waddyryn . ecclesiam sancti Patricii de Strathketh . ecclesiam sancti Wecheffick de Eochterardouar . ecclesiam sancti Beani de Kynkell . decimam omnium canorum nostrorum et reddituum nostrorum in frumento farina brasio grano cassis et omnibus cibariis que annuatim expenduntur in curia nostra . et decimam totius piscis que ad quinquam nostram defertur . et decimam venationis nostre et decimam omnium lucrorum que perveniant de placitis nostris et de obventionibus omnimodis . licentiam quoque piscandi in . . . serin quando et quoquo voluerint . et capiendi in nemoribus nostris ubicunque sibi magis opportunum fuerit materiem ad edificationem domorum suarum et utensilium et ad pastum ignis . et tres acras terre illius que proxima est insule versus aquilonem quas dedimus

ad dedicationem capelle ipsius . Hec igitur omnia cum omnibus ad ea pertinentibus volumus ut prefatus *Walisius* et univ^{er}si cum eo vel post eum in prefata insula Deo servientes et servituri in pace Dei et domini regis et nostra teneant et possideant de nobis et heredibus nostris in puram et perpetuam elemosinam pro salute nostra et liberorum nostrorum et omnium amicorum nostrorum et pro animabus omnium antecessorum nostrorum et precipue pro anima *Gilerist* primogeniti nostri ibidem quiescentis . ita libere quiete plenarie et honorifice sicut aliqua domus religionis in toto regno Scottorum suas possessiones liberius quicquid plenarius et honorificentius tenet et possidet . Omnibus vero nostris ex parte Dei et nostra firmiter prohibemus ne quisquam eorum eidem loco vel ejus ministris sive etiam pro pace querenda ad eum confugientibus aliquid molestie vel injurie inferat super nostram plenariam forisfacturam . quicumque vero amicorum vel fidelium hominum nostrorum eidem loco aliqua de suis facultatibus caritative contulerit conferat ei dominus bona in terra viventium . Facta est hec confirmatio anno ab incarnatione Domini millesimo ccc^{mo} indictione tertia anno regni regis *Willelmi xxxv^o* . ab obitu prenominati filii nostri *Gilerist* anno secundo . obiit autem tertio nonas Octobris . Hujus autem donationis et confirmationis sunt testes hij . *Rogerus* Episcopus sancti Andree . *Johannes* Episcopus Dunkeldensis . *Jonathas* Episcopus Dunblaneusis . *Henricus* Abbas de Abbyrbrothok . *Reimbaldus* Abbas de Scona . *Robertus* Abbas de Dunfermlyn . *Robertus* de Quiney . *Scierus* de Quiney . *Walisius* frater comitis . *Willelmus* . *Ferthead* . *Robertus* . filii comitis . *Gillines* dapifer . *Walisius* filius ejus . *Constantinus* judex . *Dunecanus* filius *Walicij* . *Anecholtheinus* de Duuine . *Gilerist* . *Gull^o* . *Nigellus* de Dolpatrick . *Triframmus* . *Constantinus* pincerna . *Henricus* Rennarius .

Carta Regis Willelmi super terris de Waddyryn .

2 **W**illelmus Dei gratia [Rex] Scottorum episcopis abbatibus comitibus baronibus iusticiariis vicecomitibus prepositis ministris que omnibus probis hominibus totius terre sue clericis et laicis salutem . Sciant presentes et futuri me dedisse concessisse et hac presenti carta mea confirmasse comiti Gilberto de Stratheryn Waddyryn per rectas diuisas suas et cum omnibus iustis pertinentiis in bosco et plano in terris et aquis in pratis et pascuis in moris et mareis in molendinis et stagnis et omnibus aliis iustis pertinentiis suis cum facca et focca cum tholl et theame et infangandtheffe . Tenendam sibi et heredibus suis de me et heredibus meis in feodo et hereditate libere et quiete plenarie et honorifice per seruitium vnus militis ita etiam quod nec ipse nec heredes sui aliquo tempore vendeant de terra Gillecorme Warescallo aut heredibus suis aut alieni de parentela sua siquando querelam inde erga eos mouere voluerint quoniam predictus Gillecorm pro feloniam quam erga me fecit terram prenominatam amisit sicut ille qui in feloniam reddidit castellum meum de Heryn et postea sicut iniquus et proditor iuit ad inimicos meos mortales et cum eis stetit contra me ad forissaciendum pro posse suo . Testibus comite David fratre meo . Ricardo de Moruile constabulario . Philippo de Valoniis . Alano dapifero . Waltero Olifard . Willelmo de Lyndefay . Waltero Corbet . Willelmo Cumyn . Ranulfo de Sules . Swano filio Thore . Willelmo filio Thore . apud Lillidqw .

carta regis Willi super terris de Maddyrym
Willmo de grā Scottorū ep̄s Abbatib; comitib; baronib;
Justiciariis vicariis; p̄p̄tis missisq; oib; p̄bis lib;
totius Ec̄e sue clerici; laici; salutem Sciunt p̄ntes 2
futuri me dēdisse concessisse 2 hac p̄nti carta mea cōfir-
masse comiti Willerto de Skatkeym in adyryn p̄ rectas
divisas suas 2 cū oib; iustis p̄tinentiis in bosco 2 plano
in terris 2 aquis in pratis 2 piscariis in portis 2 mar-
resnis in molendis et stagnis 2 oib; aliis iustis p̄tinentiis
suis cū sacca 2 socca cū theoll 2 theame 2 in fungand
theofe tenendū sibi 2 heredib; suis de me 2 heredib; meis in
feodo et hereditate libere et quiete plenarie 2 honorifice
2 sanctū unius nullū ita etiā q̄ nec ip̄e nec h̄d̄s sui
aliquo tēpe viderant de t̄ra Willcolme p̄arescalli aut
heredib; suis aut alicunde p̄terita sua siquid q̄rela
inde erga eos mouere uoluerint Qm̄ p̄dictus Willcolme
pro felonia quem erga me fecit t̄ra p̄ncipiat amisit
sicut ille qui in felonia reddidit castellū meū de herjyn
et p̄stet sicut inquis 2 proditor fuit ad inimicos meos
mortales 2 cū eis stetit contra me ad sufficiendū
pro posse suo Testi cōtre d̄d̄ fr̄m meo Ric̄ de mozmle
Constā philyp de valen̄ Alano dap̄iso Willmo olif
Willmo de h̄m̄d̄saj Willmo Corb Willmo Cumyn Ham̄de
sūt filio Willmo filio Thore Willmo filio Thore apud lillidys

Carta terrarum videlicet de Achlour • Ardennÿ • Ardbany • Duffindir • Balfoyer • Balgillien • tribus acris proximis marefio de Foulis • Ruchalach • Item de ecclesiis de Strogeth • Dunÿn • Abrothuen • Oncltirhardore • Kynkell • Fowlis • Wadirdÿ • Woyheuard • Kyllbryde •

3 Univerſis ſancte matris eccleſie filiis et fidelibus Gilbertus comes de Stratheryn ſalutem • Noverit vniverſitas veſtra me quandam domum fundaffe in honorem Dei et ſancte Marie et ſancti Johannis apoſtoli et ewangelifte in terra mea apud Inchafferen ibique canonicos regulares poſuiſſe • ad cuius domus fundationem et canonicorum ſuſtentationem ſciatis me dediſſe et conceſſiſſe et hac carta mea confirmaſſe canonicis ibidem Deo ſervientibus et ſervituris Achadlunrech et Ardewin et Ardbany et Doſſyndre et Balfur et Bahnakgillone et tres acras terre illius que proxima eſt marifeo de Fowlis verſus aquilonem et villam que dicitur Ruchalach quam dedi eis pro decimis lucrorum meorum que proveniant michi et heredibus meis de placitis et querelis de comitatu meo • de lucris autem que mihi et heredibus meis aliunde veniant eis decimas plenarie perſolnemus • et tantum de marefio de Fowlis adjacente prenominate inſule quantum vallatum eſt ab eis ſoſſato anno ab incarnatione Domini m^o cc^o xix^o • et vnum molendinum ſuper Heryn apud Dunfallÿn quod firmaverunt juxta molendinum meum cum omni aſſiamento quod firmatum eſt anno ab incarnatione Domini m^o cc^o xix^o • Hee autem omnia volo ut prefati canonici habeant teneant et poſſideant in puram et perpetuam clinoſinam in boſco et plano in terris et aquis in pratis et paſcuis in moris et marreſiis in ſtagnis et molendinis in piſcariis per omnes rectas ſuas diuiſas cum omnibus juſtis pertinentiis ſuis ita libere et quiete plenarie et honorifice ſicut aliqua elemoſina in toto regno Scotie ab aliquo comite vel barone liberius quietius plenarius et honorificentius tenetur et poſſidetur • Ego vero heredes mei totum forinſecum ſervitium domini Regis quod ad pre-

nominatas terras pertinet in perpetuum acquietabimus . Preter hec autem adjecti ad honorem Dei et promotionem loci et prefatorum canonicorum sustentationem ecclesiam sancti Patricii de Strogeth . ecclesiam sancti Seruani de Dunnyne . ecclesiam sancti Cattani de Abbyrothuyn . ecclesiam sancti Mokheffok de Ouchtirardor . ecclesiam sancti Beani de Kynkell . ecclesiam sancti Beani de Fowlis . ecclesiam sancti Iphernani de Waddyryný . ecclesiam sancti Seruani de Moydenard . ecclesiam sancte Brigide de Kylbryde . Tendendas sibi et successoribus suis cum terris et pasturis et herbagiis et omnibus aliis iustis pertinentiis suis et assumentis in puram et perpetuam elemosynam ita libere et quiete plenarie et honorifice sicut aliqui religiosi aliquas ecclesias in toto regno Scotie liberius quietius plenarius et honorificentius tenent et possident ex dono alicujus comitis vel baronis . His testibus Abbraam Dunblanenfi Episcopo . Willelmo Abbate de Scona . Gilberto Archidiacono de Stratheryn . Roberto . Fergusio . Walfio . Gilberto filiis meis . Walfio senescallo meo . Bricio persona de Cresse . Donecano et Gillethoma filiis Walfii . Donecano filio Brani . Gilerist filio judicis de Stratheryn . Henrico Renario meo . Treftram filio Treftram . Constantino dapifero . Thebaldo dispensario meo et multis aliis .

De libertate proprie curie canonicorum .

- 4 **G**ilbertus filius Ferteth comes de Stratheryn omnibus amicis suis et hominibus has literas visuris vel audituris salutem . Sciatis quod dedi et concessi Deo et sancto Johanni de Inchafyrn et Priori et canonicis ibidem Deo fervientibus et servituris hanc libertatem in puram et perpetuam elemosinam ut cum aliqua querela que ad curiam meam debet spectare mota fuerit super aliquem hominem manentem in terris eorum non trahatur de terris eorum ad respondendum alibi sed teneant libere placita sua prefatus Prior et canonici in terra sua ubicunque voluerint et per quoscunque eis placuerit .

precor etiam amicos meos et hominibus et balliuis meis senefcallo et Judici meo precipio quatinus cum necesse fuerit et requisiti fuerint a prefato Priore et canonicis omni occasione et dilatione remota in fidelitate quam mihi debent veniant ad prefatos priorem et canonicos et teneant placita canonicorum ubi canonicis placuerit sicut mea propria ita ut prefati prior et canonici habeant omnia forisfacta et omnia que ad curiam meam pertinent salva mihi et heredibus meis iusticia corporum . Do etiam eisdem licentiam capiendi uamos de firmariis meis pro decima que eis contingit de dono decime mee si forte ad terminos statutos non persoluerint . Precipio etiam firmiter super forisfactum meum seruientibus meis ne quis eorum infra terras prefati prioris et canonicorum violentiam vel disturbancem aliquam faciant nec aliquid exigant nisi per eorum voluntatem et licentiam . Et vt hec libertas et concessio mea a me et heredibus meis rate et inconcussa habeantur in perpetuum prefens scriptum sigilli mei appensione roborari Hiis testibus domino Willelmo Abbate de Scona Roberto Priore ejusdem loci Johanne et Ricardo et Eungi capellanis meis Walfio Senefcallo meo Willelmo clerico meo Henrico filio Tristram et multis aliis .

Libertas piscandi et aucupandi per omnes terras aquas et lacus . item de decimis secundis et libertas amputandi per omnia nemora ubi quando et quantum voluerint ad omnes usus . item de terris non dandis nisi saluis juri-bus et rectitudinibus istius Monasterij .

5 **G**ilbertus comes de Stratheryn omnibus sancte matris ecclesie filiis hoc scriptum visuris vel audituris salutem Nouerit vniuersitas vestra me dedisse et concessisse et hac carta mea confirmasse deo et beate Marie et beato Johanni apostolo et canonicis de Inchaffryn in puram et perpetuam elimosinam de me et heredibus meis decimam omnium firmarum nostrarum et canorum nostrorum in frumento farina brasio grano cassis carnibus

animalibus . et decimam totius venationis nostre et omnium que nobis in volueribus aut piscibus alieniusmodi cibo vel potu prouenerint . victum etiam feruienti suo quemcunque ipsi posuerint in curias nostras ad exigendum et percipiendum ex parte eorum predictas decimas nostras plenarie et honorifice sicut uni feruencium nostrorum . licentiam quoque et libertatem piscandi et aucupandi per omnes terras et aquas et lacus nostros ubi quando voluerint . et materiem ad edificia sua et ad omnes alios vsus suos et pascuagium et cortices et ligna ad pastum ignis in siluis nostris ubi voluerint et quantum sibi fuerit de hiis singulis necessarium . Hee igitur omnia volo quatenus predicti canonici teneant et possideant de me et heredibus meis in puram et perpetuam elemosinam ita libere et quiete plenarie et honorifice sicut aliqua elemosina in toto regno liberius quietius plenarius et honorificentius tenetur et possidetur . Preterea concessi eisdem canonicis et hac carta mea confirmando confirmari quatenus nec ego nec aliquis heredum meorum de cetero conferemus aliquo modo vel ad firmam committemus terram aliquam vel possessionem alicui nisi saluis eis de eadem terra vel possessione omnibus rectitudinibus que eis dum nostro erant dominio exinde debebantur vel dum nos exinde aliquid continebat . Quare si quis aliquam contra eos cartam monstrauerit ne jus suum vendicare vel exigere debeant eam quantum ad hoc testificor esse cassandam . facta est donatio anno gratie millesimo cc^{mo} Hiis testibus Johanne Episcopo Dunkeldensi . Jonatha Episcopo Dunblanensi . Rainbaldo Abbate de Seona . comitissa Matilda de Aubigny vxore mea . Walisio fratre meo . Willelmo et Ferteth filiis meis . domino W . canonico de Seona . Gillenes Senescallo meo . Constantino Iudice . Anecholthaino meo de Dunyn . et multis aliis .

De catallis fufpenforum .

6. **Gilbertus** comes de Stratheryn omnibus hominibus totius terre fue falutem Sciant prefentes et futuri me dediffe conceffiffe et hac carta mea confirmaffe pro dei amore et falute anime mee et uxoris mee et antecessorum et heredum meorum Deo et fancto Johanni Apoftolo et ewangelifte de Inchaffryn et canonicis ibidem Deo et fancto Johanni feruientibus et feruituris hanc libertatem quod fi aliquis hominum fuorum de territorio quod ego in liberam elimofinam eis dedi retatus fuerit in euria mea de furto fue de alia aliqua querela que ad curiam meam pertinet et fi de illa reta iudicio damnatus fuerit . folo mihi et heredibus meis corpore relicto ad conferuandam iufticiam curie noftre . omnia catalla fua remanebunt fancto Johanni et canonicis . Et fi forte aliquis hominum fuorum de aliqua reta per pecuniam meeum vel eum heredibus meis finem fecerit omnis illa finalis pecunia predictis canonicis remanebit . Hanc quidem libertatem Deo et fancto Johanni et predictis canonicis de me et heredibus meis perpetuum habendam prefenti fcripto confirmaui . Hiis testibus Walfio fratre comitis . Wafilda comitiffa . Jonatha Epifcopo Johanne Archidiacono . Abbraam capellano comitis . Conftantino Iudice . Gillenauem dapifero Walfio filio ejus . Willelmo Ferteth Roberto Fergutio Walfio Gilchrit filiis meis et multis aliis .

De decima de Ouchtirardore .

- 7 **Alexander** Dei gratia Rex Scottorum omnibus probis hominibus totius terre fue clericis et layeis falutem Sciatis prefentes et futuri nos dediffe et conceffiffe et hac carta nofta confirmaffe Deo et ecclefie fancti Johannis apoftoli et ewangelifte de Inchaffryn et canonicis ibidem Deo feruientibus

et in perpetuum seruituris totam decimam redditus nostri de Ouchtirardouer Tenendam eisdem canonicis in liberam puram et perpetuam elemosinam percipiendam singulis annis per manus firmariorum et balliuorum nostrorum de Ouchtirardore . Testibus Thoma de Streuyllyn cancellario . Henrico de Bayllol camerario . Roberto capellano . Waltero Cumyn . Johanne de Haye . Willicmo de Montfichet . Willielmo de Brun . Waltero Byfett . Adnd Cluny tertio decimo die Augusti Anno regni nostri vndecimo .

De Warelio .

8 Vniuersis sancte matris ecclesie filiis et fidelibus presens scriptum visuris vel audituris Gilbertus comes de Stratheryn eternam in Domino salutem . Nouerit vniuersitas vestra me dedisse et concessisse et hac carta mea confirmasse Deo et Sancte Marie et beato Johanni de Inchaffryn et canonicis ibidem Deo seruiantibus et seruituris tantum carresie adjacentis prenominate insule in cyro de Fowlis quantum vallatum erat fossa eodem anno quo hec carta composita fuit scilicet anno ab incarnatione domini millesimo ccc^{mo} . x^o viij^o . Tenendum sibi et successoribus suis de me et heredibus meis in puram et perpetuam elemosinam libere quiete plenarie et honorifice ab omni seculari seruitio et exactione . Testibus hiis Abbraam Dunblanensi episcopo . Roberto Fergusio Walsio Gilberto filijs meis . Walsio senescallo meo . Bricio persona de Cref . Duncano filio Walsij . Henrico Rennario meo . Willielmo clerico meo . Trifram filio Trifram et multis aliis .

De libertate tollenei .

9 **A**lexander Dei gratia Rex Scottorum omnibus probis hominibus totius terre sue salutem Sciatis me concessisse canonicis de Inchaffryn vt quieti sint per totam terram meam de Tholleneo et consuetudine de hiis que ement ad usus eorum proprios . Quare prohibeo firmiter ne quis eos iniuste vexare presumat exigendo de eis tollenum vel consuetudinem aliquam de hiis que ement ad usus eorum proprios super meam defencionem . Testibus Willelmo de Bofcho cancellario meo . comite Waleolmo de ffyff . apud Strenyllly decimo die Martii .

Carta de una celdra farine de Ouchtirmaehan .

10 **O**mnibus hoc scriptum visuris vel audituris Fergusius filius Gilberti quondam comitis de Stratheryn salutem in Domino . Nouerit vniuersitas vestra me dedisse concessisse et hac presenti carta mea confirmasse de me et heredibus meis Deo et sancto Johanni Apostolo et Euangeliste de Insula missarum et Abbati et canonicis ibidem Deo seruientibus et seruituris in perpetuum unam celdram farine auene in villa de Ouchtirmakan tibi et successoribus tuis in perpetuum de me et heredibus meis per manus firmarii mei ejusdem ville annuatim percipiendam pro salute anime mee amicorum et antecessorum meorum . et ad securitatem solutionis dicte farine dictis abbati et Canonicis ad festum sancti Johannis Baptiste in estate sine aliqua canelatione annuatim faciendam me et heredes meos oblige imperpetuum . In hujus rei testimonium sigillum meum vna cum sigillo venerabilis patris . C . Dunblanensis Episcopi et domini W . comitis de Stratheryn huic scripto apponi procuravi . Hiis testibus C . dei gratia Episcopo dunblanensi . W . Comite de Stratheryn

magistro L · decano Dunblanenſi · Bricio de Dunſyn · Thoma clerico meo ·
 Walſio nepote meo et aliis ·

Confirmatio Willelmi Regis ſuper terris Auchlunxi · Ardewny · Duffin-
 dir · et Ardbanin et Balleful ·

- 11 **W**illelmus Dei gratia Rex Scottorum omnibus probis hominibus totius terre ſue clericis et laicis ſalutem Sciant preſentes et futuri me conceſſiſſe et hac carta mea confirmari Deo et eccleſie ſancti Johannis Euangeliste de Inchaffryn et canonicis ibidem Deo ſeruientibus et ſeruituris donationem illam quam comes Gilbertus de Stratheryn eis fecit de Auchlunxi et de Ardewnſy et Drumfindſy et Ardbany · et Balleful · Tenendam in liberam et puram et perpetuam elemoſinam per rectas diuiſas ſuas et cum omnibus juſtis pertinentiis ſuis ita libere quiete plenarie et honorifice ſicut carta predicti comitis Gilberti de Stratheryn juſte teſtatur ſaluo ſeruicio noſtro · Teſtibus Willelmo Epifcopo Sancti Andree · Hugone de Mortymare priore de Waii · comite Walcolmo de ffyff · Philippo de Valoniis Camerario · Willelmo Cumin · Walico filio comitis Ferteth · Waltero Olyfard · Willelmo de Valoniis · Alexandro vicecomite de Streuyllyn · Willelmo Giffard · Philipo de Lundin apud Streuyllyn xx^o die Julii ·

Confirmatio Roberti comitis ſuper donatione R · de Mekfen de toftis et quatuor acris in Dolpatryk ·

- 12 **R**obertus comes de Stratheryn omnibus probis hominibus totius terre ſue tam clericis quam laicis ſalutem · Sciant preſentes et futuri me conceſſiſſe et hac carta mea confirmari Deo et beate Marie et beato Johanni Apoſtolo

et Euangeliste de Infula Wiffarum et Abbati et Conuentui ejusdem loci in puram et perpetuam elemosinam duo tosta et quatuor acras terre et pasturam viginti vaccarum et sexaginta ouium et duorum equorum que dominus Robertus de Wekfen per assensum domine Soline vxoris sue et liberorum suorum eis dedit in villa de Kenaydhem que alio nomine dicitur Dolpatrik cum omnibus aliis communibus assiamendis ejusdem ville Tenendas sibi et possidendas imperpetuum ita libere et quiete plenarie et honorifice sicut idem dominus Robertus eis eadem carta sua inde facta confirmat salvo toto forinsfeco seruicio quod tam ipse dominus Robertus quam heredes sui pro prefatis Abbate et conuentu in perpetuum adquietabunt sicut ipse in predicta carta sua testatur . Hiis testibus . domino R . filio Lugan milite meo . B . de dunin fenescallo meo . domino R . capellano . H . filio Trifram rennario meo . G . de corauia . Trifram de Gortý et multis aliis .

Carta Gilberti comitis de terris canonicorum .

- 13 **G**ilbertus comes de Stratherýn omnibus amicis et hominibus suis clericis et laicis salutem Sciant presentes et futuri me pietatis intuitu et pro salute anime mee et wátildis comitisse de Stratheryn vxoris et patris mei et matris mee et heredum meorum dedisse et concessisse et hac carta mea confirmasse Deo et ecclesie sancti Johannis Apostoli et Euangeliste de Inchaffren et canonicis ibidem deo seruientibus et seruitoris totam terram de Ardewný per rectas diuisiones suas et cum omnibus iustis pertinentiis suis et totam terram de Achlonxi per rectas diuisiones suas et cum omnibus iustis pertinentiis suis et totam terram de Duffindir per rectas diuisiones suas et cum omnibus iustis pertinentiis et totam terram illam de Waddyryn que antiquitus Abbacia vocabatur per rectas diuisiones suas et cum omnibus iustis pertinentiis suis Tenendas in liberam puram et perpetuam elemosinam in

bofeo et plano in terris et aquis in pratis et pascuis in cœoris et cœarefiis in petariis et vinariis in stagnis et molendinis et omnibus aliis iustis pertinentiis suis et cum omnibus aliis asimentis ad predictas terras iuste pertinentibus libere et quiete plenarie et honorifice ab omni auxilio et seruicio et consuetudine et seculari exactione . Quare volo vt predicti canonici predictas terras per rectas diuifas suas et cum omnibus iustis pertinentiis suis ita libere et quiete plenarie et honorifice in liberam et quietam et puram et perpetuam elimosinam habeant et possideant sicut aliqua elemosina in regno Scotie de aliquo comite liberius et quietius plenarius et honorificentius tenetur et possidetur . Hiis testibus Jonatha Episcopo dunblanenfi . W . comitissa de Stratheryn . Walfio fratre comitis . fleteth filio comitis . Wotilda filia comitis . Johanne Archidiacono . Abraam capellano comitis . Gilyhenanof dapifero comitis . Walfio filio suo . Gilberto focio comitis . Constantino Iudice . Gillibreth . Anecol de Dunyn . Duncano filio Walfii .

Carta . xx . marcarum de dunnyne .

- 14 **O**mnibus hoc scriptum visuris vel audituris Walecius comes de Stratheryn salutem in Domino sempiternam Noueritis nos dedisse concessisse et hac presenti carta nostra confirmasse Deo et monasterio sancti Johannis Apostoli et Euangeliste de Insula Wistlarum et canonicis ibidem Deo seruientibus et in perpetuum seruituris in liberam puram et perpetuam elimosinam pro refiguratione et quita clamatione quas ipsi religiosi nobis et heredibus nostris imperpetuum fecerunt pro se et successoribus suis de jure quod eis competeat vel competere poterit in futurum in augmentum et incrementum secundarum decimarum nostrarum ab anno domini millesimo cc^{mo} quadragesimo septimo in posterum viginti marcas annuas de thanagio de Dunnyne et Peticarne per manus illorum qui pro tempore dictas terras tenuerint ad tres anni terminos in perpetuum percipiendas videlicet ad festum pentecostis

tres marcas de Dunyn et quinque marcas de Petearn et ad festum sancti Petri quod dicitur ad vincula proximum sequens quatuor marcas de thanagio de Dunyne que nobis pro ferebris dari consueverunt et ad festum sancti Martini in yeme tres marcas de Dunyne et quinque marcas de Petkarn preter viginti marcas quas predicti viri religiosi prius optinuerunt de Dunyn ex dono Malisi quondam bone memorie patris nostri Tenendas et habendas predictas viginti marcas annuas in predictis locis percipiendas ut predictum est de nobis et heredibus nostris seu assignatis sibi et successoribus suis bene in pace ita libere quiete plenarie et honorifice sicut aliquis redditus ab aliquo comite vel barone in regno Scotie aliquibus viris religiosis liberius quietius plenius et honorificentius in liberam puram et perpetuam elemosinam dari poterit et ab ipsis teneri et possideri . Ceteris etiam articulis et donationibus omnibus et singulis aliis in cartis bone memorie Gilberti proavi nostri et Malicij patris nostri quondam comitum de Stratheryn contentis augmenta et incrementa non tangentibus suo robore duraturis . Nos vero et heredes nostri et assignati predictas viginti marcas prefato monasterio et canonicis predictis sicut predictum est contra omnes homines et feminas warrantizabimus acquietabimus et imperpetuum defendemus . Et ut hec nostra donatio concessio et presentis carte nostre confirmatio perpetue firmitatis robor optineant prefens scriptum sigilli nostri munimine roborauimus . Hiis testibus venerabili patre domino Roberto dei gratia episcopo Dunblanenfi . magistro Thoma eiusdem loci decano . magistro Angustino Dunblanenfi archidiacono . domino Beda rectore ecclesie de Wythe . domino Patricio de Grame . domino Johanne de Strenyllyn . domino Wilhelmo de Moravia filio domini Malcolmi de Moravia coheritibus . et multis aliis .

Confirmatio Regis Alexandri .

- 15 Alexander dei gratia Rex Scottorum omnibus probis hominibus totius terre sue clericeis et laicis salutem . Seiant presentes et futuri me concessisse et hac carta mea confirmasse Deo et sancte Marie et ecclesie sancti Johannis apostoli et euangeliste apud Incheafryn et canonicis ibidem Deo seruientibus et seruienturis dona que comes Gilbertus de Stratheryn fundator ipsius ecclesie pia deuotione eis dedit scilicet Incheafryn Aehinluxieh et Ardewny et Ardbaný et Duffynder et Balfur et Balmakgillon et tres aeras terre illius que proxima est marefio de Fowlis versus aquilonem et villam que dicitur Ruhalaeh quam idem comes dedit eis pro decimis lucrorum suorum que prouenient ei et heredibus suis de placitis et querelis de comitatu suo . saluis eisdem canonicis decimis que predicto comiti et heredibus suis aliunde euenerint et de marefio de fowlis sicut continetur in carta ipsius comitis . et unum molendinum super Erýn apud Dunfallyn sicut similiter continetur in carta ipsius comitis . et preterea decimam omnium canorum et reddituum ipsius comitis in frumento farina grano brasio calis et omnibus cibariis que annuatim expendantur in curia ejus et decimam totius piscis que ad quoquinam ipsius defertur et decimam venationis sue licentiam quoque piscandi in Peffryn vbicunque voluerint et capiendi in nemoribus ipsius comitis vbi eis magis opportunum fuerit materiem ad edificationem domorum suarum et vtenecium et ad pastum ignis . concedo etiam et confirmo Deo et dictis canonicis ecclesiam sancti Patriei de Strogeth ecclesiam sancti Seruani de Dunyn ecclesiam sancti Kattani de Abruthfen ecclesiam sancti Wakkessani de Ouchtirardore ecclesiam sancti Beani de Kynkell ecclesiam sancti Beani de fowlis ecclesiam sancti Ethirvani de Waddirnyne ecclesiam sancti Seruani de Moyheuad ecclesiam sancti Brigide de Kylbryde . Quare volo ut predicta ecclesia et canonici ejusdem loci omnia prescripta teneant et possideant in puram et perpetuam elemosinam cum omnibus iustis perti-

nentiis suis ita libere et quiete plenarie et honorifice sicut carte ipsius comitis eis inde facte testantur salvo seruicio meo . Testibus Willelmo abbate de Seona . Willelmo de Bofcho cancellario meo . Waltero filio Alani fenecallo . Henrico de Bayleyhef . Waltero de Fontibus . Henrico de Strenyllŷn filio comitis David . Johanne de Haya . Waltero Cumin . Alexandro de Setona . Willelmo de Lyndefay filio Walteri de Lindefay . apud Seonam quinto die Januarij .

Confirmatio comitis Roberti .

16 **U**niversis sancte Matris ecclesie filiis hoc scriptum vistoris vel audituris
Robertus filius Gilberti comitis de Stratheryn eternam in domino salutem
Noverit vniuersitas vestra me fideliter promississe et meipsum obligasse erga
dompnum Innocentium abbatem et conuentum de Insula quissarum fide mea
interposita in manu dompni Abbrahe episcopi Dunblanensis coram viris fide-
dignis scilicet Gilberto archidiacono Dunblanensi et Cristino fratre ejus
Duncano filio Ade milite de flyff milisio senescallo de Stratheryn Bricio
persona de Cresse et Walisio filio ejus Wakbeth Iudice et multis aliis in
ecclesia de Strogeth quod nuncquam in tota vita mea prefatum abbatem
vel conuentum iniuste vexabo Immo ipsos tanquam amicos meos specialissimos
diligam et in omni loco honorabo et domum predictam saluis jure et honore
meo per consilium amicorum meorum quantum potero accrescam et eis
ecclesias de Gask et de Strogeth et omnes alias ecclesias terras possessiones
libertates rectitudines consuetudines assiamenta et decimas omnimodas et
cetera omnia que in cartis prenominati comitis domini et patris mei et
meis continentur sicut eodem carte testantur benigne concedens et hac
carta mea confirmans eis . hec omnia contra omnes homines warrantizabo et
eos quiete et pacifice ipsa possessione tenere faciam . Preterea si aliquid eis
latrocinium furtum injuria vel vexatio aliqua illata fuerit jus eorum tanquam

meum proprium et sicut patronus domus in omnibus profecuturus et injurias vindicaturus causam eorum manutenebo et injuriosos ad satisfaciendum eis secundum posse meum confringam et ab eis nullam pacem vel concordiam admittam nisi cum consilio ipsorum abbatis et conuentus et nisi saluis eorum plenario jure et honore . vt hec autem mea concessio et confirmatio rata et inconcussa permaneant prefens scriptum sigilli mei et sigillorum predicti domini Abbræ episcopi Dunblanenſis . et domini Hugonis episcopi Dunkel- denſis . et domini Hugonis Abbatis de sancto Seruano . et domini ffergusii fratris mei . qui hujus testes sunt appositione dignum duxi roborare .

De pace domini Regis et de natiuis fugitiuis reducendis .

- 17 **A**lexander dei gratia Rex Scottorum omnibus probis hominibus totius terre sue salutem Sciatis nos domum et abbatem et canonicos de Inchaſraý et homines et terras et possessiones eorum vniuerſas ſub firma pace et protectione noſtra juſte ſuſcepſiſſe . Quare prohibemus firmiter ne quis eis injuriam vel moleſtiam aut grauamen aliquod iniuſte inferre preſumat ſuper noſtram plenariam foriſſacturam . conceſſimus etiam predictis Abbati et canonicis ubicunque inuenire poterunt extra dominia noſtra natiuos et fugitiuos homines ſuos qui ſui de ratione eſſe debent eos juſte habeant et prohibemus firmiter ne quis eos eis iniuſte detinere preſumat ſuper noſtram plenariam foriſſacturam . Teſtibus Thoma de Strinillýn archidiacono Glaſgownſi . Henrico de Balliol camerario . apud Striuillýn . octauo die Junii anno regni noſtri vndecimo .

De crofto de Fowlis .

- 18 **G**ilbertus comes de Stratheryn omnibus hominibus fuis amicis clericis et laicis salutem Sciant tam prefentes quam futuri me dediffe et concessiffe et hac carta confirmaffe deo et fancto Johanni apostolo de Infula Wiffarum et fratribus ibidem deo feruientibus tria jugera terre propinquiora juxta stagnum quod venit de predicta infula apud Fowlis in perpetuum elemosinam libere et quiete sibi habenda ab omni penitus subjectione et ab omni feruili confuetudine et feculari feruicio . Quare volo et precipio quatinus predictus Sanctus et fratres in predicta infula deo ministrantes tria prenominata jugera adeo libere et quiete habeant et teneant ficut vlla elemosina in tota terra Scotie liberius et quietius tenetur et habetur . Hii funt testes . Simon episcopus Dunblanensis . Matildis comitiffa de Stratheryn . Gilbertus filius comitis Gilberti . Gillencuam dapifer comitis . Ricardus capellanus comitis . Johannes clericus comitis .

Carta Bricii de Ardrossane de . xvi . acris .

- 19 **O**mnibus Christi fidelibus has literas vifuris uel audituris Bricius de Ardrossane eternam in domino salutem Nouerit vniuerfitas vestra me pro salute anime mee et domini mei Walifii bone memorie quondam comitis de Stratheryn et antecessorum meorum et fuorum dediffe concessiffe et hac presenti carta confirmaffe in perpetuum deo et beate Marie et sancto Johanni apostolo et euangeliste et abbati et conuentui de Infula Wiffarum et eorum fucefforibus illas sexdecim acras terre citas juxta pontem abbathie ex parte orientali in campo qui vocatur Langflath cum fuis omnibus pertinentiis et ayslamentiis quas quidem sexdecim acras terre dictus dominus meus Walifius bone memorie quondam comes de Stratheryn mihi

et heredibus meis et assignatis et eorum heredibus in excambium pro terra de Cullath donauit et concessit quam quidem terram de Cullath dictus comes ex consensu meo deo et ecclesie de Dunblanen in perpetuum assignauit Tenendas et habendas sibi et suis successoribus de me et heredibus meis et assignatis in perpetuum in puram et perpetuam elemosinam libere pacifice et quiete ab omni exactione seculari et consuetudine et demanda . In cuius rei testimonium hiis literis sigillum meum apposui Hiis Testibus domino Roberto dei gratia episcopo Dunblanen . Magistro Ricardo Magistro Johanne de Logy ejusdem ecclesie canonicis . domino J decano . domino N . rectore ecclesie de Crese . Trofram de Gorty . Ach et Monach filiis Alpini . et Bricio dapifero . et multis aliis . Data apud Insulam Wiffarum anno gratie millesimo cc^{mo} septuagesimo primo die sancti Clementis pape et martiris .

Carta Tebaldi de vno tofto et duabus aeris terre in Petlandy .

- 20 Omnibus sancte matris ecclesie filiis prefens scriptum visuris vel audituris Tebaldus filius Willelmi filij Clementis salutem . Sciant presentes et futuri me diuine caritatis intuitu dedisse et concessisse et hac carta mea confirmasse deo et beate Marie et beato Johanni apostolo et euangeliste et abbati et conuentui de Insula Wiffarum in puram et perpetuam elemosinam vnumcroftum sex percartarum longitudinis et sex latitudinis cum duabus aeris terre in villa mea Petlandy videlicet in agro qui dicitur ficheris flat et cum comuni pastura octo vaccarum et sexaginta ouium et duorum equorum et cum omnibus aliis communibus alimentis predictae ville Tenendum sibi in perpetuum de me et heredibus meis libere quiete plenarie et honorifice . Ego vero et heredes mei hanc eandem elemosinam eis contra omnes homines warrantizabimus et liberam et quietam ab omni exactione et seruicio seculari faciemus . In hujus rei testimonium huic scripto sigillum meum apposui . vt autem hec mea donatio perpetuis rata temporibus permaneat ad hoc

assenſum ferenſſimi domini mei Roberti comitis de Stratheryn impetraui qui et in ſignum fui aſſenſus hanc meam donationem ad mee ſupplicationis instantiam ſigilli fui teſtimonio confirmauit Teſtibus domino Ferguſio filio comitis . domino Rogero de Luuetoft . domino Richardo milite . magiſtro O . perſona de cwyhe . Henrico Rennario . Wakbeth Wore . et multis aliis .

Confirmatio comitis Roberti de omnibus eccleſiis terris et poſſeſſionibus et decimis canonicorum .

21 **R**obertus comes de Stratheryn omnibus hoc ſcriptum viſuris vel audituris ſalutem . Sciant preſentes et futuri me conceſſiſſe et hac carta mea confirmari deo et beate Marie et beato Johanni apoſtolo de Inchafryn et canonicis ejusdem loci eorumque ſucceſſoribus Tenendas ſibi de me et heredibus meis in puram et perpetuam elemoſinam omnes eccleſias terras et poſſeſſiones libertates rectitudines conſuetudines aſſiamenta et decimas omnimodas in domo noſtra et in terris noſtris et cetera omnia que prenomi-natus comes dominus et pater meus eiſdem canonicis dedit et conceſſit et per cartas ſuas inde factas confirmauit ita libere quiete plenarie et honorifice et integre ſicut eiſdem cartis patris mei et meis continetur . Preterea concedo predictis canonicis et eis perpetuo de me et heredibus meis inconceſſe Tenendum preſenti carta confirmo quatenus nullus noſtrum det vel aliquo modo conferat alicui terram vel quidquam aliud niſi falſis elemoſinis rectitudinibus ad ipſos canonicos de jure pertinentibus . Hiis Teſtibus Abraam Epifcopo Dunblanenſi . Gilberto archidiacono de Stratheryn . Ferguſio Walfio Gilberto fratribus meis . Bricio perſona de Creſe . Wakbeth Worr . Duncano et Gillethoma filiis Walfii . et multis aliis .

Carta Roberti Regis de terris de Cardnaŷ .

22 **R**obertus dei gratia Rex Scottorum omnibus probis hominibus totius terre sue tam clericis quam laicis salutem . Sciant presentes et futuri nos pro salute anime nostre et pro salute animarum predecessorum et successorum nostrorum regum Scotie dedisse et concessisse et hac carta nostra irrevocabiliter confirmasse deo et ecclesie sancti Johannis Apostoli et Euangeliste de Insula Wiffarum et canonicis ibidem deo servientibus et imperpetuum serventibus totam terram nostram de Cardnuŷ et de Dolcorachŷ in thanagio de fforteuŷot cum pertinentiis Tenendam et habendam eisdem religiosis in liberam puram et perpetuam elemosinam sine aliquo retinemento in perpetuum per omnes rectas metas et diuisas suas et cum omnibus libertatibus commoditatibus et aiŷamentis suis in boŷeis et planis pratis et pascuis viis et semitis moris et Warreŷis aquis stagnis multuris coolendinis petariis et turbariis in aucupationibus venationibus nemoribus et piŷcariis et cum omnibus aliis iustis pertinentiis suis tam non nominatis quam nominatis ad dictam terram pertinentibus aut in posterum pertinere valentibus adeo libere et quiete integre plenarie pacifice et honorifice ab omni seruitio seculari exactione seruiti consuetudine seu demanda que per nos aut successores nostros in posterum inde poterunt exigi seu demandari sicut aliqua terra elemosinata in toto regno nostro ex dono regum Scotie predecessorum nostrorum liberius quietius plenius seu honorificentius tenetur seu possidetur . In cuius rei testimonium presenti carte nostre sigillum nostrum precipimus apponi . Hiis testibus Bernardo Abbate de Aberbrothoek cancellario nostro . Roberto abbate de Dunfermlŷn . Walcolmo comite de Lenŷnax . Johanne de Weneteth . Gilberto de Haya . Hugone de Ertht . et Roberto de Keith coarscallo nostro Scotie militibus . apud Fontem Scocie xvi die Februarij anno regni nostri octauo .

Ratificatio super Terris de Dunýne .

- 23 **R**obertus Senescallus Scotie comes de Stratherýn Omnibus caris suis de Dunyn quicunque fuerint pro tempore salutem . quia in curia nostra tenta apud Creff octauo die mensis Maii anno domini millesimo cec^{mo} quinquagesimo octauo visis et cognitis cartis et monumentis non abolitis non cancellatis nec in aliqua sui parte viciatis religioforum virorum dominorum abbatis et conuentus de Insula Wiffarum de annuo reddito suo quadraginta duarum carcarum de thanagio de Dunin ex prouida deliberatione boni consilii nostri statum et possessionem predicti annui redditus eisdem religiosis caritate dedimus et concessimus suo perpetuo percipiendo prout antiquitus percipere consueuerunt . vobis et cuilibet vestrum qui pro tempore fuerit firmiter percipiendo mandamus quatenus ammodo semper in futurum eisdem religiosis responderi faciatis et deferuiri secundum antiquam consuetudinem ad terminos vsuales et tenentes dicti thanagii ad solutionem prefati redditus annui pro sua parte ipsos contingente districte compellatis sic que facientes in premisis ne pro defectu vestro iustam queremoniam amplius audiamus sub pena que competit . In cuius rei testimonium sigillum nostrum presentibus apponi fecimus apud Methfen xiiij die mensis predicti anno supradicto .

Carta Gilberti comitis de terris de Ardenguan et aelilonxich . dubinder Wachranin facta canonicis .

- 24 **G**ilbertus comes de Stratheryn omnibus amicis et hominibus suis clericis et laicis salutem Sciant presentes et futuri me pietatis intuitu et pro salute anime mee et Matildis comitisse de Stratherýn vxoris mee et patris mei et matris mee et heredum meorum dedisse et concessisse et hac carta mea con-

firmasse deo et ecclesie sancti Johannis apostoli et euangeliste de Inchaffrin et canonicis ibidem deo seruientibus et seruuturis totam terram de Arden- gam per rectas diuisas suas et cum omnibus iustis pertinentiis suis et totam terram de Achinlonxich per rectas diuisas suas et cum omnibus iustis per- tinentiis suis et totam terram de Dubinder per rectas diuisas suas et cum omnibus iustis pertinentiis et totam terram illam que Wachranin que anti- quitus Abbacia vocabatur per rectas diuisas suas et cum omnibus iustis pertinentiis suis . Tenendas in liberam puram et perpetuam elemosinam in bosco et plano in terris et aquis in pratis et pascuis in moris et marresis in petariis et vinariis in stagnis et molendinis et omnibus aliis iustis pertinen- tiis suis et cum omnibus aliis aiisamentis ad predictas terras iuste pertinen- tibus libere et quiete plenarie et honorifice ab omni auxilio et seruicio et consuetudine et seculari exactione . Quare volo vt predicti canonici pre- dictas terras per rectas diuisas suas et cum omnibus iustis pertinentiis suis ita libere et quiete plenarie et honorifice in liberam et quietam et puram et perpetuam elemosinam habeant et possideant sicut aliqua elemosina in regno Scotie de aliquo comite liberius et quiccius plenius et honorificentius tenetur et possidetur . Hiis testibus Jonatha episcopo Dunblanensi . W . comitissa de Stratheryn . Walisio fratre comitis . Ferteth filio comitis . Matilda filia comitis . Johanne archidiacono . Abbraam capellano comitis . Gillmanenich dapifero comitis . Walisio filio suo . Gilberto focio comitis . Constantino iudice . Gillebrek Anacholl de Dunyn . Duncano filio Walisii .

Confirmatio comitis Walisii super donis predecessorum suorum .

- 25 Omnibus hoc scriptum visuris vel auditoris . W . comes de Stratheryn salutem . Nouerit vniuersitas vestra quod cum nos et heredes nostri tenemur ex dono nobilis viri Gilberti aui nostri et etiam ex confirmatione

bone memorie Roberti patris nostri comitum de Stratheryn canonicis de Insula Wiffarum ad solutionem decimarum omnium reddituum et cano-
rum nostrorum in frumento farina brasio grano cafeis carnibus piscibus
anibus venationibus et omnibus eibariis que in curia nostra annuatim
expenduntur sicut in carta et confirmatione predictorum comitum pre-
decessorum nostrorum canonicis inde confectis plenius continetur . Et
quamvis idem canonici in plena et pacifica predictarum decimarum omnium
per multa tempora fuerint possessione nobis tamen quod minus plene eas
per defectum balliuorum nostrorum aliquando receperunt quam cepius grauem
depofuerunt querelam unde quia pia vota parentum nostrorum nobis non licet
aliquo modo infringere sed potius ea diuina annuente dispositione illius non
inmemores qui omnium bonorum pius est retributor augmentare et pio
desiderio eadem confirmare . hinc est quod predictis canonicis pro decimis
superius nominatis quas singulis annis ante annum domini millesimum ccc^m
xlv^m vij . in curia nostra iuste confluenerunt percipere viginti quatuor marcas
annuatim percipiendas videlicet viginti marcas de firma nostra apud Dunin
et quatuor marcas de Abruthfen in vita comitis matris nostre quas eisdem
post decessum eiusdem nos vel heredes nostri in alio certo loco et compe-
tenti soluimus medietatem ad pentecosten et aliam medietatem ad festum
beati Martini in yeme quousque nobis vel heredibus nostris quocumque
jure vberiora bona accreuerint assignamus ceteris articulis omnibus tam
in cartis Gilberti aui nostri quam in confirmatione Roberti patris nostri
contentis in suo robore duraturis volentes eisdem canonicis secundum
bonorum nostrorum annuatim decimarum suarum augeri portionem Et ne
predictos canonicos per defectum dicti redditus suis terminis non soluti con-
tingere possit in posterum quacumque ealiditate grauari nos et bona nostra
vniuersa iurisdictioni Episcopi Dunblanensis qui pro tempore fuerit subi-
cimus ut nos et balliuos nostros ad solutionem predictę pecunie sicut pre-
dictum est quacumque senfura ecclesiastica decreuerit monitione premissa
possit compellere . In cujus rei testimonium huic scripto sigillum nostrum

apposuimus et ad maiorem securitatem sigillum venerabilis patris nostri C · dei gratia Dunblanenſis epiſcopi eidem apponi procurauimus · Hiis teſtibus · C · dei gratia Dunblanenſi epiſcopo · nobilibus uiris domino Joachim de Kynbuk et domino Gilberto de Ruthſen militibus · domino Walfio auunculo domini W · comitis · Treſtram de Gortý · Alano mareſcallo dicti comitis · Summerleth · et multis aliis ·

De decimis Walfii comitis capiendis de thano de Dunýne ·

- 26 Walfius comes de Stratherýn dilecto et fideli ſuo Bricio thano de Dunin ſalutem · Noueris nos Deum abbatem et conuentum de Inchafrin ad viginti marcas apud Dunin de firma noſtra medietatem ad feſtum ſancti Martini et aliam medietatem ad Pentecoſten ſingulis annis percipiendas aſſignaffe · Quare volumus et precipientes firmiter mandamus quatenus nulli balliuorum noſtrorum ſiue nulli alicui alii noſtrorum ſiue nulli alicui alii niſi tantumodo abbati et canonicis de Inchafrin vel eorum aſſignatis de predictis viginti marcis ad predictos terminos perſoluendis ſtudeas reſpondere et ut maiorem circa ſolutionem adhibeas diligentiam ſtatuentes precipimus quod ſi infra octauum diem predictorum terminorum a ſolutione dictorum denariorum ceſſaueris penam viginti ſolidorum qualibet ſeptimana poſt predictum octauum diem apud nos incurras · In cuius rei teſtimonium ſigillum noſtrum preſenti ſcripto patenter apoſuimus ·

De molendino ſuper Pefrin ·

- 27 Gilbertus comes de Stratherýn omnibus amicis et hominibus ſuis ſalutem · Sciatis me dediſſe et conceſſiſſe et hac carta mea confirmaffe deo et ſancto Johanni euangelifte de Inchafrin et canonicis ibidem deo ſeruientibus

et feruituris locum molendini super Peffrin in terra de Ballmakgillone cum tofto et stagno et aliis ayfiamendis que pertinent ad molendinum fibi et fucefforibus fuis de me et heredibus meis in puram et perpetuam elemofinam plenarie et honorifice et integre falua fefta hominum meorum qui ad molendina mea venire debent . Hiis teftibus . Ferteth et Roberto filiis meis . Gillenefe et Walfio filio ejus fenefcallo meo . Conftantino iudice . Anechol thenno de Dunin . Duncano thenno de Struin . Gillecrist Gaff .

De terra Triffram in territorio de Gorty .

- 28 Sciant tam futuri quam prefentes quod ego Triffram dedi et conceffi et hoc fcripto meo confirmani deo et fancto Johanni apoftolo de Inchaffryn et canonicis ibidem deo feruientibus et feruituris vnum croftum in territorio meo Eddardoeneth quod eft propinquus stagno molendini de Gorty verfus orientem per ipfas diuifas quas Walfius prior in vita fua tenuit pro dei amore et pro falute anime mee in liberam et perpetuam elemofinam Tenendum fibi et habendum et poffidendum de me et heredibus meis libere et quiete ab omni penitus fecolari feruicio et feruili actione . Hii funt teftes Abbraam capellanus domini comitis de Stratheryn et Arthur filius ejus . Ifachar capellanus de ffoulis . dominus Riginaldus canonicus de Stratheryn . Henricus et Triffram . et Willelmus filius Triffram . et Tebaldus . Foglais . Criftina femina Triffram . et Anni filia ejus . et multis aliis .

Confirmatio de tofto Triffram .

- 29 Sciant tam futuri quam prefentes quod ego Gilbertus comes de Stratheryn conceffi et hac carta mea confirmani deo et fancto Johanni apoftolo et euangelifte de Inchaffryn et canonicis ibidem deo feruientibus et feruituris

donationem illam quam eis Triftram dedit scilicet vnum croftum in territorio suo de Eddardonech quod est propinquius stagno molendini de Gorty versus orientem ita libere et quiete sicut liberius et quiccius predicti Triftram carta testatur . Hii sunt testes . G archidiaconus Abbraam capellanus comitis Bricius persona de Crefe Philippus de Welkinch Ricardus coles de Kynbuk Ricardus Inneth . Nicholaus de Dolpatrick . Henricus filius Triftram Galfridus de Gask Wakbeth filius Brani Gilmech de Dunine et multi alij .

Carta de decem marcis in Petearn .

- 30 **O**mnibus has literas visuris vel auditoris Walifius comes de Stratheryn filius et heres Walifii quondam comitis de Stratheryn salutem eternam in domino Noueritis nos assignasse abbatem et conuentum de Infula Wiffarum ad decem marcas argenti de tenemento nostro de Petearn annuatim et in perpetuum percipiendas ad duos anni terminos videlicet medietatem ad festum Pentecostis et aliam medietatem ad festum sancti Martini in yeme . Quare volumus concedimus et firmiter precipiendo mandamus Wakbeth filio Ferchware libero tenenti nostro predicti tenementi et heredibus suis vel assignatis quibuscunque quatenus nulli balliuorum nostrorum nec alicui alii nisi tantummodo abbati et canonicis de Inchaffrin vel eorum assignatis de predictis decem coarcis ad dictos terminos perfoluendis aliquo tempore respondeant sed easdem prefatis religiosis vel eorum attornatis seu assignatis sicut predictum est fideliter et absque dampno dilationis plenarie perfoluant . In cuius rei testimonium presentibus sigillum nostrum apponi fecimus . Data apud Innyrpefyr in crastino annunciationis beate Marie Virginis anno gratie millefimo cc^{mo} octogesimo tertio .

Litera testimonialis archidiaconi Dunblanensis de viginti solidis annuatim .

- 31 **P**ateat vniuersis Christi fidelibus nos Nicholaum de Kynbuk archidiaconum Dunblanensem per instrumenta autentica sigillis venerabilium in Christo patrum dominorum episcoporum sancti Andree et Dunblanensis et domini Rogeri Quiney comitis Wynton constabillarij Seotie roborata non cancellata nee in aliqua sui parte viciata bene et decenter cyrographata certificari nos et successores nostros archidiaconos Dunblanenses firmiter obligatos teneri dictis abbati et conuentui de Insula Wistarum et successoribus suis in viginti solidos sterlingorum annuatim soluendis eisdem vel suo certo assignato ad festum sancti Martini in yeme apud Nefgask pro decimis et omnibus rebus aliis quas dicti domini abbas et conuentus percipere solebant de terra que dicitur Pettynefine ratione ecclesie sue de Gask Christi et quas nos possidemus ratione ecclesie nostre de Nefgask gratia compositionis inter predecessores nostros facte sicut indentura super hoc confecta plenius continetur et hoc omnibus quorum interest tenore presentium significamus . In cuius rei testimonium presentibus sigillum nostrum apposuiamus et in evidencius testimonium sigillum venerabilis in Christo patris domini Wilhelmi dei gratia episcopi Dunblanensis et domini Laurencii prioris de Abernethi apponi procurauimus Data apud Dunblane die Mercurij . xj . die mensis Apprilis anno ab incarnatione Christi millesimo ccc^{mo} quinquagesimo octauo .

Carta brafine de Petlandy .

- 32 **O**mnibus Christi fidelibus presens scriptum visuris vel auditoris Lucas filius Theobaldi de Petlandy eternam in domino salutem . Nouerint vniuersi me pro salute anime mee et sponse mee et antecessorum meorum dedisse et

concessisse et hac carta mea confirmasse deo et beate Marie et sancto Johanni apostolo in Insula Wiffarum neenon abbati et conventui ejusdem loci totam brasinam totius terre de Petlandy cum omnibus libertatibus juribus et assiamendis omnimodis infra villam et extra ad dictam terram de Petlandy spectantibus vel spectare valentibus sine aliquo retenemento . Tenendam et habendam sibi et successoribus suis et assignatis et eorum heredibus de me et heredibus meis in puram et perpetuam elemosinam libere et quiete ab omni seculari servitio in perpetuum . Ego vero et heredes mei dictam brasinam eum pertinentiis omnimodis sicut predictum est dictis religiosis et eorum successoribus contra omnes homines et feminas warrantizabimus protegemus et defendemus in perpetuum . Et ut hec donatio mea et carte mee confirmatio robur firmitatis et stabilitatis in omni obtineat presentem cartam meam sigilli mei impressione roboravi . Hiis testibus magistro Thoma decano Dunblanenſis ecclesie et Magistro Ricardo ejusdem ecclesie canonicum . domino . N . rectore ecclesie de Creſe . domino . J . persona de Buſſidir . dominis W . et W . capellanis domine comitisſe . Tristram de Gorty . Wilhelmus . Gillicolmo . et multis aliis .

Carta de Carnbo .

- 33 **O**mnibus hanc cartam visuris vel audituris Rogerus de Wexen dominus de eadem salutem in domino eternam . Noveritis me spiritu devotionis ac pura mente et mera pro salute anime mee concessisse dedisse et hac presenti carta mea confirmasse in perpetuum deo et beate Marie et beato Johanni apostolo et evangeliste de Insula Wiffarum ac dilectis meis abbati et conventui ejusdem loci in puram et perpetuam elemosinam totam et integram terram meam de Carnbo per rectas metas suas et diuſas et cum omnibus libertatibus commoditatibus et assiamendis et omnimodis pertinentiis ad dictam terram quoquomodo spectantibus vel spectare valentibus . Tenendam

et habendam in perpetuum eisdem religiosis et successoribus suis de me heredibus meis et successoribus ab exactione seculari ita libere quiete sicut aliqua terra liberius seu quicquid a barone vel milite dari potest vel conferri • salvo forinsecro seruicio domini nostri Regis et faciendo forinsecum seruicium ac debitum domino comiti de Stratheryn pro me et heredibus meis • In cuius rei testimonium presenti carte mee meum sigillum est appensum • Testibus nobilibus viris dominis Johanne senescallo et Thoma de flawfide militibus • Wilhelmo filio Martine • Ach filio Elpine • Wilhelmo filio et multis aliis • -

Carta de Ballmakgillone •

- 34 Gilbertus comes de Stratheryn omnibus hoc scriptum visuris vel audituris salutem nouerit vniuersitas vestra me dedisse et concessisse et hac carta mea confirmasse deo et beate Marie et beato Johanni apostolo et euangeliste de Inchaffray et canonicis ibidem deo seruientibus et seruientibus Ballmakgillon per rectas diuinas suas et cum omnibus iustis pertinentiis suis Tenendum in liberam et puram et perpetuam elemosinam in bosco et plano in terris et aquis in pratis et pascuis in moris in marresis in stagnis et molendinis in vinariis et piscariis libere et quiete ab omni seruicio et exactione seculari et ita libere et honorifice et integre sicut aliqua elemosina in toto regno Scotie ab aliquo comite vel barone liberius quicquid plenius et honorificentius tenetur et possidetur • Ego vero et heredes mei totum forinsecum seruicium domini Regis quod ad terram illam pertinet in perpetuum adquietabimus • Hiis testibus Abbram Dunblanenſi episcopo • Wilhelmo abbate de Seona • Roberto Fergusio Walſio filiis meis • Gilberto archidiacono de Stratheryn • Walſio senescallo meo • Bricio persona de Creff et multis aliis •

Carta de sex marcis de Abircarnich .

35 Omnibus Christi fidelibus ad quorum notitiam presentes venerint Walfius comes de Stratheryn eternam in domino salutem . Nouerit vniuersitas vestra quod cum viri religiosi abbas et conuentus Wonafterii de Insula Wiffarum essent in possessione recipiendi sex marcas sterlingorum nomine secundarum decimarum nostrarum de firma terre de Balleuolleth in fyro de Foglis idem religiosi ad instantiam nostram patienter sustinuerunt nos illam terram de Balleuolleth domino G . fratri nostro conferre et sic eisdem religiosis in eisdem sex marcis remansimus obligati . Quare volumus et concedimus eisdem religiosis per hanc scripturam mera nostra voluntate confectam pro nobis et heredibus nostris vel assignatis quod dicti religiosi dictas sex marcas nomine secundarum decimarum nostrarum sine contradictione nostri vel heredum nostrorum vel assignatorum nostrorum de firma tenementi de Abbircarnych recipiant in perpetuum per manus cuiuscunque dictum tenementum de Abbircarnich de nobis vel heredibus nostris vel assignatis tenentis soluendas ad duos anni terminos scilicet vnam medietatem ad festum pentecostis et aliam medietatem ad festum sancti Martini in yeme . Item cum tenemur eisdem religiosis in triginta sex libris sterlingorum quas cepimus de fratre Hugone tunc temporis terrario eiusdem monasterii de pecunia quondam Rogeri de Colm clerici quamquidem pecuniam idem Rogerus fabrice ecclesie dicti monasterii donatione inter viros dedit et in decem libris sterlingorum quas ab eisdem recepimus mutuo per literas nostras obligatorias super hoc eisdem confectas et etiam in viginti quatuor marcis sterlingorum de solutione predictarum sex marcarum de firma predictae terre de Balleuolleth per nos a predictis religiosis per quatuor annos retentarum . Nos vero eisdem religiosis satisfacere volentes eisdem concedimus pro nobis et heredibus nostris et assignatis et volumus quod ipsi religiosi recipiant quolibet anno ad terminos prenominatos quatuor marcas sterlingorum

de firma predicti tenementi de Abbircarnielh sine contradicione [nostri] vel heredum nostrorum vel assignatorum quousque predicti religiosi totum predictum debitum de predicta firma sepedicti tenementi de Abbircarnyeh dictis terminis sicut predictum est plenarie et integre receperint termino prime solutionis dicte pecunie incipiente ad festum pentecostis anno gratie millesimo ccc^{mo} decimo octavo . In cujus rei testimonium literis presentibus sigillum nostrum fecimus apponi . Data apud Crese die sancti Ambrosii anno supradicto . Hiis testibus domino Roberto dei gratia episcopo Dunblanenfi . domino Eugenio de Argadia . domino W . auunculo nostro . domino N . rectore ecclesie de Crese . dominis G . J . et B . rectoribus ecclesiarum de Comry de Buchfydir de Wonyhge . T . de Gorty . Bricio de Ardrossan et multis aliis . Nos vero et heredes nostri vel assignati predictas sex marcas sicut predictum est dictis religiosi et eorum successores in perpetuum contra omnes homines warrantizabimus et defendemus et acquietabimus .

Carta de via apud Perth per nigrum vadum .

- 36 **V**niuersis Christi fidelibus prefens scriptum visuris vel auditoris [] filius bone memorie quondam domini Johannis Cumyn salutem eternam in domino Nouerit vniuersitas vestra nos pro salute anime nostre et vxoris nostre ac liberorum nostrorum et precipue pro anima inclite memorie quondam domini Johannis Cumyn patris nostri ac predecessorum nostrorum dedisse et concessisse et hac presenti carta nostra confirmasse pro nobis et heredibus nostris in perpetuum deo et beate Marie ac sancto Johanni apostolo et euangeliste et viris religiosi abbati et conuentui Monasterii de Insula Wiffarum et eorum hominibus in puram et perpetuam elemosinam liberam potestatem transeundi cum animalibus carriagiis et aliis bonis suis per publicam viam que ducit a dicto monasterio per nigrum vadum quod fecit dicitur

Aelbethy in nemore nostro de Rosmaddiryn vsque ad villam de Perth pontemque ibidem firmandi super terram nostram et firmatum sustentandi sumptibus dictorum abbatis et conuentus eodemque ponte vtendi in perpetuum pro libero sue voluntatis arbitrio sine aliqua reclamatione contradictione aut grauamine nostri aut heredum nostrorum . vnde firmiter inhibemus seruientibus nostris qui pro tempore fuerint dictum nemus nostrum custodientibus et in posterum custodituris ne dictis religiosis seu eorum hominibus cum per dictum pontem et viam transierint predictam pro negotiis suis expediendis in rebus suis aut personis molestiam dampnum aut aliquid grauamen eis aut eorum cuiquam inferre presumant . volumus etiam pro nobis et heredibus nostris quod si contingat animalia dictorum abbatis et conuentus aut hominum suorum in pasturam nostram transgressum facere vnum denarium argenti pro quolibet transgressu dictorum animalium nomine pene sine maiore exactione seruientibus nostris et heredum nostrorum persoluant nisi animalia dictorum religiosorum abbatis et conuentus seu hominum eorundem in nostra pastura predicta de nocte vel die pastore tenente vel pascente inueniantur pascencia Nos vero et heredes nostri dictam donationem nostram vt predictum est contra omnes homines in perpetuum warrantizabimus et defendemus . In cuius rei testimonium huic scripto sigillum nostrum apponi fecimus . Datum apud Gasknes die lune proxima ante festum sancte Marie Magdalene anno gratie millesimo ccc^{mo} septuagesimo octauo . Hiis testibus dominis Willelmo et Alexandro fratribus nostris . dominis Nicholao de Vepunt et Philippo Olifard militibus . Alano clerico . Fergusio W^eKenady . Hugone fabro . Alano seruiente nostro et multis aliis .

Carta Willelmi filii Walfisi de terris suis infra Ochtirardore et extra .

- 37 Omnibus prefens scriptum visuris vel audituris Willelmus filius Walfiti salutem in domino eternam Sciant presentes et futuri me sponte et mere concessisse dedisse et in perpetuum confirmasse in puram et perpetuam elemosinam pro salute anime mee deo et beate Marie et beato Johanni apostolo euangeliste de Insula Wiffarum ac canonicis ejusdem loci omnes et singulas perticulas terrarum me qualitercunque contingentes infra vel extra villam de Ochtirardor per omnes metas et diuisas suas cum omnibus pertinentiis suis ad inueniendum illuminare coram ymagine beate Marie in choro ecclesie ejusdem loci . Quas quidem terras ego emi in perpetuum a Johanne filio Baltini Tenendas et Habendas vt predictum est cum omnibus suis juribus libertatibus et ayfiamentis . salvo duntaxat seruicio domini nostri Regis . In cuius rei testimonium huic scripto sigillum meum apposui et ad maiorem securitatem et plenioram euidentiam sigillum commune burgi de Ouchtirardor presentibus apponi procurari . Hiis testibus nobilibus viris dominis Daud de Grame et Thoma de ffaufide militibus Waltero de Worauia domino de Tullybary . Johanne filio iudicis . Brieio bane . Roberto filio Johannis burgenfi de Ouchtirardore . et pluribus aliis .

Carta de Abirbrothok .

- 38 Omnibus Christi fidelibus prefens scriptum visuris vel audituris Willelmus dei gratia abbas de Arbrothok et ejusdem loci conuentus eternam in domino salutem Nouerit vnuerfitas vestra nos communi assensu et consensu totius capituli nostri dedisse concessisse et hac carta nostra confirmasse deo et ecclesie sancti Johannis apostoli et euangeliste de Insula Wiffarum et abbati et conuentui ibidem deo seruientibus et in perpetuum seruaturis

omnes terras domus et possessiones quas Willelmus filius Rayngod in villa de Abbirbrothok de nobis tenuit et possedit . Quas quidem terras idem Willelmus pro se et heredibus suis nobis in plena curia de Abbirbrothoe reddidit et quiete clamauit necnon et totum jus quod ipse vel heredes sui in dictis terris habuerunt vel habere poterint Tenendas et habendas dictis abbati et conuentui in liberum burgagium cum omnibus libertatibus et assiamendis reconditudinibus ad dictum burgagium infra villam et extra villam iuste pertinentibus adeo libere quiete et plenarie sicut dictus Willelmus vel predecessores sui dictas terras de nobis tenuerunt vel possederunt . Saluo tamen quod dictas terras viris religiosis quibuscunque vel aliquibus aliis nullo titulo nisi de speciali nostra licentia vendent vel alienabunt . In cuius rei testimonium huic scripto sigillum nostrum commune apposuiimus et ad maiorem securitatem sigillum ville nostre de Abbirbrothok fecimus apponi . Teste capitulo nostro . Datum anno domini millesimo ccc^{mo} quinquagesimo secundo . v^o . idus Nouembris apud Abyrbrothok .

Carta terre de Perth .

39 Omnibus hoc scriptum visuris vel auditoris Willelmus filius Hawok de Perth salutem eternam in domino . Noneritis me dedisse concessisse ac quitum clamasse pro me et heredibus meis in perpetuum deo et beate Marie et sancto Johanni apostolo et euangeliste de Insula Wiffarum et canonicis ibidem deo seruientibus et in perpetuum seruituris pro quadam summa pecunie quam mihi pre manibus in mea magna necessitate dederunt totum jus quod habeo et quod mihi et heredibus meis competere poterit in futurum in terra quam prius tenui pro quadam certa firma annua de Ricardo de Laycestria quondam burgenfi de Perth et postea de ipsis canonicis in villa de Perth in via boreali Tenendum et habendum ipsis canonicis et eorum successoribus in perpetuum libere quiete plenarie et honorifice

sine omni onere et sine omni clameo et calumpniis mei et heredum meorum faciendo tantum domino nostro Regi de dicta terra seruicium debitum et consuetum . Ego vero et heredes mei dictam donationem dictis canonicis et eorum successoribus contra omnes homines et feminas in perpetuum warrantizabimus et defendemus . In cuius rei testimonium prefens scriptum figilli mei impressione roboravi . Hiis testibus Johanne Kokyn . Johanne de Labatil . Johanne Abbot . Nicholao de Scardbrow . Wilhelmo de Dunde . Andrea Teket . Henrico de Bedford . Ricardo de Berewik et multis aliis .

Carta Willelmi filij Hauyk de terra de Perth .

- 40 Omnibus Christi fidelibus hoc scriptum visuris vel auditoris Willelmus filius Hawock burgensis de Perth salutem eternam in domino . Noueritis me dedisse et concessisse et hac presenti carta mea confirmasse pro me et heredibus meis in perpetuum deo et beate Marie et sancto Johanni apostolo et euangeliste de Insula Wiffarum et canonicis ibidem deo seruientibus et in perpetuum seruitoris pro quadam summa pecunie quam mihi pre manibus in mea magna necessitate dederunt totam terram quam tenni de abbate et conuentu de Scona in villa de Perth in via boreali et totum jus quod habeo et quod mihi et heredibus meis competere poterit in futurum in terra predicta . Tenendam et habendam ipsis canonicis de Insula Wiffarum et eorum successoribus in perpetuum libere quiete plenarie et honorifice . Reddendo inde annuatim ipsis abbati et conuentui de Scona firmam quam ego eis soluere consueui . videlicet quinque solidos ad duos anni terminos medietatem scilicet ad pentecosten et aliam medietatem ad festum sancti Martini in yeme pro omni seruicio seculari consuetudine exactione et demanda . saluo seruicio domini Regis . In cuius rei testimonium huic scripto sigillum meum apposui . Hiis testibus Wilhelmo de Dunde .

Andrea Teket · Martino de Leñ · Henrico Tenteman · Nicholao de
Scardborow · Henrico de Bedford · Walisio Treideneris et multis aliis ·

Carta de Scona de terra Willelmi filij Hauoch ·

- 41 **U**niversis sancte Matris ecclesie filiis hoc scriptum visuris vel auditoris Robertus dei gratia abbas de Scona et ejusdem loci conventus humilis salutem in domino eternam · Noueritis nos communi consensu et voluntate capituli nostri illam venditionem quam Willelmus filius Hauoch de Perth viris religiosus abbati et conventui de Insula Wistarum fecit ratam et firmam habentes presentis scripti nostri munimine roborasse · volentes et concedentes quod dicti abbas et conventus dictam terram de nobis et successoribus nostris in perpetuum libere et quiete teneant et possideant · faciendo nobis idem seruicium quod prefatus Willelmus facere consuevit scilicet reddendo nobis quinque solidos annuatim medietatem ad Pentecosten et medietatem ad festum beati Martini pro omni seruicio seculari salvo forinscco seruicio domini Regis · Et nos predictam terram eidem abbati et conventui contra omnes homines warrantizabimus et defendemus · In cuius rei testimonium hoc scriptum sigillo nostro communi roborauimus · Teste capitulo ·

Carta Willelmi de Laicestria de Perth ·

- 42 **O**mnibus hoc scriptum visuris vel auditoris Ricardus de Laycestria burgensis de Perth eternam in domino salutem · Nouerit vniuersitas vestra me pro salute anime mee et antecessorum meorum dedisse concessisse et hac carta mea confirmasse deo et beate Marie et beato Johanni apostolo et euan-

geliste de Inchaffryn et canonicis ibidem deo seruientibus et seruituris in puram et perpetuam elimosinam totam illam terram que me contingit de terra Johannis filij Dauid que quidem terra jacet inter terram quondam Dauid filij Galfridi et terram abbatis et conuentus de Scona quam terram Willelmus filius Hawok tenet de me et meis actornatis sibi et heredibus suis tenendam et habendam sibi et successoribus suis in perpetuum ita libere et quiete sicut aliquod burgagium in villa de Perth liberius quicquid ab aliquo tenetur vel possidetur salua conuentione predicti Willelmi filij Hawoch de sexdecim solidis de predicta terra mili et attornatis meis de se et heredibus suis annuatim reddendis et saluo seruicio domini regis . In cuius rei testimonium huic scripto sigillum meum vna cum sigillo communi de Perth apponi feci . Hiis testibus coagistro Roberto de Layeistria . domino Henrico filio Galfridi . domino Johanne de Batalia . Johanne Sokyn . Dauid Yep . Galfrido de Len . Henrico de Bedford et alijs . Actum apud Perth die Saboti primo post festum sancti Nicholai anno gratie millesimo ccc^{mo} quadragesimo .

Compositio inter canonicos et Walterum pictorem de terra in Perth .

- 43 Omnibus Christi fidelibus presens scriptum visuris vel auditoris Walterus pictor de Perth et Hawys sponsa sua filia et heres quondam Nicholai Pape burgenlis de Perth salutem eternam in domino . Nouerit vniuersitas vestra quod cum inter viros religiosos abbatem et conuentum de Insula Wiffarum ex parte vna et me et sponsam meam predictam ex altera super quadam terra que fuit quondam predicti Nicholai Pape que quidem terra jacet inter terram Galfridi dicti fratris Johannis decani ex vna parte et terram Duncani dicti de Cellare quam de dictis religiosis ad firmam tenet ex altera in plena curia de Perth coram venerabili patre domino Roberto dei gratia episcopo Daublanensi domino Willelmo de Moravia milite et etiam balliuis de Perth

et multis aliis fidedignis materia questionis verteretur ac etiam dictos religiosos pro jure quod in dicta terra credebamus optinere per literas domini nostri Regis in dicta curia fatigauimus per multum tempus . Tandem vero ad instanciam dictorum proborum et per assensum et consensum partis vtriusque talis amicabile compositio interuenit videlicet . quod ego Walterus et Hawys sponsa mea dedimus et concessimus de nobis et heredibus seu assignatis dictis religiosis et eorum successoribus omne jus et clameum si quod in dicta terra habuimus vel in posterum habere poterimus pro quadam summa pecunie quam dicti religiosi in magna nostra necessitate nobis dederunt pre manibus quam quidem summam pecunie cognoscimus nos totaliter recepisse et in nostros vsus necessarios conuertisse . renunciantes in hac parte sponte et absolute pro nobis et heredibus nostris siue assignatis omni juris et facti remedio exceptioni non facte promissionis pactionis et conuentionis et rei sic non gette doli et fraudis priuilegio fori et omni juris et legum auxilio canonice et ciuilis consuetudini et statuto ac etiam literis regis et apostolicis impetratis et impetrandis ac omnibus aliis tam non nominatis quam nominatis . [per] quod presens instrumentum possit obici vel opponi quocumque contra premissa vel aliquid premissorum impugnare vel litem mouere presumamus vel intendimus . Et ad maiorem rei securitatem faciendam huic scripto sigillum dicte sponse mee apposuius necnon et sigillum dicti venerabilis patris episcopi Dunblanensis et Cristini de Insula tunc vicecomitis de Perth et Johannis Abbot et Johannis de Perth apponi procurauimus . Hiis testibus domino Roberto dei gratia episcopo Dunblanensi . necnon Willelmo de Moravia milite . Cristino de Insula tunc vicecomite de Perth . Johanne Abbot . Thoma de Insula . Johanne de Perth . Willelmo filio Wynark . Johanne filio Ricardi balliui tunc temporis de Perth et multis alijs .

Carta terre de Dunnyduf .

44 **O**mnibus hoc scriptum visuris vel auditoris Bricius de Ardrossane eternam in domino salutem . Nouerit vniuersitas vestra me pro salute anime mee et antecessorum meorum concessisse et assignasse et hac presenti carta mea confirmasse Deo et beate Marie et sancto Johanni apostolo et euangeliste et abbati et conuentui de Insula Wiffarum et suis successoribus in perpetuum illam perticulam terre sitam in territorio de Petlandy quam ego de Luca filio Theobaldy ad feodam firmam teneo cum omnibus suis pertinentiis et ceteris assiamendis per suas rectas diuisas prout in carta inter dictum Lucam et me super hoc facta plenius continetur . tenendam et habendam sibi et successoribus suis in perpetuum de me et heredibus meis seu assignatis libere et quiete sicut liberius quicquid ego dictam terram tenui vel tenere potui . Reddendo inde annuatim vniam coarcam argenti scilicet medietatem ad Pentecosten et aliam medietatem ad festum sancti Martini euidam capellano diuina celebranti in elemosinario de Insula Wiffarum ad operandum seu inueniendum ibidem calicem et ornamenta diuino cultui necessaria . volo et concedo quod si dictam terram per aliquem casum seu occasionem de predictis abbate et conuentu quod abiit imposterum euinci contigerit sepedictos abbatem et conuentum a predicta marce prestatione ex tunc fore absolutos et me et heredes meos seu assignatos ad quos cetera terre mee quocumque titulo transuerint ad predicta marce prestationem annuam predicto capellano de ipsis terris faciendam supradictis terminis in perpetuum teneri et ad hoc per censuram ecclesiasticam si necesse fuerit compelli et perstringi . Reddendo nichillominus sepedicto Luce . . . et suis heredibus vel assignatis dictam terram ad feodofirmam mihi et heredibus meis seu assignatis in perpetuum . concedent pro omni seculari seruicio exactione consuetudine et demanda warrantizatione protectione et defensione duodecim denarios ad duos anni terminos scilicet sex denarios ad pentecosten

et sex denarios ad festum sancti Martini in yeme et preterea tres denarios tantummodo pro quolibet Regis auxilio seu exercitu quotiens dominus rex communem exercitum vel commune auxilium exigere contigerit a toto suo regno . In cuius rei testimonium huic scripto sigillum meum apposui . Hiis testibus domino Roberto dei gratia episcopo Dunblanensi . domino . N . rectore de Crese . domino Johanne tunc decano de Stratheryn rectore ecclesie de Glendofouer . dominis G . et . J . rectoribus ecclesiarum de Cumry et de Buffidir . Treftram de Gortý . magistro Johanne de Logý . Ach et Munach filiis Alpin et multis aliis . Datum apud Insulam Wylfarum die sancti Clementis martiris et pape Anno gratie millesimo ccc^{mo} septuagesimo primo .

Donatio et quita clamatio terre de Drumerok canonicis .

- 45 **O**mnibus [hoc] scriptum visuris vel auditoris Duncanus de Welginch salutem in domino . Cum essem conuentus ab abbate et conuentu de Insula Wylfarum auctoritate iudicum a domino papa delegatorum videlicet domini abbatis de Abirbrothok et de Waii prioris et hoc per quamdam cartam patris mei per quam scilicet dicti abbas et conuentus vendicabant sibi medietatem totius terre de Drunkroc in parochia de Welginch . cognita autem rei veritate Deum habens pre oculis nolens amplius ipsos laboribus et expensis iniuste vexari predictam terram sponte et absolute eisdem in iudicio quietam clamaui in perpetuum et si quid juris potuit mihi competere ex persona mea vel antecessorum meorum vel aliunde in dicta terra hoc totum Deo et beato Johanni et dictis abbati et conuentui in redemptionem anime mee vxoris et liberorum meorum neenon pro anima patris mei et antecessorum meorum in puram et perpetuam elemosinam dedi et hac presenti carta mea confirmaui . Et vt hec concessio robur firmitatis optineat in perpetuum huic scripto sigillum meum vna cum sigillis

dictorum iudicum neenon et figillo venerabilis patris Philippi dei gratia abbatis de Seona qui hujus testis est feci apponi · datum apud Seonam ad festum sancti Michaelis anno gratie m^o cc^o xxx^ovij^o · Hiis testibus domino Phillipo abbate et domino H priore de Seona · domino Ricardo priore de Cambuskenell et magistro Johanne rectore ecclesie de Striwillyn · Patricio filio Willelmi vicecomite de Perth et multis aliis ·

Donatio et quita clamatio de vna marca annui redditus de Tullybardyn ·

- 46 Omnibus hanc cartam visuris vel auditoris Andreas de Morania de Tulybardyn salutem eternam · Cum eujusdam controuersie distantia inter religiosos viros abbatem et conuentum de Insula Wiffarum ex parte vna et me ex parte altera per triennium et vltra fuisset ratione vnus marce annui redditus per dictum tempus a dictis religiosiis per me detente et abstracte quam quidem marcam dicti religiosi asserbant se percipisse annuatim ad duos terminos videlicet ad festa pentecostis et sancti Martini de tenemento de Tulybardyn nomine dietarum decimarum ejsdem · Habita hinc inde super hac inter ipsos et me sepius litis altercatione tandem ad ordinationem venerabilis patris in Christo domini Mauricii dei gratia episcopi Dunblanensis cognita rei veritate euidenter repertum erat quod prefati religiosi et suum monasterium fuerunt in possessione pacifica a tempore ejus non exstat memoria illam marcam vt premititur recipiendi secundum quod in literis donationum antecessorum meorum inde confectis plenius dicitur contineri · Deum enim habens pre oculis votaue pia parentum meorum infringere nolens sed potius augere nec dictos religiosos vltius vexare iniuste cupiens totam clamationem per me ortam seu habitam vel per me aut heredes meos aliquo modo titulo vel tempore in dicta marca de cetero habendam eisdem religiosiis sponte et penitus resigno et prenominatam marcam ut predictum est quolibet anno percipiendam Deo et beato Marie et beato Johanni apostolo

et euangeliste et canonicis prefate Infule pro salute anime mee et animarum predecefforum fucefforum et parentum meorum in puram et perpetuam elemosinam per presentes irrenocabiliter confirmo et si quid in donationibus predecefforum meorum defuit supplere non recuso . Et vt hec confirmatio mea robur firmitatis obtineat inperpetuum subicio me et heredes meos ac omnes possessiones nostras cohereioni et iurisdictioni episcoporum et ordinariorum ecclesie Dunblanenſis qui pro tempore fuerint sub pena centum solidorum fabrice Dunblanenſi applicandorum si contingat nos quod absit in parte vel in toto vt premissum est deficere seu contra hanc confirmationem aliquo modo venire nullo in contrarium contra presens scriptum in posterum proponendo obſtante . Ego vero Andreas et heredes mei predictam marcam prefatis religioſis in perpetuum warrantizabimus et defendemus . In cuius rei testimonium presenti scripto sigillum meum appoſui et ad pleniorẽ euidẽtiam dictis religioſis faciendam sigilla venerabilis patris domini Mauricij dei gratia episcopi Dunblanenſis et domini Donaldi decani eiusdem presentibus sunt appensa . Datum in festo beati Beani episcopi et confessoris anno domini millesimo ccc^{mo} vicesimo nono .

Concordia indentata inter conuentum et Triftram super quibuldã terris inter ipsos ante in lite pendentibus .

- 47 **O**mnibus Christi fidelibus hoc scriptum visuris vel audituris Alanus Dei gratia abbas de Infula Wistarum et eiusdem loci conuentus eternam in domino salutem . Nouerit vniuersitas vestra quod cum controuersia esset mota inter Triftram de Gortyn ex parte vna et nos ex altera super terris de Cambinch que ex arbitrio virorum prudentium prouisa fuit et adjudicata in perpetuum jacere in communi inter nos sicut in scripto de ipso arbitrio confecto plenius continetur et ceteris terris quas nos possidebamus in quibus dictus Triftram sibi et heredibus suis jus vendicabat et maxime de infirma-

torio nostro et capella et aliis terris circumjacentibus sicut fossatum est circumquaque . tandem omnis lis et contentio super dictis terris mota vel mouenda in hunc modum quieuit videlicet quod dictus Trestram totum jus et clameum quod habuit vel habere potuit in prefatis terris nobis et successoribus nostris pro se et heredibus suis in perpetuum quietum clamauit salvo in omnibus jure domini nostri comitis de Stratheryn . Renunciando quoque pro ipso et heredibus suis impetratis et impetrandis omnimodis ne de cetero nos aut successores nostros super dictis terris in puram et perpetuam et liberam elemosinam nobis concessis et per multa tempora pacifice possessis in foro laycali vel clericali fatigare presumat . Nos vero predicto Trestram et Cristine sponse sue et heredibus suis fraternitatem monasterii nostri in orationibus elemosinis martilogio et ceteris bonis que fuerint generaliter pro confratribus nostris caritative concessimus et hoc idem heredibus ipsorum concessimus si hoc caritative petierint . Concessimus etiam eidem Trestram et heredibus suis quatenus in nobis est quod habeant capellam suam in qua eis possint diuina celebrari salua in omnibus indempnitate matricis ecclesie . Ad hec omnia supradicta fideliter sine dolo fraude et machinatione aliqua pro se et heredibus suis obseruanda per fidem suam necnon tactis sacrosanctis per sacramentum suum corporale se obligauit et nos pro nobis et successoribus nostris idem fecimus . In cujus rei testimonium huic carte ad modum cyrographi confecte remanenti inperpetuum penes nos et successores nostros sigillum dicti Trestram et domini Walisi comitis de Stratleryn sunt appensa et parti remanenti penes dictum Tristram et heredes suos in perpetuum sigillum commune capituli nostri et venerabilis patris Roberti dei gratia Dunblanensis episcopi sunt appensa . Datum apud Insulam Wissarum die sancti Valentini martiris anno gratie millesimo ccc^{mo} sexagesimo sexto .

Altera indentura super terris de Cambineh .

- 48 **O**mnibus Christi fidelibus hoc scriptum visuris vel audituris Trifram de Gortyn eternam in domino salutem . Nouerit vniuersitas vestra quod cum controuerfia mota esset inter abbatem et conuentum de Insula Wiffarum ex parte vna et me ex altera super terris de Cambineh que ex arbitrio virorum prudentium prouisa fuit jacere in commune inter nos sicut plenius continetur in scripto de ipso arbitrio confecto et ceteris terris quas prefati religiosi possidebant in quibus ego dictus Trifram mihi et heredibus meis [jus] vendicabam et maxime de infirmatorio et capella et aliis terris circumjacentibus sicut fossatum est circumquaque . Tandem inter nos die sancti Valentini martiris anno gratie millesimo ccc^{mo} sexagesimo quinto [*sexto*] apud Insulam Wiffarum sub hac forma conuenit videlicet quod ego dictus Trifram promisi fideliter pro me et heredibus meis quod dictos abbatem et conuentum et eorum successores in perpetuum indemnes conseruarem in omnibus de forisfactis commissis et committendis in curia domini comitis de Stratheryn occasione omnimodorum conuentionum motarum inter nos super dictis terris et aliis conuentionibus et controuerfiis super quibus ipsos ad iudicium traxi seculare et totum jus meum quod habui vel habere potui in prefatis terris dictis abbati et conuentui de Insula Wiffarum pro me et heredibus meis imperpetuum quitum clamaui salvo in omnibus jure domini nostri comitis de Stratheryn . Renunciando quoque pro me et heredibus meis impetratis et impetrandis omnimodis ne de cetero eodem abbatem et conuentum nec successores suos super predictis terris in puram liberam et perpetuam elemosinam eis concessis et per multa tempora pacifice possessis in foro laicali fatigare presumam . Ad hec omnia superscripta fideliter siue dolo et fraude et machinatione aliqua pro me et heredibus meis in perpetuum obseruanda per fidem meam nec non tactis sacrosanctis per sacramentum meum corporale me obligauit sponte prestitum et dicti abbas et conuentus idem fecerunt . Predicti vero abbas et

conuentus mihi et Cristine sponse mee et heredibus meis fraternitatem monasterij fui in orationibus elemosinis et caritativo et ceteris bonis que fuerint generaliter pro confratribus diuine caritatis intuitu concesserunt et hoc idem heredibus meis si caritative petierint concesserunt . Concesserunt etiam dicti abbas et conuentus mihi et heredibus meis quatinus in eis est capellam nostram in qua nobis possint diuina celebrari salua in omnibus indemnitate matricis ecclesie . In cuius rei testimonium huic scripto sigillum meum apposui et ad instantiam meam sigillum comitis huic scripto est appensum .

Concordia inter abbatem de Cupro et abbatem Insule Wiffarum .

- 49 Cum inter viros religiosos Andream Dei gratia abbatem de Cupro et ejusdem loci conuentum ex parte vna et Hugonem ejusdem gratia abbatem de Insula Wiffarum et ejusdem loci conuentum ex altera suborta fuisset materia questionis super quodam annuo redditu duodecim librarum cere quem quidem redditum idem abbas et conuentus de Cupro sibi annuatim deberi dicebant de quibusdam domibus et terris sitis in villa de Perth quas magister Wilhelmus Dunstan et Michael dictus de Inchaffran ad feodofirmam tenent de dicto monasterio de Insula Wiffarum . Tandem licet monasterium predictum de Insula Wiffarum predictas domus et terras ab hujusmodi redditus cere prestatione liberas et immunes triginta et nouem annos et amplius possederent ac de jure vel possessione dictorum abbatis et conuentus de Cupro in hac parte sufficienter non liquerat interuenientibus tamen communibus amicis inter partes ipsas hujusmodi amicabile compoficio et specialis conuentio interuenit videlicet quod prefati abbas et conuentus de Cupro dictum annum redditum cere nunquam de cetero peterent vel petere poterunt predicti vero abbas et conuentus de Insula Wiffarum pro bono pacis et redemptione vexationis sue super redditu predicto supradictis abbati et

conuentui de Cupro et eorum monasterio reddent annuatim in perpetuum duas libras cunmini et duas libras piperis infra octauas natiuitatis beati Johannis baptiste in capella pontis de Perth . quod si dicti abbas et conuentus de Insula Wiffarum in solutione dicti redditus piperis et cunmini in totum vel partem cessauerint quod absit licebit prefatis abbati et conuentui de Cupro de licentia balliuorum domini regis de Perth qui pro tempore fuerint tam infra domus quam extra distringere et namos capere donec de dicto redditu et ejus arreragijs si que fuerint plene fuerit eis satisfactum . Ad hanc autem compositionem fideliter et sine fraude perpetuo obseruandam abbates predicti pro se et suis conuentibus juramento corporaliter et canonice interposito se et monasteria sua obligauerunt et ad maiorem hujus compositionis securitatem partes prenominate renuncianerunt in hac parte pro se et successoribus suis in perpetuum exceptioni doli et conditioni ex lege et sine causa vel iniusta causa beneficio restitutionis in integrum et nouarum constitutionum omnibus etiam inhibitionibus et constitutionibus et impetrationibus et literis tam regijs quam apostolicis et specialiter super bonis alienatis et distractis necnon graeijs indulgencijs et priuilegijs contra compositionem presentem impetratis et impetrandis ac omni actioni et exceptioni consuetudini et statuto necnon omni cauillationi et impugnationi ac omnibus auxilijs et remedijs tam juris quam facti quibus prefens compositio et ejus effectus possent impugnari vel infirmari seu impediri vel deferri . In cujus rei testimonium parti hujus cyrographi penes predictos abbatem et conuentum de Insula Wiffarum residendi appositum est sigillum commune predicti monasterij de Cupro parti vero cyrographi residendi [penes predictos abbatem et conuentum de Cupro] appositum est sigillum commune monasterij de Insula Wiffarum . Datum apud villam de Perth die natiuitatis sancti Johannis Baptiste anno gratie millesimo ccc^{mo} secundo .

Carta de capella de Wyfste de terra de Carynche et alijs quatuor denariatis terre .

- 50 **O**mnibus Christi fidelibus has literas inspecturis vel audituris Godfridus de Infula dominus de Wyft salutem in visceribus saluatoris . Nouerit vniuersitas vestra nos dedisse concessisse ac presenti [carta] confirmasse pro salute anime nostre et nostrorum predecessorum in honore sancte trinitatis et beate Marie virginis gloriose monasterio sancti Johannis euangeliste in Infula Wiffarum et conuentui eiusdem in puram et perpetuam elemosinam capellam sancte trinitatis in Wyft et totam terram de Karyuch et quatuor denariatas terre in Ylara inter Hufabost [et] Kanerrarach ciuitas sicut melius liberius honorificentius et vtilius Cristina filia Alani bone memorie vera heres et Reginaldus dictus W^rRodry verus dominus et patronus dictam capellam cum prefatis terris dictis monasterio et conuentui contulerunt . Nos vero volentes collationem et donationem eorundem firmam ac stabilem permanere easdem per presentes affirmamus ratificamus approbamus ac innouamus et sub ea forma videlicet quod noster dilectus ac specialis dominus Thomas sepedicti monasterij canonicus nomine dicti monasterij dictam capellam cum prefatis terris et omnibus suis pertinentijs integre pacifice et quiete possideat ac plenarie . In cuius rei testimonium sigillum nostrum presentibus apponi fecimus apud castrum nostrum de Elane t^yrim . vij . die mensis Julij anno domini millesimo ccc^{mo} octogesimo nono .

Litera testimonialis sayfine terre Bricij de Ardrossane .

- 51 **O**mnibus has literas visuris vel audituris Bricius de Ardrossan eternam in domino salutem . Noverit vniuersitas vestra me mea spontanea voluntate tradidisse abbati et conuentui de Infula Wiffarum plenariam sayfinam totius terre

mee quam ad feodofirmam tenui in territorio de Petlandy atque miffiffe **W**ielin et **W**artinum famulos meos quibus vero conceffi meam plenariam potestatem in hoc ad ponendum dictum abbatem vel suos procuratores vnum vel plures in plenariam fayfinam dicte terre mee de Petlandy faluis in omnibus domino feudi hijs que in carta inter me et ipsum confecta plenius continentur . In eujs rei testimonium literis presentibus figillum meum appofui vna cum figillo venerabilis domini Roberti dei gratia epifeopo Dunblanenfi . Datum apud Infulam **W**iffarum anno gratie **W**illelmo **ec**^{mo} feptuagesimo primo die fancti Andree apostoli .

Donatio quatuor marcarum annui redditus de terra de **W**ukrand .

- 52 **O**mnibus hoc feriptum vifuris vel auditoris **W**alicius comes de Stratheryn falutem eternam in domino . Nouerit vniuerfitas veftra me dediffe conceffiffe et hac presenti carta mea confirmaffe Deo et beate **W**arie et euidam capellano celebranti diuina in elemofinario de Infula **W**iffarum pro animabus anteefforum meorum et omnium fidelium defunctorum et pro anima Brieij de Ardrossane pro quieta clamatione terre de Buchaldy et de Lanyrký quam quidem terram dictus Brieius michi et heredibus meis post dies fuos quietam clamauit quatuor **W**areas argenti de firma terre que vocatur **W**ukrand perepiendas fingulis annis inperpetuum in liberam et perpetuam elemofinam de me et heredibus meis per manus firmariorum ejuſdem terre quicunque fuerint pro tempore in dicta terra commorantes ad fuſtentionem dicti capellani quicunque fuerit inperpetuum . Preterea do et concedo et hac carta mea confirmo domino capellano et fuecefforibus fujs in perpetuum in liberam et perpetuam elemofinam illam pertieulam terre quam prenomnatus Brieius de Ardrossane tenuit in villa de Dunblane que vocatur Tolauch per omnes rectas diuiſas fuas tenendam et habendam de me et heredibus meis dicto capellano et fuecefforibus fujs ad inueniendum calicem et ornamenta dicto

capellano . Item do et concedo potestatem abbati de Insula Wiffarum qui pro tempore fuerit cum capellanus aliquis qui ibidem celebrauerit diuina in fata discedit in periculo anime sue alium capellanum ydoneum constituendi predicto loco sine aliqua contradictione mei vel heredum meorum . Si autem contingat me vel heredes meos aliquo casu quod absit contra hanc donationem et concessionem venire subicio me et heredes meos interdictioni episcopi Dunblanenſis qui pro tempore fuerit renunciatis omni appellationi exceptioni cauillationi et omni iuris remedio canonici et ciuilis vt ipse per sententiam ecclesiasticam ad predictam donationem et concessionem fideliter inperpetuum obligandam me et heredes meos de die in diem compellat . Vt autem hec mea donatio et concessio perpetue firmitatis robur obtineat presens scriptum sigilli mei munimine roborauimus . Testibus domino . A . abbate de Insula Wiffarum . domino Gilberto de Ruthfen . Malicio filio comitis militibus . domino Nicholao persona de Creſe . Willelmo de Rothfen tunc camerario meo et multiis alijs .

Confirmatio terre Wukrand et vnus marce capellano celebranti in elemofinario .

- 53 Omnibus Christi fidelibus ad quos litere presentes peruenerint Bricius de Ardrossane eternam in domino salutem . Nouerit vniuersitas vestra me ratam et firmam ac stabilem quantum ad me pertinet habuisse collationem domini Walsij bone memorie quondam comitis de Stratheryn factam Deo et beate Marie et cuidam capellano celebranti diuina in elemofinario de Insula Wiffarum pro animabus dicti comitis et suorum antecessorum et pro anima mea et omnium fidelium defunctorum de quatuor marcis sterlingorum percipiendis singulis annis de firma terre de Wukracht inperpetuum in puram et perpetuam elemosinam prout in carta dicti comitis inde confecta plenius continetur et quia predictus comes terram de Tulach quam eidem capellano

et suis successoribus ad calicem et ornamenta ibidem inueniendum per prenominatam cartam donauerat et concefferat Deo et ecclesie Dunblanenſi de ordinatione ejuſdem loci epiſcopi poſtea mutata voluntate assignauit ego uero nolens pro defectu dictorum ornamentorum diuina officia in dicto elemofinario ceſſare ex mea mera voluntate do et preſenti carta confirmo pro ſalute anime mee et anteceſſorum meorum et dicti domini . **W** . comitis et ſuorum anteceſſorum ſepediſcto capellano et ſuis ſucceſſoribus in perpetuum vnam marcam argenti ad duos anni terminos ſcilicet medietatem ad penticoſten et aliam medietatem ad feſtum ſancti Martini in yeme percipiendam ſingulis annis de terra quam ad feodoſſimam teneo per cartam in territorio de Petlandy per abbatem et conuentum de Inſula Wiſſarum quibus dictam terram per eartam meam assignari . Volo etiam et concedo quod ſi dicta terra a predictis abbate et conuentu aliquo caſu ſeu occasione per aliquem fuerit eniſta quod heredes mei ſeu assignati ad quos quocunq; titulo terre mee tranſierint de iſſis terris predicto capellano et ſuis ſucceſſoribus ſingulis annis terminis ſupradictis dictam marcam argenti prout dictum eſt ſine contradictione aliqua perſoluant et ad hec eccleſiaſtica diſtrictione ſi neceſſe fuerit compellantur ita uidelicet quod cetera terre ad quemcunq; tranſierint pro preſtatione dicte marce remaneant in perpetuum obligate . In cujus rei teſtimonium huius literis preſentibus ſigillum meum appoſui . Hijs teſtibus domino Roberto dei gratia epiſcopo Dunblanenſi . domino A . eadem gratia abbate de Inſula Wiſſarum et ejuſdem loci conuentu . magiſtro Ricardo . magiſtro Gilberto . magiſtro J de Logy eccleſie Dunblanenſis canonicis . domino . J . decano . T . de Gorty et multis alijs . Datum apud Inſulam Wiſſarum anno gratie milleſimo cc^{mo} ſeptuageſimo primo die ſancti Clementis pape et martiris .

Confirmatio comitis Roberti cartarum primi Waleij et secundi Waleij quadraginta duarum marcarum de Dunyne .

54 **O**mnibus Christi fidelibus hanc cartam visuris vel auditoris Robertus fenescallus Scotie comes de Stratheryn salutem in domino sempiternam . Sciatis nos in curia nostra tenta apud Crefe octauo die mensis Maij anno domini millesimo ecc^{to} quinquagesimo octauo inspexisse et veraciter intellexisse ex prouida deliberatione boni consilij nostri cartas religioforum viro-
rum dominorum abbatis et conuentus de Insula Wiffarum de annuo reddito suo quadraginta duarum marcarum de thanagio de Dunyne dato et concessio eisdem religiosis per nobiles viros bone memorie Waleium primum et Walfium secundum quondam comites de Stratheryn predecessores nostros quas quidem cartas in omnibus punctis conditionibus articulis et circumstantijs suis forma pariter et effectu ratificamus approbamus et tenore presentis carte nostre pro nobis et heredibus nostris inperpetuum confirmamus . In cuius rei testimonium presenti earte nostre sigillum nostrum fecimus apponi Apud Perth in festo sancti Johannis Baptiste anno supradicto . Hijs testibus . dominis Johanne fenescallo fratre nostro . Hugone de Eglyntone . Thoma de Faufyde militibus . Wilhelmo Sympill . Wilhelmo de Weldom et multis alijs .

Ratificatio domini Johannis de Johnston de firma de Strathyn .

55 **O**mnibus hoc scriptum visuris vel auditoris Johannes de Johnston miles salutem eternam in domino . Noueritis me ratas et gratas habere ac firmas et stabiles tenere donationem et concessionem quas domina Maria sponsa mea monasterio de Insula Wiffarum et canonicis ejusdem de consensu meo fecerat de quadam portione annue pensionis centum solidorum argenti

quoad uixerit percipienda a dictis canonicis de tenemento suo de Strathý ad duos anni terminos prout in carta super hoc confecta plenius continetur . et ne donatio et concessio predicta ea occasione quod dicta Maria tempore dictæ donationis factæ mihi in lege conjugij fuerat [] aliquam inposterum paciatur calumpniam voluntatem meam et consensum meum expressum in hijs affuisse per presentes literas sigillo meo roboratas exprimo et declaro . Data apud Strathý in vigilia sancte trinitatis anno gratie millefimo octogesimo quarto .

Carta de Gilcrist Roch natiuo .

- 56 Omnibus hoc scriptum visuris vel audituris Johannes Cumýne filius bone memorie quondam domini Johannis Cumyne eternam in domino salutem . Nouerit vniuersitas vestra nos caritatis intuitu et pro salute anime nostre et animarum heredum nostrorum et antecessorum nostrorum dedisse ac quitumclamasse et hac presenti carta nostra confirmasse pro nobis et heredibus nostris in perpetuum Deo et beate Marie et sancto Johanni apostolo et euangeliste et viris religiosi abbati et canonicis monasterij de Insula Wistarum ibidem Deo seruientibus et in perpetuum seruituris in puram et perpetuam elemosinam Gilcrist Roch filium Gillethteny cum omni sequela sua ab ipso progressa et in perpetuum progressura et cum omni jure quod nos in ipso et in tota sequela sua habuimus vel aliquo tempore habere poterimus . et ad maiorem securitatem presenti scripto sigillum nostrum apposuimus . Datum apud Gasknes die lune proxima ante festum sancte Marie Magdalene anno gratie millefimo octogesimo octauo . Hijs testibus . dominis Willelmo et Alexandro fratribus nostris . dominis Nicholao de Wypount et Phillippo Olifard militibus . Alano clerico . Fergusio Wakenedy . Hugone fabro . Alano seruiente nostro et multis alijs .

Carta de Gilmory Makgillendes seruo .

57 **O**mnibus hoc scriptum visuris vel audituris Malisius comes de Stratheryn eternam in domino salutem . Nouerit vniuersitas vestra nos caritatis intuitu et pro salute anime nostre et animarum antecessorum nostrorum dedisse concessisse et hac presenti carta nostra confirmasse pro nobis et heredibus nostris Deo et ecclesie sancti Johannis euangeliste de Insula Wiffarum et canonicis ibidem Deo seruientibus et in perpetuum seruituris in puram et perpetuam elemosinam Gilmory Gillendes seruum nostrum cum tota sequela sua et nos et heredes nostri dictum Gilmory Gillendes vt supra dictum est dictis ecclesie et canonicis warrantizabimus inperpetuum . In cuius rei testimonium sigillum nostrum presenti carte nostre apposuimus . Hijs testibus domino Malisio filio comitis . Johachim de Kynbuk coelitibus . Gilberto fratre comitis . Nicholao rectore ecclesie de Cresse tunc camerario comitis . Alano cariscallo . Louryn Wak Gilferf et multis aliis . Data apud Kenmore die annunciationis beate Marie virginis anno dominice incarnationis millesimo cc^{mo} l^o octano .

Carta Johannis Starnes .

58 **O**mnibus hoc scriptum visuris vel audituris Malisius comes de Stratheryn salutem eternam in domino . Nouerit vniuersitas vestra me caritatis intuitu pro salute anime mee et antecessorum et successorum meorum dedisse et concessisse et hac carta mea quietumelamasse de me et heredibus meis in perpetuum Deo et beato Johanni apostolo et euangeliste et abbati et conuentui de Insula Wiffarum in puram et perpetuam elemosinam Johannem dictum Starnes filium Thome filij Thore cum tota sequela sua . concedo etiam pro me et heredibus meis in perpetuum ipsis abbati et conuentui omne jus

et clameum quod habeo in eodem Johanne vel prole ab ipso fuscitata vel habere potero aut heredes mei impofterim habere poterunt . prohibeo et omnibus hominibus meis ne aliquis eorum dicto Johanni vel alicui prolis sue moleftiam aut grauamen aut aliquod impedimentum inferre prefumat . In cujus rei testimonium prefenti fcripto figillum meum appofui . Data anno domini millefimo cc^{mo} l^{mo} octauo vij^o idus Maij . Teftibus domino Petro priore de Scona . Gilberto fratre meo . Gilberto de Morauia . Willelmo de Louetoft . Walifio filio Anecol . Alano marifcallo et multis alijs .

Carta de vno tofto et tribus acris in Kyntochir .

- 59 **R**obertus comes de Stratheryn omnibus hoc fcriptum vifuris vel audituris falutem . Nouerit vniuerfitas veftra me conceffiffe et hac mea carta confirmaffe Deo et beate Marie et beato Johanni apoftolo et euangelifte et abbati et conuentui de Infula Wiffarum illas fex acras terre quas Nigellus de Lutoft eis dedit in territorio de Dolpatryik et illud toftum et illas tres acras terre quas Henricus filius Treftram dedit eis in villa fua de Kyntochir cum communi pafcura quinque vaccarum et vnus equi et cum omnibus aliis communibus ayfiamenis ejufdem ville ad tantam pertinentibus terram . que videlicet predicta prenominati Nigellus et Henricus ultimum fuum facientes teftamentum memoratis abbati et conuentui pro redemptione animarum fuarum in perpetuam et liberam ab omni feruicio diuiferunt elemofinam . quare volo vt ipfi abbas et conuentus toftum predictum et acras predictas cum prefatis pertinentijs teneant et poffideant in perpetuum libere et quiete ab omni feruicio et exactione feculari . Hijs teftibus domino Ricardo milite meo . dompno W . et R . capellanis meis . B . de Dunyne . G . de Morauia . W . Clemente . P . Coco . B . de Kyntochir . R . decimario et multis alijs .

Carta terre de Rath .

60 **R**obertus comes de Stratheryn omnibus hoc scriptum visuris vel audituris salutem . Sciant presentes et futuri me dedisse et concessisse et hac carta mea confirmasse Deo et beate Marie et beato Johanni apostolo et euangeliste de Insula Wiffarum et abbati et canonicis ibidem Deo seruientibus et seruientibus in puram et perpetuam elemosinam terram que dicitur Rath scilicet quartam partem totius Dunfallyn cum omnibus iustis pertinentijs suis in bosco et plano in pratis et pasenis in moris et maresijs in aquis et molendinis et cum communi pastura et omnibus aliis communibus ayfiamentis terrarum mearum prenominate terre vicinarum . Tenendam de me et heredibus meis libere et quiete ab omni seruicio et exactione seculari excepto solummodo auxilio domini regis quando scilicet ipse dominus Rex commune auxilium super totum regnum posuerit ego vero et heredes mei totum reliquum forinsecum seruicium domini Regis quod ad illam terram pertinet pro eis perpetuo faciemus . Hjs testibus . Abbraam Dunblanenfi episcopo . domino Fergusio et Walfio fratribus meis . G . archidiacono . Walfio senescallo meo . Wakbeth iudice et multis alijs .

Carta Roberti de Wexfen de duobus toftis et quatuor acris de Dolpatrik .

61 **O**mnibus sancte matris ecclesie filiis presens scriptum visuris vel audituris Robertus de Wexfen salutem . Sciant presentes et futuri me ex assensu domine Soline vxoris mee et liberorum nostrorum dedisse et concessisse et hac carta mea confirmasse Deo et beate Marie et beato Johanni apostolo et euangeliste de Insula Wiffarum et abbati et conuentui ejusdem loci in puram et perpetuam elemosinam duo tofta et quatuor acras terre in villa de Kenaudhem que ab alio nomine dicitur Dolpatrik videlicet toftum in quo Alanus

de Kýntoehyr manfit eo ipfo quo hanc cartam meam eis dedi cum aera que pertinet ad idem toftum tempore predicto et cum edificijs que tunc erant super idem toftum et toftum et terram que tunc jacuerunt inter domum Ricardi et domum Walfnacht et illam terram quam addidi eis alibi in agro ad perficiendum predictas quatuor marcas [*acras*] et pasturam viginti vaccarum et sexaginta ouium et duorum equorum cum omnibus alijs communibus ayfiamentis prenominate ville Dolpatrik . Tenenda fibi et possidenda de me et heredibus meis plenarie et honorifice et libere et quiete ab omni exactione et seruicio fecculari ego vero et heredes mei prefatam elemofinam predictis abbati et conuentui contra omnes homines warrantizabimus et totum forinfecum seruicium quod ad jam dicta pertinuerit pro eis in perpetuum acquietabimus . Hijs testibus domino . R . comite de Stratheryn . domino ff . fratre ipsius . domino R . de Lonetoft . predicta domina Solina vxore mea . Philippo et Roberto filijs meis . magistro C . clerico predicti comitis . B . de Dunyn . magistro H . filio Treftram . Treftram de Gorty et multis alijs .

Carta de Petlandy pro quatuor acris .

- 62 Omnibus sancte matris ecclesie filijs prefens scriptum visuris vel audituris Lucas filius Tebaldy filij Willelmi eternam in domino salutem . Sciant omnes tam presentes quam futuri me caritatis intuitu et pro salute anime mee et antecessorum meorum et successorum dedisse concessisse et hac presenti carta mea confirmasse deo et beate Marie et beato Johanni apostolo et euangeliste et abbati et conuentui de Insula Wiffarum et luminari majoris altaris sancte Marie ejusdem ecclesie in puram et perpetuam elemofinam totam illam perticulam terre in terra mea de Petlandy que jacet inter terram quam pater meus et ego dictis abbati et conuentui caritatiue contulimus in terra que vocatur Flechirflat et viam magnam que vadit et tendit versus

Buthnŷ et ſic per illam viam verſus aquilonem vſque ad terram de Dun-
duſ quam Bricius de Ardroſſane quondam de me et heredibus meis ad
feodoſfirmam tenuit vna cum illa perticula terre que ſe extendit ab oriente
verſus occidentem vſque ad rivulum illum qui currit inter Petlandŷ et
Pethmane que quidem perticula terre continue continet in ſe quatuor acras
terre et aliquantulum plus et cum braſina totius terre de Petlandŷ . Tenen-
das et habendas ſibi et ſucceſſoribus ſuis de me et heredibus meis in per-
petuum cum communi paſtura octo vaccarum et duorum equorum et cum
omnibus aſſiamentis infra villam de Petlandŷ et extra in boſco et plano paſ-
cuis moris et marreſſijs bruarijs petarijs ſtagnis aquis et molendinis et ceteris
aſſiamentis omnibus ad terram de Petlandŷ ſpectantibus vel ſpectare valenti-
bus libere quiete plenarie et honorifice ita quod omnes ſupradicte perticule
terre tam de dono patris mei quam de dono meo quam de dono Bricij de
Ardroſſane eiſdem religioſis conſenſu meo et aſſenſu facto de terra de Dun-
yduſ ſimul ſine aliquo retenemento jaceant continue in perpetuum . Ego
vero Lucas et heredes mei hanc eandem elemoſinam dictis religioſis per
me collatam de predicta terra paſtura et braſina cum omnibus aſſiamentis
vt predictum eſt contra omnes homines et feminas warantizabimus et
defendemus in perpetuum et liberam et quietam ab omni onere exactione
et ſervicio ſeculari omnino faciemus . Ego etiam donationem patris mei
predictis religioſis de vno toſto et duabus acris terre et quadam paſtura
ſecundum quod plenius et melius continetur in carta quam dicti abbas
et conventus a dicto . B . patre meo exinde habent conſectam vna cum
terra de Dunyduſ quam habent de dono Bricij de Ardroſſane aſſenſu et
conſenſu meo facto eiſdem pro me et heredibus meis inperpetuum ratifico
et confirmo . In cujus rei teſtimonium huic ſcripto ſigillum meum appoſui .
Hijs teſtibus domino Roberto dei gratia epifcopo Dunblanenſi . magiſtro
Thoma ejuſdem eccleſie decano . magiſtro Rieardo de Streynllŷn ejuſdem
eccleſie canonico . domino . N . rectore eccleſie de Creſe . dominis . G . et
· Y . de Comrŷ et de Buffyder perſonis . magiſtro Rogero de Strathburgh

clerico domini Regis . Henrico firmario dicto Symone Johanne et Hugone filijs dicti Henrici . Willelmo clerico . Gillefelan iudice . Rogero filio Jacobi cimentarij . Petro filio dicti cimentarij . Rogero et Jacobo filijs Wgena . Bricio dapifero et multis alijs .

Carta terre in tenemento de Rossy .

63 Omnibus Christi fidelibus prefens scriptum visuris vel auditoris Walisius filius . G . quondam comitis de Stratheryn omnes eternam in domino salutem . Nouerit vniuersitas vestra me caritatis intuitu pro salute anime mee et antecessorum meorum et Walisij filij mei et heredum meorum et ceterorum successorum meorum dedisse concessisse et hoc presenti scripto confirmasse Deo et beate Marie et beato Johanni apostolo et euangeliste de Insula Wiflarum et abbati et conuentui ejusdem loci et eorum successoribus in puram et perpetuam elemosinam illam perticulam terre in tenemento de Rossy per illas metas per quas ego coram fidedignis in propria persona perambulau . scilicet . a petario de Rossy qui Scotice dicitur Pethach sicut riulus dicti petarij descendit versus orientalem partem vsque ad viam que se extendit de Strathyn vsque ad Rossy et sic per illam viam versus austrum vsque ad aseruum lapidum per me [factum] ibidem et sic similiter vsque ad alium aseruum per me factum et sic versus occidentalem partem per albam metam scilicet paruam semitam vsque ad dictum petarium et sic versus aquilonalem partem vsque ad exitum dicti riuli dicti petarij que quidem perticula terre continueate continet in se tres acras terre et amplius . Tenendam et habendam sibi et suis successoribus et eorum assignatis de me et heredibus meis in puram et perpetuam elemosinam libere et quiete in perpetuum cum pastura duodecim vaccarum et viginti ouium et vnus equi vna cum assiameto fumendi in dicto petario singulis annis viginti karucas petarum vel si maluerint quater viginti onera equorum cum ceteris assia-

mentis omnimodis infra villam et extra prout liberius et quiecuis aliquis miles aliquam elemofinam in toto regno Scotie dare vel concedere poffit . Ego vero dictus . **W** . miles et heredes mei hanc elemofinam predictis religiofis et eorum fucefforibus collatam contra omnes homines et feminas in perpetuum warantizabimus protigemus et defendemus atque liberam et quietam ab omni onere exactione et demanda feculari et feruicio penitus faciemus et obferuabimus . In cuius rei teftimonium huic fcripto figillum meum appofui . Hijs teftibus domino Patricio de Graham . domino . **N** . rectore ecclefie de Creffe filio meo . magiftro Thoma decano Dunblanenfis ecclefie . magiftro Ricardo de Strýnyllyn ejuſdem ecclefie canonico . domino . **G** . perfona de Comrý . domino . **J** . perfona de Buffyddir . domino Donaldo decano de Wethell . Willelmo clerico et multis alijs .

Carta de lapidicina .

64 **O**mnibus prefentes literas viſuris vel auditoris . **W** . comes de Stratherýn falutem in domino . Noueritis nos dediſſe et conceſſiſſe et hac carta noſtra confirmaſſe pro nobis et heredibus noſtris in puram et perpetuam elemofinam Deo et beate Marie et beato Johanni apoſtolo et euangelifte et religiofis uiris abbati et conuentui de Infula Wiſſarum caritatis intuitu et pro falute anime noſtre et anteceſſorum noſtrorum licenciam et poteſtatem inperpetuum fodiendi et ſecandi lapides in lapidicina noſtra et terra noſtra de Nethirgask ad eccleſiam ſuam et officinas ſuas ac omnia edificia in dicto monaſterio pro voluntate ſua conſtruenda . Conceſſimus etiam eiſdem per totam terram noſtram de Nethirgask liberum tranſitum ad predictam lapidicinam introitum in eandem et liberum exitum cum hominibus animalibus quadrigis vecturis quibuſcuque lapides ducentibus ſeu portantibus et duas acras terre dicte lapidicine ex parte occidentali proximo adjacentes vt ibidem lapides quos poſſint colligere et domum in qua eoſdem incidant

pro voluntate sua edificare et de residuo duarum aerarum pro voluntate sua disponere . In cuius rei testimonium sigillum nostrum presentibus fecimus apponi . Hijs testibus domino Gilberto de Rothsen . domino Joachim de Kynbuk . magistro Ricardo de Streuyllyn cancellario domini comitis . Lorn Mac Gilherue . Jacobo persona de Buffidir et multis alijs . Data apud Creffe in crastino beati Martini in yeme anno gratie millesimo cc^{mo} sexagesimo sexto .

Carta de Abircarny .

- 65 **O**mnibus sancte matris ecclesie filijs prefens scriptum visuris vel auditoris Yfenda sponsa comitis Gilberti de Stratheryn salutem . Sciatis me diuine caritatis intuitu per assensum prenominati comitis domini mei dedisse et concessisse et hac carta mea confirmasse abbati et canonicis de Insula Wiffarum quinque aeras terre in villa mea de Abircarny illam scilicet terram quam eisdem abbati et canonicis probis hominibus presentibus perambulauit uidelicet domino Ricardo milite et Galfrido de Gask fratribus meis Henrico et Treffram filijs Treffram Willelmo clerico et multis alijs . Tenendas sibi in perpetuam elemosinam libere et quiete ab omni seruicio et exactione seculari cum communi pastura duodecim vaccarum et duorum equorum et cum omnibus alijs ayfamentis ejusdem territorij ad tantam terram pertinentibus . In cuius rei testimonium quum eo tempore quo hec carta facta fuit sigillum proprium non habui huic scripto sigillum domini Abrahe Dunblanenensis episcopi qui hujus donationis testis est quod ad hoc ipse mihi accomodauit apposui . vt hec autem mea donatio in perpetuum rata et inconcussa habeatur hanc cartam prenominator comes dominus meus in signum sui consensus sigilli sui appositione roborando confirmauit . Hijs testibus domino Abbraam Dunblanenfi episcopo . G . archidiacono de Stratheryn . W . fenecallo comitis . Wakbeth iudice . T . filio Arnaldi et multis alijs .

Carta de vno crofto et tofto in Petlandy .

66 **O**mnibus Christi fidelibus prefens fcriptum vifuris vel auditoris Lucas filius Teobaldi de Petlandy eternam in domino falutem . Nouerit vnuerfitas veftra me pro falute anime mee et fponfe mee et antecessorum meorum et fuccefforum dediffe conceffiffe et prefenti carta confirmaffe Deo et beate Marie et faucto Johanni apostolo et euangelifte de Infula Wiffarum necnon abbati et conventui ejufdem loci vnum croftum et toftum que funt in tenemento meo de Petlandy propinquiora jacentia ante oftium domus mee ex parte aquilonari magne vie que venit ad ecclefiam de Fowlis per quam itur verfus Butlny videlicet a vado ex parte aquilonari domus mee et fic afcendendo per dictum riululum vfque ad magnum lapidem juxta dictum riululum et fic verfus orientalem partem vfque ad terram Martini generi mei et fic defcendendo verfus meridionalem partem vfque ad dictam magnam viam et fic per eandem viam vfque ad predictum vadum que quidem perticula terre continet in fe quartam partem vnus aere in puram et perpetuam elemofinam vna cum brafina totius territorij de Petlandy et omni jure brafine et cum omnibus alijs juribus ayffiamendis infra villam et extra ad dictam terram de Petlandy fpectantibus vel fpectare valentibus fine aliquo retenemento in bosco et plano in moris et carrefijs petarijs et bruarijs . Tenenda et habenda fibi et fuccefforibus fuis et affignatis et eorum heredibus de me et heredibus meis vna cum dicta bracina totius terre de Petlandi et omni jure brafine in puram et perpetuam elemofinam libere et quiete ab omni fecolari fercicio inperpetuum . ego vero Lucas et heredes mei dicta toftum et croftum vna cum dicta bracina et omni jure brafine et omnibus alijs pertinentijs ficut predictum eft dictis viris religiofis et eorum fuccefforibus contra omnes homines warantizabimus protigemus et defendemus in perpetuum et ut hec mea donatio et carte mee confirmatio robur firmitatis et ftabilitatis in omni optineat prefentem cartam

mean figilli mei impressione roborauī . Hījs testibus magistro Thoma
decano ecclesie Dunblanenſis . dominis G . et J . de Cumrȳ et de Buſſydir .
domino Mauricio capellano tunc maioris comitiſſe de Stratheryn . Henrico
filio Walcolmi . Mauricio dicto Kuyē . Petro dicto Parkare . Vttig fabro de
Strencllyn . Rogero dicto de Dunſallyn et multis alijs .

Carta de decem acris in villa de Gaſk .

67 Saherus de Quiney comes Wintonie omnibus Chriſti fidelibus hoc
ſcriptum viſuris vel audituris ſalutem . Nouerit vniuerſitas veſtra me pro
ſalute mea et antecęſſorum meorum dediſſe et confirmaſſe in puram et
perpetuam elemoſinam Deo et beate Marie et eccleſie de Inchaffray et
canonicis ibidem Deo ſeruientibus decem acras terre in territorio de Gaſk
illas ſcilicet decem acras quas Willelmus de Selfurd ſeneſcallus meus et
Willelmus de Foreſ et Willelmus clericus et Morinus le Mar [et] Adam
Rufus perambulauerunt eis per preceptum meum habendas et tenendas in
perpetuum libere et quiete ab omni ſeculari ſeruicio et exactione . Dedi
etiam eis paſturam decem vaccarum in communi paſtura de Gaſk et vt
hec mea donatio rata et inconcuſſa permaneat eam figilli mei appoſitione
roborauī . Sciendum etiam quod hec predicta dedi eis in eſcambium . vij .
acrarum terre quas idem canonici calumpniauerunt verſus me . His testibus

.

Hic incipiunt carte et confirmationes omnium ecclesiarum monasterio Insule
Wissarum pertinentium .

Imprimis carta Gilberti comitis de ecclesia de Waddirnyne .

- 68 **G**ilbertus comes de Stratheryn omnibus amicis et hominibus suis salutem .
Sciatis me dedisse et concessisse et hac mea carta confirmasse Deo et ecclesie
sancti Johannis evangeliste de Inchaffryn et eidem ecclesie seruientibus et
seruituris ecclesiam de Waddirnyne cum omnibus iustis pertinentijs suis
in puram et perpetuam elemosinam pro anime mee salute et vxoris mee
et pro animabus antecessorum meorum et salute liberorum meorum . Tenen-
dam ita libere quiete plenarie et honorifice sicut aliqua ecclesia in toto
regno Scotie ab aliquibus religiosis liberior quicquid plenarius tenetur
et honorificentius . Hiji testibus Walfio fratre meo . Watile comitissa .
Willelmo et ftereth et Roberto filijs meis . Gillenem dapifero nostro et
Walfio filio ejus . Gilberto milite . Abraam capellano . Bricio persona de
Crete . Constantino iudice . Anechol theino meo .

Alia carta de eadem ecclesia .

- 69 **G**ilbertus comes de Stratheryn omnibus hoc scriptum visuris vel audituris
salutem . Sciant tam presentes quam futuri me dedisse et concessisse et hac
carta mea confirmasse Deo et sancto Johanni apostolo de Inchaffray et
canonicis ejusdem loci eorumque successoribus pro Dei amore et pro salute
anime mee et vxoris mee et antecessorum et heredum meorum ecclesiam sancti
Ethirvani de Waddyryn cum omnibus iustis pertinentijs suis in decimis
et oblationibus et obuentibus omnimodis cum terra ad eandem ecclesiam
pertinente et cum communi pastura ceterisque ayfiamenis omnimodi-

ad predictam ecclesiam pertinentibus in puram et perpetuam elemosinam ad habendam tenendam et possidendam de me et heredibus meis in perpetuum ita libere quiete plenarie et honorifice sicut aliqui religiosi in toto regno Scotie aliquam ecclesiam liberius quietius plenarius et honorificentius habent tenent et possident . Hijs testibus Walfio fratre meo . Matilde comitissa . Willelmo fterteth Roberto filijs meis . Gillenem dapifero meo et Walfio filio ejus . Gilberto coilete . Abraam capellano . Bricio persona de Crese . Constantino iudice . Auechol theino meo et cõultis alijs .

Confirmatio super ecclesia de Waddirdyn per J . episcopum secundum .

70 Johannes dei gratia ecclesie Dunkeldensis episcopus vniuersis sancte matris ecclesie filijs eternam in domino salutem . Sciant presentes et futuri nos concessisse et hac carta nostra confirmasse in redemptionem anime nostre et successorum nostrorum Deo et sancte Marie et sancto Johanni apostolo de Insula Wiffarum et . J . priori et omnibus in eadem Insula sub religione Deo seruientibus et seruituris ecclesiam de Waddyrdyne cum omnibus iustis pertinentijs suis in liberam et perpetuam elemosinam . Tenendam ita libere et quiete plenarie et honorifice sicut aliqua ecclesia in nostro episcopatu liberius quicquid plenius et honorificentius religiose domui conceditur et possidetur et sicut carta episcopi Johannis predecessoris nostri testatur salvo jure episcopali . Hijs testibus Magistro Henrico archidiacono nostro . Duncano decano Atholie . Eugenio clerico . G . et Willelmo capellanis nostris . Magistro Roberto clerico nostro . Willelmo fenescallo nostro . Michaele persona de Methsen et multis alijs .

Confirmatio Hugonis episcopi super ecclesia de Waddirdyne .

- 71 **H**ugo dei gratia Dunkeldensis episcopus omnibus sancte matris ecclesie filiis eternam in domino salutem . Nouerit vniuersitas vestra nos concessisse et hac carta nostra confirmasse dilectis in Christo filiis domino abbati de Inchaffray et canonicis ibidem Deo seruientibus et seruituris ecclesiam de Waddyrdyne cum omnibus iustis pertinentijs suis ita libere et quiete plenarie et honorifice sicut carta donationis quam dedit eisdem canonicis pie memorie Johannes primus predecessor noster testatur cum eadem ecclesia de Waddyrdyne ad donationem episcoporum Dunkeldensium qui veri dinoscuntur esse patroni pertineat . Nos autem qui licet hora undecima sumus inter operarios vine domini Saboth a summo patrefamilias euangelico vocati quamuis religio in nobis minus sit sufficiens et vera eam tamen in alijs pie conseruare et religiosos honorabiliter tractare debemus donationem memorati domini Johannis predecessoris nostri necnon et confirmationes bone recordationis Ricardi et Johannis secundi predecessorum nostrorum super prefata ecclesia de Waddirdyn latius et benignius interpretantes de consilio et assensu capituli Dunkeldensis predictis abbati et canonicis eorum tenuitati et paupertati compatientes concedimus et hac carta nostra confirmamus vt omnes prouentus predicte ecclesie de Waddyrdyn in vsus suos proprios pro sue voluntatis arbitrio libere conuertant . presbiteros tamen in eadem ecclesia pro tempore instituendos nobis et successoribus nostris presentent qui nobis et successoribus nostris de spiritualibus respondeant saluo etiam in omnibus jure episcopali . Vt autem hec nostra concessio inperpetuum firma rata et inconcussa permaneat tam nos quam capitulum ipsum in signum assensus sui sigilla nostra apposuiimus . Hijs testibus magistro Henrico archidiacono nostro . Gilberto capellano . Willemo capellano . magistro Roberto de Raparlaw . magistro Johanne de Hetoun . Adam de prebenda . Willemo de Clonny canonicis Dunkeldensibus . Mathewo decano . Eugenio perso

de Cloný · Hugone et Abrahaam capellanis noſtris · Berengario Alano clericis noſtris et cõultis alijs ·

Confirmatio Willelmi regis ſuper eccleſia de Waddirdyn ·

- 72 **W**illelmus Dei gratia rex Scottorum omnibus probis hominibus totius terre ſue clericis et laicis ſalutem · Sciant preſentes et futuri me conceſſiſſe et hac carta mea confirmaffe Deo et eccleſie ſancti Johannis euangelifte de Inchaffryn et viris religioſis ibi Deo ſeruientibus et ſeruituris donationem illam quam Gilbertus comes de Stratheryn eis rationabiliter fecit de eccleſia de Waddirdyne cum omnibus juſtis pertinentijs et de eccleſia ſancti Beani de Kynkell cum omnibus juſtis pertinentijs ſuis et de eccleſia ſancti Wacefflok de Ouchtirardor cum omnibus juſtis pertinentijs ſuis · Tenendas in liberam et puram et perpetuam elemoſinam cum omnibus ad predictas eccleſias juſte pertinentibus ita libere et quiete plenarie et honorifice ſicut carta predicti comitis Gilberti juſte teſtatur · Teſtibus Ricardo de prebenda clerico meo · Willelmo capellano meo · Alano filio Rolland conſtabulario · Waleolmo filio comitis Dunecani · Walfio filio comitis ſferteth Willelmo · Galfrido · Roberto · Crach · Alexandro vicecomite de Streuyllyn · Radulpho camerario · Henrico de Kynroſſi · Ricardo filio Hugonis · Philippo carifcallo · Willelmo de Worauia · Allexandro filio Thore · Apud Streuyllyn decimo tertio die Auguſti ·

Confirmatio regis Willelmi ſuper terris de Ardenny Achlonxieli Duffindir Waddirdyn ·

- 73 **W**illelmus dei gratia rex Scottorum omnibus probis hominibus totius terre ſue clericis et laicis ſalutem · Sciant preſentes et futuri me conceſſiſſe et hac

carta mea confirmasse Deo et ecclesie sancti Johannis apostoli et euangeliste de Inchafrýn et canonicis ibidem Deo seruientibus et seruituris donationem illam quam comes Gilbertus de Stratherýn eis rationabiliter fecit de tota terra de Ardewný per rectas diuifas suas et cum omnibus iustis pertinentijs suis et de tota terra de Achlongsieh per rectas diuifas suas et cum omnibus iustis pertinentijs suis et de tota terra de Duffindir per rectas diuifas suas et cum omnibus iustis pertinentijs suis et de illa terra de Waddirdýn que antiquitus Abthen vocabatur per rectas diuifas suas et cum omnibus iustis pertinentijs suis . Tenendam in liberam puram et perpetuam elemosinam per rectas diuifas predictarum terrarum et cum omnibus ad predictas terras iuste pertinentibus ita libere et quiete plenarie et honorifice sicut carta predicti comitis Gilberti iuste testatur . ita tamen quod predictus comes et heredes sui facient mihi et heredibus meis de residuo de Waddirnýn totum seruicium quod mihi debetur de toto feodo de Waddirnýn . Testibus Willelmo episcopo Glasguensi cancellario meo . Philippo de Valans camerario meo . Willelmo Cummyñ . Willelmo Giffart . Thoma de Colluille . Allexandro vicecomite de Streuyllyn . Ricardo de Camera . Herberto de Camera . Dauid de Haia . Philippo de Lundyn . Thoma Hostiario . Apud Streuyllyn quinto die Aprilis .

Confirmatio episcopi Dunkeldensis Galfridi super ecclesia de Wadirnýn et terra de Abthan de Waddirnyn .

- 74 **V**niversis sancte matris ecclesie filijs prefens scriptum visuris vel audituris Galfridus diuina permissione Dunkeldensis episcopus eternam in domino salutem . Noueritis nos ad plenum inspexisse bone memorie Johannis primi Ricardi Johannis secundi Hugonis et Gilberti predecessorum nostrorum episcoporum scilicet Dunkeldensium donationes concessiones et confirmationes monasterio de Inchafrýn quod Insula Wiffarum dicitur et canonicis

ibidem Deo feruientibus et feruituris factas super ecclesia de Waddirdyn cum omnibus pertinentijs suis et super terra que Abthlen de Waddirdyn dicitur et super quicta clamacione de Can et Conuethi que clerici Dunkeldenses antiquitus de eadem Abthlan percipere consueuerunt . et cum de iure non possemus nec vellemus eorum facto honesto iniuste contraire nec pias eorum collationes pauperi monasterio in prima sui fundacione factas infirmare nos eodem spiritu pietatis ducti quo et illi de consensu et assensu capituli ecclesie Dunkeldensis donationes concessiones et confirmationes dicte ecclesie de Waddirdyn et predictae Abthane et supradictam quietam clamacionem eisdem canonicis factas ratas et gratas habentes concedimus et in perpetuum confirmamus salua nobis et successoribus nostris vna tantummodo marca argenti annuatim de eadem Abthayn pro omni exactione consuetudine et seruicio seculari ad nos pertinenti persoluenda ad duos terminos scilicet medietate ad pentecosten et medietate ad festum sancti Martini sicut in predictorum episcoporum autenticis inuenimus contineri . concedimus etiam abbati et canonicis prefati monasterij et eorum successoribus in perpetuum vt predictam ecclesiam de Waddirdyn in bonis temporalibus omnimodis in vsu suos proprios pro sue voluntatis arbitrio conuertant faciendo eandem ecclesiam per ydoneum capellanum vel si maluerint per aliquem clericum de suo collegio deferuiri saluis episcopalibus . In cuius rei testimonium huic scripto sigillum nostrum apposuimus . Data apud Dunkeldyn anno gratie millesimo ccc^{mo} trigesimo octauo pridie kalendas Januarij pontificatus nostri anno tertio . Testibus domino Adam de prebenda decano ecclesie Dunkeldensis . magistro Petro de Castro . Theodorico ejusdem ecclesie precentore . magistro Wilhelmo de Edynham ejusdem sedis archidiacono . domino Roberto thesaurario domino Wilhelmo subdecano . domino Waleolmo succentore . magistro Roberto de Layceffria canonico nostro et alijs .

Quita clamatio cani et conueti de Waddiryn .

- 75 **H**ugo dei gratia Dunkeldensis episcopus omnibus prefens scriptum visuris vel auditoris eternam in domino salutem . Nouerit vniuersitas vestra nos caritatis et diuine pietatis intuitu remisisse et in perpetuum quitum clamasse abbati et canonicis de Insula Wiffarum eanum et conuetum quod clerici ecclesie Dunkeldensis percipere consueuerunt apud Waddirdyn qui Scotice dicitur Abthan . Ad hujus autem quite clamationis robor perpetuum huic scripto sigillum nostrum apposuius . Teste capitulo Dunkeldensi .

Carta Johannis episcopi primi de Abthan .

- 76 **J**ohannes dei gratia episcopus Dunkeldensis vniuersis sancte matris ecclesie filijs ad quos litere iste peruenerint salutem . Sciant omnes presentes et futuri nos dedisse concessisse et hac carta nostra confirmasse Deo et ecclesie sancti Johannis de Inchaffryn et fratribus ibidem Deo seruientibus et seruituris terram nostram in Waddyryn que terra vocatur Abthane per suas rectas diuisas cum omnibus iustis pertinentijs suis ad petitionem comitis . G . de Stratheryn et fratris ejus W . in redemptione anime nostre et antecessorum nostrorum et predicti comitis . G . et suorum . Tenendam predictis fratribus et eorum successoribus in liberam et perpetuam elemosinam Reddendo nobis et successoribus nostris annuatim vnā maream argenti scilicet dimidium ad pentecosten et dimidium ad festum sancti Martini . Volumus itaque et precipimus vt iidem fratres predicti et eorum successores predictam terram teneant et possideant de nobis et successoribus nostris ita libere quiete plenarie et honorifice ab omni exactione et consuetudine et seruicio seculari ad nos pertinente in bosco et plano in pratis et pascuis in aquis et molen-

dinis et in omnibus alijs ayflamentis ad eandem terram pertinentibus ficut aliqua terra in epifcopatu noſtro liberius plenius et honorificentius tenetur et poſſidetur ſalua duntaxat predicta pencione . Teſtibus hijs Johanne archidiacono de Stratherŷn . G . comite de Stratherŷn et fratre ejus . W . Reginaldo et fratre ejus Stephano capellanis noſtris . Roberto et Petro capellanis de Tybirmore . Bernardo et Ricardo capellanis de Cargill . magiſtro H . et W . de Lockett' clericeis noſtris . Valant' pineerna . Roberto et Simone nepotibus noſtris . Petro de Camera . Roberto Ferrone . Galfrido Hoſiario . Ratulfo Gerunŷ . Hamone Coco . Joſep et alijs multis .

Confirmatio Hugonis epifcopi de Abthan de Wadirnŷn .

77 **H**ugo dei gratia epifcopus Dunkeldenſis vniuerſis ſancte coſtris eccleſie filijs ſalutem . Sciant omnes preſentes et futuri nos conceſſiſſe et hae carta noſtra confirmaffe Deo et eccleſie ſancti Johannis de Inchaffrŷn et fratribus ibidem deo ſeruiantibus et ſeruituris terram noſtram in Waddyrnŷne que terra vocatur Abthen per ſuas rectas diuiſas eum omnibus juſtis pertinentijs ſuis . Tenendam de nobis predictis fratribus in perpetuum reddendo nobis et ſucceſſoribus noſtris annuatim vnam coaream argenti ſcilicet dimidium ad penticoften et dimidium ad feſtum ſancti Martini . Volumus itaque vt idem fratres predictam terram teneant et poſſideant de nobis et ſucceſſoribus noſtris ita libere et quiete plenarie et honorifice ab omni exactione et conſuetudine et ſericio ſeculari ad nos pertinente in boſeo et plano in pratis et pascuis in aquis et molendinis et in omnibus alijs ayflamentis ad eandem terram pertinentibus ficut aliqua terra in epifcopatu noſtro . liberius plenius et honorificentius tenetur et poſſidetur ſalua duntaxat predicta pencione . Teſtibus hijs magiſtro Henrico archidiacono noſtro . magiſtro Roberto de Rapereſlaue . magiſtro Johanne de Hetonn . Adam de Prebenda . Gilberto capellano de Aberlauey canonicis Dunkeldenſibus . Ewgenio perſona

de Clonyn · Bernardo capellano de Kergill · Hugone Abraham capellanis
nostris · Berengario et Alano clericis nostris et multis alijs ·

Carta ecclesie de Waddirdyn confirmatoria G · episcopi ·

- 78 Vniuersis sancte matris ecclesie filijs prefens scriptum visuris vel audituris
· G · miseratione diuina ecclesie Dunkeldensis minister humilis eternam
in Christo salutem · Nouerit vniuersitas vestra nos diuine pietatis intuitu
concessisse et hac carta nostra confirmasse carissimis in Christo filijs dominis
abbati et conuentui de Insula Wiffarum ecclesiam de Waddirdyn cum
omnibus iustis pertinentijs suis et terram que Abthen de Waddirdyn dicitur
cum omnibus pertinentijs suis · Tenendas sibi et successoribus suis de nobis et
successoribus nostris in perpetuum in vsus suos proprios prout in cartis
venerabilium Johannis Ricardi Johannis Hugonis predecessorum nos-
trorum plenius dicitur contineri · ratam et gratam habentes pro nobis et
successoribus nostris quitam clamationem [quam] tam venerabilis predictus
· H · quam capitulum Dunkeldense prefatis abbati et conuentui caritatiue
fecerunt · Vt hec autem nostra concessio confirmatio necnon et ratihabicio
futuris temporibus inuiolata permaneat huic scripto sigillum nostrum appo-
suimus · Testibus dominis Thoma et · R · capellanis nostris · magistro · W ·
Johanne · R · camerario · H · clericis nostris · W · decano · A · H · R ·
Willelmo seruientibus nostris et multis alijs ·

Confirmatio Ricardi episcopi de Abthen de Wadiryn ·

- 79 Ricardus Dei gratia Dunkeldensis episcopus vniuersis sancte matris ecclesie
filijs salutem · Sciant presentes et futuri nos concessisse et hac carta nostra
confirmasse Deo et ecclesie sancti Johannis apostoli de Inchaffryn et fratribus

ibidem Deo feruientibus et feruituris terram nostram in Waddirnyū que terra vocatur Abthen per suas rectas diuisas cum omnibus iustis pertinentijs suis ad petitionem Gilberti comitis de Stratheryn et fratris ejus W · in redemptionem anime nostre et antecessorum nostrorum et predicti comitis G · et successorum · Tenendam predictis fratribus et eorum successoribus in liberam et perpetuam elemosinam Reddendo nobis et successoribus nostris annuatim vnā marcā argenti scilicet dimidiam ad Pentecosten et dimidiam ad festum sancti Martini · Volumus itaque et precipimus ut iidem fratres predicti et eorum successores predictam terram teneant et possideant de nobis et successoribus nostris ita libere et quiete plenarie et honorifice ab omni exactione et consuetudine et seruicio seculari ad nos pertinentibus in bosco et plano in pratis et pascuis in aquis et molendinis et omnibus alijs necessarijs ad eandem terram pertinentibus sicut aliqua terra in episcopatu nostro liberior plenius et honorificentius tenetur et possidetur et sicut carta Johannis episcopi predecessoris nostri testatur · salua tamen predicta pensione · Hijs testibus Henrico archidiacono nostro · Ratulfo Bernardo et Thoma capellanis nostris · Ludouico et Johanne clericis nostris · Bricio persona de Crese · Roberto capellano de Tibirmora · Gilberto filio archidiaconi de Stratheryn ·

Confirmacio Ricardi episcopi Dunkeldensis super ecclesia de Waddirnyū et Cano et Coneueto de Abthen ·

80) **V**niuersis sancte matris ecclesie filiis presens scriptum visuris vel auditoris Ricardus permissione diuina Dunkeldensis episcopus eternam in domino salutem · Noueritis nos ad plenum inspexisse bone memorie Johannis primi Ricardi Johannis secundi Hugonis Gilberti et Galfridi predecessorum nostrorum episcoporum scilicet Dunkeldensium donationes con-

cessionones et confirmationes monasterio de Inchaffryn et canonicis ibidem deo seruientibus et seruuturis factas super ecclesia de Waddiryn cum omnibus pertinentijs suis et super terra de Waddiryn que Abthan dicitur et super quita clamazione de Cane et Coneueth que clerici Dunkeldenses de eadem Abthan antiquitus percipere consueuerunt . et cum de jure non possumus nec volumus eorum honesto facto iniuste contraire nec pias eorum collationes pauperi monasterio factas infirmare nos eodem spiritu pietatis ducti quo et illi de consensu capituli ecclesie Dunkeldensis donationes concessiones et confirmationes dicte ecclesie et predicti Abthan et supradictam quitam clamationem eidem canonicis factas ratas et gratas habentes concedimus et inperpetuum confirmamus salua nobis et successoribus nostris vna carca argenti annuatim de eodem Abthan persoluenda ad duos terminos scilicet medietate ad Pentecosten et medietate ad festum sancti Martini sicut predictorum episcoporum autenticis contineri inuenimus . Concedimus etiam abbati et canonicis predicti monasterij et eorum successoribus in perpetuum vt predictam ecclesiam in bonis temporalibus omnimodis in vfos suos proprios pro sue voluntatis arbitrio conuertant faciendo eidem ecclesie per ydoneum capellanum vel si maluerint per aliquem canonicum de suo collegio deferuiri saluis episcopalibus . In cujus rei testimonium huic scripto sigillum nostrum apposimus . Datum apud Tybermore quarto nonas Augusti anno domini millesimo cc^{mo} sexagesimo tertio pontificatus nostri anno duodecimo . Hijs testibus magistro Roberto de Streuillyn decano Dunkeldensis ecclesie . magistro Thoma de Perth officiali nostro . magistro David Bell canonico Dunkeldensi . domino Thoma canonico de Insula sancti Columbe . Willelmo rectore ecclesie de Wukyrfy et alijs .

Confirmatio decani super ecclesia de Waddirnyn et super terra de Abthan .

- 81 Omnibus Christi fidelibus hoc scriptum visuris vel auditoris Adam de prebenda decanus Dunkeldenfis et ejusdem ecclesie capitulum eternam in Christo salutem . Noueritis nos plenius inspectis instrumentis venerabilium patrum Johannis primi Ricardi Johannis secundi Hugonis Gilberti et Galfridi episcoporum Dunkeldensium super donationibus concessionibus confirmationibus suis factis pauperi monasterio de Inchaffran quod Insula Wistlarum dicitur super ecclesia de Waddirnyn et super terra que Abthan de Wadirdyn dicitur et super quita clamatione de Chan et de Coneueth que clerici Dunkeldenfes antiquitus percipere consueuerunt de eadem Abthane mere caritatis intuitu vnanimio assensu predictas donationes concessiones confirmationes et quitam clamationem concessisse et hac carta nostra confirmasse sicut in memoratis autenticis plenius reperimus contineri videlicet vt ecclesiam de Waddirdyn in bonis temporalibus omnimodis pro sue voluntatis arbitrio in vsus suos proprios conuertant . faciendo eidem ecclesie per ydoneum capellanium vel si maluerint per aliquem sue congregationis canonicum deferui saluis episcopalibus . et predictam Abthan cum omnibus iustis pertinentijs suis teneant et possideant . Reddendo inde annuatim domino episcopo Dunkeldensi qui fuerit pro tempore pro omni exactione consuetudine et seruicio seculari ad ipsam pertinentibus vnā tantummodo coarcam argenti medietatem scilicet ad Pentecosten et medietatem ad festum sancti Martini . Quieta etiam clamauius et remisimus in perpetuum abbati et canonicis prefati monasterij canum et coneuethum que clerici Dunkeldenfes antiquitus solebant percipere de predicta Abthan et totum jus et totum clameum quod nos vel successores nostros contingere possit de eadem . recipientes eos in perpetuam fraternitatem et ecclesie nostre beneficiorum spiritualium participationem salua nobis et successoribus nostris vna libra incensi ad pentecosten annuatim ab eisdem persoluenda nomine fraternitatis gratis concessa . In hujus rei

testimonium commune sigillum capituli ecclesie nostre huic scripto apposui-
mus . Teste capitulo . Data apud Dunkeld anno gratie millesimo cc^{mo} xxx^o
octauo . quarto nonas Januarij .

Donum Roberti regis de jure patronatus ecclesie de Kyllyn sub sigillo
secreto .

82 **R**obertus Dei gratia rex Scottorum omnibus probis hominibus totius terre
sue salutem . Sciatis nos dedisse et concessisse Deo et beate Marie virgini
et beato Johanni apostolo et euangeliste et religiosis viris abbati et conuentui
de Insula Wiffarum in puram et perpetuam elemosinam jus patronatus
ecclesie de Kyllyn in Glendochyrth cum omnibus libertatibus fructibus
et pertinentijs omnimodis ad dictam ecclesiam qualitercumque pertinentibus
ita tamen quod dicti abbas et conuentus in perpetuum inuenient vnum
canonicum diuina celebrantem in ecclesia de Strathfulan . In cuius rei testi-
monium presentibus sigillum nostrum priuatum fecimus apponi . Datum
apud Clakmanane . xxvj . die Februarij anno regni nostri duodecimo .

Carta Roberti regis sub magno sigillo de ecclesia de Kyllyn .

83 **R**obertus dei gratia rex Scottorum omnibus probis hominibus totius terre
sue tam clericis quam laicis salutem . Sciatis nos pro salute anime nostre
et pro salute animarum omnium antecessorum et successorum nostrorum
regum Scotie dedisse concessisse et hac presenti carta nostra confirmasse Deo
et beate Marie virgini et beato Johanni apostolo et euangeliste et religiosis
viris abbati et conuentui de Insula Wiffarum jus patronatus ecclesie de
Kyllyn in Glendorith Tenendum et habendum dictis religiosis et eorum
successoribus in perpetuum cum omnibus libertatibus commoditatibus assa-

mentis et iustis pertinentijs suis in liberam puram et perpetuam elemosinam adeo libere et quiete plenarie et honorifice sicut aliqua elemosina in regno Scotie per nos aut predecessores nostros aliquibus in elemosinam concessa liberius seu quicquid tenetur seu possidetur . In cujus rei testimonium presenti carte nostre nostrum precepimus apponi sigillum . Testibus Bernardo abbate de Abbirbrothok cancellario nostro . Willelmo de Lindefay camerario nostro . Waltero fenescallo Scotie . Jacobo domino de Dowglafs . Roberto de Keth mariscallo nostro . Johanne Wiffard et Alexandro de Setoun militibus . Apud Berwycum super Twedam duodecimo die Aprilis anno regni nostri tertio decimo .

Confirmatio Willelmi episcopi super dicta ecclesia de Kyllyn .

84 **V**niversis sancte matris ecclesie filijs ad quos presentes litere peruenerint Willelmus miseratione diuina ecclesie Dunkeldensis comister humilis salutem in domino sempiternam . Nonerit vniuersitas vestra nos de vnanimo consensu et assensu capituli nostri habito super hoc prius inter nos in capitulo nostro diligenti et frequenti ac solemni tractatu caritatis intuitu pro cultu diuino augendo et hospitalitate tenenda concessisse et contulisse inperpetuum religiosis viris abbati de Insula Wiffarum et canonicis ejusdem monasterij per dispositionem sui abbatis Deo in perpetuum

APPENDIX.

I.

RENTAL OF THE ABBAY OF INCHAFFRAY,

1563.

REGINA.

COMPTROLLAR It is our will that incontinent efter the sicht heirof ye caus letteris be direct in four formes at the instance of our lait cousing David Lord Drummond and Dame Liliis Ruthven his spous as takismen of the Abbacie of Inchaeffray To caus thame be ansuerit of the teindis fruttis rentis proventis emolumentis males fermes and dewties pertening therto of the yeiris of God I^m v^e lxi lxii yeiris and sicelyke yeirlie and termelie in tyme cuming during the yearis and termes contenit in the letteris of Tak and lyfrent assedatioun maid to tham therof as ye will ansuer to ws therupoun Subscrivit with our hand At Aberdene the xv day of October and of our Regne the tuentie yeir.

Sic subscribitur

MARIE R.

THE RENTALL OF THE ABBAY OF INCHEARFFRAY gewin in be my Lord and Lady Drummond assedationaris therof as it is admittit be the Quenis Majestie and yeirlie chairged and past in the Comptis.

Item the haill rentis fruttis prouentis and emolumentis of the said haill Abbay ar sett be the Commendater and Convent therof to David Lord Drummond and Liliis Lady Drummond his spous thair airis and assignais lyfrent for all the dayis of the said Commendataris lyf tyme ffor payment yeirlie of the sowme of ane thousand merkis money.

II.

THE CHARGE OF THE TEMPORALITIE OF THE
HAILL KIRKLANDIS OF QUHATSUMEVIR BENEFICES
WITHIN THIS REALM ANNEXT TO OURE SOUERANE
LORDIS CROWN UPOON THE NORTH SIDE OF THE
WATER OF FORTH.

ABBAY OF INCHEFFRAY.

Item the Comptar chargis him with the few maill of the landis of Nethir Carnis with the manir place and salmond fisching vpoun the Water of Iran liand in the lordship of Incheffray and schirefdome foirsaid set in few to Robert Grahame of Thornick extending the yeir comptit to iij li. vi s. viij d. And with the new augmentatioun of the samyne extending the yeir foirsaid to iij s. iiij d. Inde . . . iij li. x s.

And with the fewferme of the foure merk land of Raith als Dumfallie and landis of Garwok pertening therto extending yeirlie to liij s. iiij d. with the yeirlie augmentatioun therof extending to xij s. iiij d. And of ane pairt of the Mure of Madertie extending yeirlie to xl s. with the yeirlie augmentatioun extending to iij s. iiij d. and pultre vj sauld be infest and altogider to iij s. iiij d. All liand in the baronie of Cardney and schirefdome of Perth set in few to Anthone Murray. Inde the yeir comptit v li. xij s. iiij d.

And with the fewferme of the tua merk land of Bellielone liand in the baronie of Madertie and schirefdome foirsaid set in few to Henrie Loutfute extending yeirlie to xxvj s. viij d. with vj s. viij d. of augmentatioun. Inde the yeir comptit

xxxiiij s. iiij d.

And with the fewferme of the half town and landis of Mekwen callit Brewlandis with houssis biggingis &c. liand in the lordschip of Incheffray and schirefdome foirsaid set in few to William Murray maister of his hienes careage extending yeirlie to xij s. vj d. with iij s. iiij d. of augmentatioun. Inde the yeir comptit xv s. x d.

And with the fewferme of ane pece of the Mure of Maderty extending yeirlie to xl s. and iij s. iiij d. of augmentatioun and of the libertie and licence of fisching in the place quibilk is commounlie callit the Polpe Ferrie als the Pow of Incheffray within the lordship of Dulloray extending yeirlie to vj s. viij d. and of the commountie of the Mure of Balmaclone and Kerss thair of extending yeirlie to vj s. viij d. all liand within the said schirefdome set in few to Anthoun Murray of Reith. Inde the yeir comptit lvj s. viij d.

And with the fewferme of the tna thridis or pairt landis of Arbany with the part park callit the Park therof liand in the lordschip of Maderdy and schirefdome of Perth set in few to George Murray extending the yeir comptit in money to . . . v li.

Caponis	.	iiij
Pultre	.	vj
Peitsleiding	.	lxxx creilis
Lymeleiding	.	vj laidis
Sklaitleiding	.	v laidis
Aitis	.	vj f.
Stray	.	vj thraifis

And with the fewferme of the milne of Dunfally and milne beside the Abbay of Incheffray liand as said is set in few to James Fentoun extending yeirlie in money to iiij li. vj s. vii d.

Meill xx b.

Caponis	.	xviiij
Pultre	.	vj
Garsums and augmentatioun	.	xx s. xx d.
Aitis	.	j b.

And with the fewferme of the kirkland of Tullychettill with gleib manss &c. and of the kirklandis of Strowane with gleib manss &c. togiddir with the landis callit Dewaris landis with yairds houssis biggingis and of the croft callit Ballindewar on ye north part of Ballochdarie stewartrie of Stratherne and schirefdome foirsaid payand for Tullychettell xx d. for Strowane xl d. for Dewars landis xx d. Inde the yeir comptit vj s. viij d.
Set in few to Patrik Murray of Tibernaure

And with the fewferme of ane pece of croft callit the Welcroft with housis yairdis and pairtenentis with privilege to cast and win tua daywork of peitis in the est myre of the north pairt of Incheviot with ane pece grene eirth liand be est the said Welcroft liand in the parochin of Madertie lordschip of Incheffray and schirefdome foirsaid set in few to Alexander Murray of Wodend extending yeirlie to x s. of auld maill with ij s. of augmentatioun. Inde the yeir comptit xij s.

And with the fewferme of the half landis of Mekwen callit Brewland liand as said is set in few to Thomas Fergus extending the yeir comptit in money to x s.

Pultre	.	ij
Peitis	.	x creilis
Lyme	.	half j laid
Augmentatioun	.	xxx d.
Aittis	.	iiij p.
Stray	.	xviiij schevis

And with the fewferme of the kirklandis of Trinitie Gask with the gleib and manss liand as said is set in few to Johnne Murray extending the yeir comptit in money to x li.

And with the fewferme of the kirklandis of Monivard liand as said is set in few to
 Johnne Murray extending the yeir comptit money to xlvj s. viij d.

And with the fewferme of ane chapell or ane hous ruynous callit the chapell of Oure
 Ladie of Lawreit liand as said is set in few to Johnne Murray extending the yeir
 comptit money to iiij s. iiij d.

And with the few deutie of ane yaird lyand in the citie of Dumblane fewit to James
 Blackwod extending yeirlie to xij d.

And with the fewferme of the Wod callit Incheviot the Ley callit the Blair the Medow
 callit Langmedow and Little Inchevallet, the aikeris and croftis callit Ackornfield
 Almery yard Barnyaird extending to v aikeris half aiker and j rude with the teind-
 scheivis includit liand as said is set in few to Patrik Murray of Newraw extending
 the yeir comptit in money to v li. vij s. vj d.

And with the fewferme of the xij merkland of Newra the xl s. land of Thornyhill als
 Wallace land with the medow thairof, the landis of Windmilnhill the landis of
 Waird Todhill and Haygrene, the housis and yairdis occupeit be Andro Donald-
 soun and the Childseruiks the hous occupeit be Peter Dalrimple with the hous of
 Alexander Jak and yaird therof set in few to the said Patrik K. Murray extending
 the yeir comptit in money to xx li. xiiij s. viij d.

And with the fewferme of the landis of Sclaterland Dischaiker and Cunnyngfauld
 liand as said is set in few to Johnne Lowtfute extending the yeir comptit in money
 to xxxvj s. viij d.

With the inleiding of xxxvj creillis of peittis j laid of malt j laid of lyme j laid
 of sclattis

Pultre	.	ij
Caponis	.	j

And with the few deutie of the xl s. land of Eistir Craigtoun lyand in the barony of

Carnie and schirefdome foirsaid set in few to Marioun Strathenrie and Johnne Duncane hir sone extending yeirlie in money to 1 s.

Caponis iiij

Pultrie xj

With the leiding of xlv met creillis of peitt and for ilk merk land of the saidis landis j laid of lyme j laid of sklaittis and for ilk ij merk land j horss j slaid for teinding and payand the herezeld or xl s. therfor quhen it salhappin

Aittis iiij f

Stray iiij thraifis

And with the fewferme of the landis of West Duchale with the pertenenis liand in the barony of Carny and schirefdome of Perth set in few to Robert Murray of Wester Dubheid extending the yeir comptit in money to 1 s.

Aittis iiij b.

Scheivis of stray lx

Pultrie iiij

Caponis ij

Careage of peittis and hay xlv met creillis

And with the fewferme of the landis callit the Brumefauld on the south pairt of the said abbay with the croft housis and yairdis liand therto set to James Mitchell and Marioun Ruthnen extending the yeir comptit in money to xxiiij s.

And with the fewferme of the xvj s. land callit Eisterley with the medow callit the Solderaris Medow togidder with the medow malthous croft liand as said is set in few to Johnne Mitchell extending the yeir comptit in money to xl s.

Beir j b.

And with the few dentie of all and hailt the viij pairt landis of Williamstoun lyand in the barony of Cardowie set in few to Johnne Bennett extending yeirlie to xxvj s. viij d.

Caponis vj

Pultre viij

Augmentatioun vj s. viij d.

And with the few dutie of all and haill the landis of Nethir Carny with maner place
houssis biggingis yairdis and salmond fisching vpone the Watter of Erne set in few
to Robert Grahame of Thornik extending yeirlie to . v li. vj s. viij d.

And with the fewferme of the landis of Nethir Cairnie with the maner place housis
biggingis orchardis and yairdis and salmond fischingis vpoun the Water of Irone
liand in the lordschip of Incheffray and schirefdome fairsaid set in few to Robert
Grahame of Thornik extending the yeir comptit in money to . iiij li. x s.

And with the fewferme of the four merk landis of Raith als Dunfallie and landis of
Garvok pertaining therto with ane pairt of the Mure of Maddertie liand as said
is set in few to Anthone Murray extending the yeir comptit in money to
v li. xij s. iiij d.

And with the few dewtie of the iiij pairt of the landis of Williamstoun with the chapell
and landis callit St Annis Land and iiij pairt of the landis of Sowtertoun lyand
within the barony of Cardny fewit to Thomas Oliphant extending yeirlie to
v li. xij s. vj d.

Caponis	.	vij
Pultrie	.	xij and j half
Laidis of lyme	.	vj
Laidis of sklaittis	.	vj

And with the few dewtie of all and haill the landis of Mukcroft lyand in the barony
of Cairnie fewit to Williame Murray of Tullibardin extending yeirlie to
vj li. xij s. iiij d.

Cheiss . xij stane

And with the few dewtie of the landis of Rahallie lyand in the parochin of Strogueyth
fewit to Williame Strinling of Duchlane extending yeirlie in money to
iiij li. vj s. viij d.

Augmentatioun	.	xxvj s. viij d.
Caponis	.	vj

Pultrie	.	xij
Creillis of peittis	.	xx

And with the few dewtie of ane viij pairt of the landis of Scotartoun lyand in the barony of Cairnie set in few to Robert Ramsay extending yeirlie to xxvj s. viij d.

Caponis	.	
Pultrie	.	
Creillis of peittis	.	x
Laidis of lyme	.	j
Laidis of sklaittis	.	j
Aittis	.	j f
Stray	.	j turss

And with the few dewtie of the landis of Sklaitter Land Dische Aiker and Cunyng-fauld with the pertinentis with licence to cast peittis in the moss of Incheffray and to brew aill &c. set in few to Johne Loutfute extending yeirlie in money to

xliij s. iiij d.

Gersum and augmentatioun	.	iiij s. iiij d.
Leiding of creillis of peittis	.	xxx
Leiding of malt to the myln	.	j laid
Lyme	.	j laid
Sklaittis	.	j laid

Togidder with the herezeld quhen it salhappin or x s. thairfoir

And with the few dewtie of an viij pairt of the landis of Williamstoun lyand as said is set in few of Johne Murray extending yeirlie in money and convertit customes to

xxxvij s. iiij d.

And with the few dewtie of the thrid pairt of the landis of Arbanie and thrid pairt of the park callit Parkland and of the Abbottis croft besyde Arbany and of the medow lyand at the west and north pairtis of the kirk of Maderdie within the baronie of Cairdnie and schirefdome fairsaid set in few to Johnne Grahame extending yeirlie viz. Arbany and medow fairsaid in money iiij li. x s.

Abbottis croft in beir	.	v b
Aittis	.	j f
With the leiding of peittis	.	xl creillis
Laidis of lyme	.	iiij
Laidis of sklaittis	.	iiij
Caponis	.	ij
Pultrie	.	iiij
Horss for teinding	.	j
Aittis	.	iiij f
Truisis of stray	.	iiij for the horss

With catour and officiar corne syluer and stray vseit and wount

And with the few dewtie of the xv s. land of Craigtoun Eistir with the pertinentis lyand in the baronie of Cairdnie and schirefdome foirsaid set in few to Walter Young extending yeirle in money to xv s.

Caponis	.	j
Pultrie	.	ij
Gersum and augmentatioun	.	iiij s. iiij d.
Aittis	.	j b half pe
Bottellis of stray	.	xxvij
Careage of peittis	.	xvij met creillis
Lyme	.	j laid
Sklaittis	.	j laid

Seruce of j hors and j slaid for teinding

Togidder with the herezeld quhen it salhappin or xv s. thairfoir

And with the few dewtie of the xx s. land of Eistir Craigtoun with the pertinentis lyand as said is set in few to David Ramsay extending yeirle in money to . . . xx s.

Caponis	.	ij
Pultrie	.	iiij
Gersum and augmentatioun	.	v s.

And obseruand the deuteis and restrictiouns preceeding with xx s. for the herezeld quhen it salhappin

And with the few dewtie of tua merk land of the landis of Bellyclune lyand in the baronie of Maderdie and schirefdome foirsaid set in few to Donald Haly extending yeirlie to xxxiij s. iiij d.

With xxvj s. viij d. for the herezeld quhen it salhappin

And with the few dewtie of the landis callit the Kirklandis of Kinkell lyand in the baronie of Cardnie lordschip of Incheffray and schirefdome foirsaid set in few to Andro Strahenrie extending yeirlie to xxiij s. iiij d.

NOTA. Prouyding gif the abbot call for reducioun heirop thay sall not be hard in iudgement vntill thai pay to the said Andro the sowme of lxxvj li. xiiij s. iiij d.

And with the few dewtie of the landis of Lytill Cardneis with mansioun maner place houssis biggingis yairdis orcheardis myln and fischingis thairof and of the landis of Over Cardny with the land callit Wodland maress and pertinentis therof and of the landis of Sasello callit Chapelland of the Mure lyand in the baronie of Cardny and schirefdome foirsaid set in few to Johnne Gordoun sone to George Erle of Huntlie extending yeirlie viz. Litill Cairdny iij li. vj s. viiij d.

Ovir Cairdnie Wodland and Chapelland of the Mure xxvj li. xiiij s. iiij d.

For caponis pultrie areage and vther service xj s. viij d.

Augmentatioun xl s.

NOTA. It sall not be lesum to call for reducioun heirop befor thai pay to the said Johnne Gordoun j^m li. money

And with the few dewtie of the fourt pairt of the landis of Wester Craig lyand in the parochin of Maderdie baronie of Cardnie and schirefdome foirsaid set in few to Johnne Bruce of Auchinbolie extending to iij li. vij s. xj d.

Creillis of peittis lxxij

Laidis of lyme iiij

Laidis of sklaittis iiij

Hors for teinding ij

With xx s. for the herezeld quhen it salhappin

And with the few dewtie of the tua merk land of Bellyclone with the pertinentis lyand in the baronie of Maderdie and schirefdome foirsaid set in few to Alex. Loutfute extending yeirlie in money to xxxiij s. iiij d.

Caponis . . . ij

Pultrie . . . ij

And leidand for ilk merk land foirsaid of

Creillis of peittis . . . xv

Laidis of lyme . . . j

Laid of sklaittis . . . j

For teinding

Horss . . . j

Slaid . . . j

Aittis . . . viij p

Thraifis of stray . . . iiij

Togidder with the herezeld or xxvj s. viij d. thairfoir quhen it salhappin

And with the few dewtie of the landis of Redefurde with priuilege of brewing and selling of aill lyand in the baronie of Cardnie and schirefdome foirsaid set in few to James Hay extending yeirlie in money to xvj s.

Caponis . . . ij

Pultrie . . . iiij

Leiding of creillis of peittis . . . xvj

Lyme . . . j laid

Laidis of sklaittis . . . j

Careing of malt to the myln, viz. . . j laid

For teinding Furnesand . . . j hors

and . . . j slaid

Gersum and augmentatioun in money . . . iiij s.

Aittis . . . v pc

Bottellis of stray . . . xxx

Togidder with the herezeld or xvj s. thairfoir

And with the few deutie of the landis of Westhill of Ardbany with the pertinentis lyand in the barony of Cardny and schirefdome foirsaid set in few to Henrie Cowan extending yeirle xvj s. viij d.

And with the few deutie of the xvj s. land callit Burnheid lyand in the baronie of Cardny and schirefdome foirsaid and of the landis callit Brewland of Ardbany lyand in the barony of Maderty and schirefdome foirsaid set in few to John Murray extending yeirle the saidis landis of Burnheid xx s.

For the teindis thairof in vittuell . . . j b. or vj s. viij d. thairfoir

Half meill half beir

The saidis landis callit Brewlandis . . . viij s.

Vittuell . . . j b. or vj s. viij d. thairfoir

And with the few deutie of the landis and vtheris vnderwritin lyand in the barony of Cardny lordschip of Maderdie and schirefdome foirsaid set in few to Alex. Murray sone and appeirand air to Patrik Murray of Wodend extending to the particular deuties following the landis of Wodend estimat to xxxs. land besyde the end of the Wod of Incheviot the peice land callit the Rone and yle callit Braidinche extending to xxxj s. viij d.

The tua medowis callit Inchnaleyis and teind schavis thairof . . . x s.

The Wod of Incheviot and treis thairin and landis thairin the treis growis the peice land callit the Blair and peice of land callit Todhill and teind schavis thairof to xxx s.

The medow callit Langmedow and teind schavis to . . . x s.

The ackeris and croftis callit Accornefauld . . . vj s. viij d.

The landis of Wondmylnhill xx s.

Hors corne . . . vj b.

For the pryce of vj f ait meill as for the teind schavis thairof . . . x s.

The viij riggis of land toftis croftis and housis thairof . . . xij s. iij d.

The houss toftis croftis and yairdis sumtyme occupeit be David Rollok and teind schavis thairof includit . . . iij s. iij d.

The xl s. land of Thorniehill als Wallace land with the medow and mure thairof . . . iij li. vj s. viij d.

As for the pryce of xx b. horscorne

For the teindis thairof	xx s.
As for the pryce of iij b ait meill	
The landis callit Tullychandie and peice land callit Greinrisk	xxxij s. iij d.
For the teind schavis thairof extending to iij b ait meill	
The sowme of	xxvj s. viij d.
And for caponis pultrie gersum and vtheris deuties	vj s. viij d.
And in augmentatioun of the foirnamit landis	xij s. iij d.
Inde the yeir comptit	xv li. j s. ij d.
Horscorne	vj b

And with the few deutie of that pairt of the maynis of Incheffray extending to sevin aikeris half aiker and ane ruid of land callit Newyaird Newyairdheid and Smeddiecroft and teind schavis includit with houssis yairdis and pertinentis ther extending ilk aiker in mail to vj s. viij d. augmentatioun for ilk aiker iij s. iij d. Inde iij li. xvij s. vj d. And of the yle callit Braidinche and treis thairof the foure medowis callit Eister and Wester Campnagis Mekill and Lytill Inchnaleis and hay thairof and of the mures and maressis callit the Abbotis Mos of Southertoun and St Annes Moss and of the barne kylm byre with houssis thairof and cobill and of xij yairdis occupeit be sundrie persones and of the yaird callit the Abbotis Yaird and Horswaird with the girs of the place of Incheffray houssis thairof pule and stankis of the samyn and all pertinentis extending yeirlie to iij li. and of the xxx s. land besyde the end of the Wod of Incheviot extending yeirlie to xxx s. of mails and in augmentatioun xx d. Kayne foullis vseit and wount and of that peice land callit the Ron and treis thairof extending yeirlie to iij s. iij d. lyand within the lordschip of Madertie baronie of Cairdny and schirefdome foirsaid set in few to Daud Lord Drummonde. Inde the yeir comptit ix li. xij s. vj d. Providing gif the abbot call for reduction heiroy thay sall pay to the said lord iij^m li. befor thai be herd in judgment

And with the few deutie of the xvj s. land of Middildubheid with the pertinentis lyand in the baronie of Cardny and schirefdome foirsaid set in few to Thomas Dow extending yeirlie in mail to xvj s.

Caponis	ij
Pultrie	iiij

Leiding of peittis	.	xvj creill
Hors laidis of lyme	.	j
Laidis of sklaittis	.	j
Leiding of laidis of malt	.	j to the myln
For leiding of teindis	.	j hors
Gersum and augmentatioun	.	iiij s.
Aittis	.	v pc
Bottellis of stray	.	xxix

Togidder with the herezeld or xvj s. thairfoir quhan it salhappin

And with the few deutie of vj merk land of Balmaelune lyand in the baronie of Cairdny and schirefdome foirsaid set in few to James Spens extending yeirle in maill to iiij li.

Gersum and augmentatioun	.	xx s.
Leiding of peittis	.	lxxxx creillis
Laidis of lyme	.	vj
Laidis of sklaittis	.	vj laidis
Leiding of malt to the myln	.	vj laidis
Hors and slaidis for teinding	.	iiij
Aittis	.	vj f
Thraifis of stray	.	vj

Togidder with the herezeld or xxvj s. viij d. thairfoir quhen it salhappin

And with the few deutie of the half of ane fourt pairt of the landis of Wester Craigtoun lyand as said is set in few to Johnne Burgh extending yeirle in maill to xxj s. viij d.

Caponis	.	j and half
Pultrie	.	ij and half
Gersum and augmentatioun	.	v s. v d.
Aittis	.	vj pc half pc
Bottellis of stray	.	xxx

Not expresst in the Chartour. { Leiding of peittis . . . creillis
 { For ilk merk land of the saidis landis . . .

In laidis of lyme	.	j
Laidis of sklaittis	.	j

Togidder with the herezeld or xx s. thairfoir quhen it salhappin

And with the few deutie of the landis of Ardearny with the pertinentis lyand in the baronie of Cairdny lordschip of Madertie and schirefdome foirsaid set in few to William Drummond extending yeirlie in maill to . v li. vj s. viij d. Augmentatioun . xij s. iiij d.

And with the few deutie of the Schadow half of the landis of Balmaclune with the pertinentis lyand as said is set in few to Williame Drummond extending yeirlie in maill to x li. xij s. iiij d. caponis xij or xij d. the peice pultrie xx or iiij d. the peice areage and careage xl s. augmentatioun xvj s. iiij d. Inde the yeir comptit xiiij li. xij s. iiij d.

And with the few deutie of the xij merk land of auld extent of Newraw with mansioun orcheardis yairdis houssis outsettis and teind schavis thairof lyand in the lordschip of Madertie parochin thairof barony of Cardny and schirefdome foirsaid set in few to Johne Chisholme extending yeirlie in money to . . xvj li. And that as for the pryce of vj ch. horscorne

The fermes of said landis to	.	iiij li.
The teind schavis thairof to	.	xij s. iiij d.
For xx pultrie	.	vj s. viij d.
Augmentatioun	.	x s.

Inde the yeir comptit

And with the few deutie of all and haill ane chalder ait meill yeirlie out of the landis and baronie of Innernathame at the termes vseit and wount lyand in the schirefdome foirsaid and of xx b. ait meill for the yeirlie fermis of the tna mylnis viz myln of Dumfally and myln besyde the said monasterie betuix Witsunday and Mertymes and of v b. beir for the yeirlie ferme of the croft in Arbany callit the Abbottis Croft and of iiij b. beir for the yeirlie ferme of the croft in Gorthie also callit Abbottis Croft lyand in the lordschip of Madertie baronie of Cardny parochin

of Houllis respective and schirefdome foirsaid set in few to Daid Lord Drummond
 extending yeirlie to xv li.
 Prouiding gif the abbot call for reducioun heirop thai sall pay to the said lord
 j^m li. prin^l and j^m m^{kis} for damage befor thai be hard in judgment

And with the few deutie of the kerklandis of Kirkbryde callit Bowtoun lyand in the
 diocie of Dumblane and schirefdome foirsaid set in few to Robert Row of Calder-
 cois extending yeirlie in maill to xx s.
 Gersum and augmentatioun xxij s.

And with the few deutie of the liij s. iiij d. land of Over Dubheidis lyand in the paro-
 chin of Madertie baronie of Cardny and schirefdome foirsaid extending yeirlie to
 liij s. iiij d.

Gersum and augmentatioun xiiij s. iiij d.
 The liij s. iiij d. land of Soutertoun callit the sonny half of Soutertoun extending
 yeirlie in maill to liij s. iiij d.

For gersum caponis and augmentatioun xvij s. iiij d.
 The kerklandis of the parochin of Dony callit Kincladie and teind schavis thair of all
 set in few to Mr Daid Rollok extending yeirlie maill to vj li. xiiij s. iiij d. gersum
 and augmentatioun xxxij s. iiij d. Inde in the haill and the yeir comptit
 xv li. iiij s.

And with the few deutie of the landis of Eister Dubheid with the pertinentis lyand in
 the baronie of Cardny and schirefdome foirsaid set in few to Johnne Mitchell burges
 of Perth extending yeirlie in maill to xxiiij s.

Caponis		ij
Pultrie		iiij
Gersum and augmentatioun		vj s.
Horscorne		vij pe
Schafis of stray		xliij
Careage of mett creillis of peittis		xxiiij
Hors laidis of lyme		i

Hors laidis of sklaittis	.	ij
Laidis of malt to the myln	.	ij
For teinding j hors	.	
And j slaid	.	

Togidder with the herezeld or xxvj s. viij d. thairfoir quben it salhappin

And with the few deutie of the sonny half of the fourt pairt of the landis of Wester Craigtoun with houssis biggingis, &c. lyand in the lordship of Cardny and schirefdome foirsaid set in few to James Drummond of Incheffray extending yeirlie

NOTA. Nocht exprest in the rental

And with the few dewtie of the tua merk land of the landis of Balmaclone sumtyme occupied be Donald Haly, and vther tua merk landis thair of sumtyme occupied be Henry Loutfutt, the landis callit the Calsayend, Mekven als callit the Brewland, Eister Dubheid and South Syde, Eister Craig, ane quarter of Williamstoun and Soutartoun Wester Dubhead Traphill, the half landis of Rochallocht, the thrid pairt landis of Ardbeny with a medow on the east and north partis of the kirk of Madertie, the miln of Dumfally and the miln besyde Incheffray place the landis callit Smeddie Croft &c. the palice croft, abbatis barne and Barneyaird, the steeding and landis callit Donaldsones Houss and Geddistankis Almerland and grene yairdis priourismedow, landis callit Hay Grene and Ward all lyand within the barony of Cardny and schirefdome foirsaid and of the landis of Auchincloich lyand in the lordship of Lorne and schirefdome of Ergile set newlie in few to James Drummond of Inchafray extending yeirlie the yeir comptit to in money . . . xvj li. viij s. vj d.

Ait meill	.	xx b
Aittis	.	xij b iij pc
Stray	.	xliiij thravis and a half
Caponis	.	v doz. and j
Pultrie	.	vj doz. and xj

Charge *pro tanto* schirefdome of Ergile

Thir landis cannot be severallie set in thair awin schirefdomes in respect the dewtie is payed cumulative

And with the few dewtie of the aucht merk land of Williamstoun lyand in the baronie
of Maderdy set in few to Johne Maxtoun extending yeirlie in money to viij li.

Caponis	.	xij
Pultrie	.	xx
Gersum and augmentatioun	.	xxvj s. viij d.
Careage of	.	j ^e met creillis of peittis
Of lyme	.	viij hors laidis
Of sklaittis	.	viij hors laid
Malt to the myln	.	
Hors and slaidis	.	iiij for teinding
Officiar and catour corne siluer and stray vseit and wount		
Aittis	.	ij b
Thraifis of stray	.	viij

Togidder with the herezeld quhen it salhappin or iij li. vj s. viij d. thairfoir

And with the few dewtie of the landis of Incheniche lyand in the barony of Cairdny
fewit to Williame Murray of Abercairny extending yeirlie in money to xx s.

Augmentatioun	.	v s.
Aittis	.	vj pek
Stray	.	j thraif xij scheifis
Caponis	.	ij
Pultrie	.	iiij

Togidder with xij s. iiij d. for the herezeld

For ilk merk land thairof j laid lyme and j of stanes

Careage of peittis	.	xxij met creillis
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III.

TAXT ROLL OF THE LORDSCHIP OF INCHAFFRAY.

1630.

AT THE BRUGHE OF PEARTH the threttine day of October the yeir of God 1^m vj^e and threttie yeirs in ane Judiciall court haldin within the tolbutth of Pearth be maister Patrick Murray of Woodend eritable bailzie of the sam court Compeirt personallie maister Thomas Murray of Cassoquhy procuratour lauchfullie constitut for maister Patrik Murray coupbearer to his Majestie now abbott of the abbacie of Inchaiffray And producit the act of conventionne of the three estatis of this kingdome grantit for releiff of prelatis lordis of erectionuns and vther beneficed persones of thair pairtis of the taxatioun granted to his majestie be the saidis three estatis of this kingdome In the forsaid conventionne haldin at Halyrudhous In the month of Julij last by past togidder with ane certificat vnder the hand and subscriptione of James Prymrois clerk of his majestie privy counsell testefeing that the said abbacie of Inchaiffray in everie ane of the four termes payment of the sam taxatioun is taxt to the sowme of fyve hundreth sextine pundis threttine schillingis four pennies money And thair the said bailzie did cause call by name and surname vpoun the haill fewaris vassellis and taksmen of teyndis of the said lordschip of Inchaiffray off the quhilk number the

persones vnderwrettin onlie compeirit They ar to say George vicount of Dupling Lord Hay of Kinfawnis heich chancellor of Scotland Patrick Murray portioner of Arbeny Antone Murray of Carshead.

And the remanent of the fewaris vassallis taksmen of teyndis pensionaris of the said lordship of Inchaffray being oft and sundrie tymes callit lauchfull tyme of day biddine and not compeirand be themselfis thair procuratouris nor be na vtheris in thair names The said maister Thomas Murray procuratour foirsaid for the said commendatour of Inchaffray protestit that it might be lauchfull for him with the persones abowe writtin compeirand to sett doune the said Taxt Roll of Inchaffray according to the warrand grantit vnto them be the foirsaid act of conventioun quibilk protestatioun the said baillye admitted Thairfoir the said procuratour with the saidis persones abowe writtin compeirand with him all in ane voyce with ane consent and assent maid and sett doune this present Taxt Roll and ordeanes that everie pund of frie rent aither in landis or teyndis als weill perteing to the said commendatour himself as to the fewaris vassallis and taksmen of teyndis of the said lordship sall be taxt in everie ane of the four termes of the said taxatioun to the sowme of sex penneyeis tua fardingis fourt pairt farding And accordingle they have sett doune this present Taxt Roll for the first termes payment of the same taxatioun and ordeanes the same to stand in full force and effect for the vther three termes therof And in takin heirop the persones befoir writtin with the said Maister Patrick Murray of Woodend baillye foirsaid with Alexander Inglis clerk deputt of the publict register of Perthschyre and clerk to the said court have subscrivit this present taxt roll with thair handis day yeir and place foirsaid.

1. Johne Lord Madertie for the taxt of his landis vndirwrittin estimat in regaird of his absence to be worth of rent yeirlie the particular chalderis of victuall efter specefeit They are to say his fourtine merkland of Belletlone four chalderis sex bollis victuall his threttine merkland of Wester Craig and ten merkland of Eister Craig

seivin chalderis tuelf bollis victuall his tuelff merkland of Newraw with the teyndis includit four chalderis victuall his four merkland of Over Dubhead and xvj s. viij d. land of Eister Dubhead three chalderis victuall his aught schilling land of Easter Lay aught bollis victuall his four merkland of Souttertoun tua chalderis victuall his tua merkland of Williamestoun tuentie four bollis victuall his mylne of Erne and Abbottis mylne tuentie bollis victuall his landis of the croft of Gorthie callit the Abbotiscroft fyve bollis bear his landis of the croft of Arbeny callit Abbottis Croft fyve bollis victuall—Summa of the haill victuall befor writtin Tuentie fyve chalderis extending in money at lxxx li. the chalder to Tua thowsand pundis. His siluer rent payit to him be the fewaris of the landis within the lordschip of Inchaifray estimat in regaird of his absence to be worth of rent yeirlie an hundreth lxxvij li. xix s. Summa of the haill siluer abowe wrettin tua thowsand ane hundreth lxxvij li. xix s. Quhairof defeased payit to his lordschip for his blensche dewtie to the Kingis Majestic xvj li. with fourtie three pundis ix s. of ferme siluer and of victuall tua chalder ellevin bollis tua firlottis ane peck extending in money at lxxx li. the chalder to tua hundreth xvij li. xvj s. iij d.—Of strae fourseoir three threaf and ane half thrave extending in money at x s. the threave to fourtie ane pund xv s.—Of hens [*capons*] fourscore tua and ane half extending in money at x s. the peace to xlj li. v s. of pultrie ten dussoune and ten at money v s. the peace to threttie tua pundis x s. and payit be his lordschip in contributtione to the Lords of Sessioun tuentie ane pundis—Summa of the haill siluer befor defeaseit four hundreth threttine pundis xvj s. ane penney. Sua restis of frie rent ane thowsand seivin hundreth fyftie fyve pundis ij s. xj d. taxt to xlvij li. xix. s. x d.

2. Johne Lord Maddertie for the taxt of his landis of the parochie of Maddertie estimat in regard of his absence to be worth of Rent yeirlie fyftine chalderis tua bollis victuall his teyndis of the parochine of Fowllis estimat in his absence to be worth yeirlie threttine chalderis vj bollis victuall—his teyndis of the kirk of Kirkbryd estimat in respect fairsaid to be worth of rent yeirlie tuentie ane bollis victuall—his part of the teyndis of the parochine of Kinkell estimat in respect fairsaid to be worth rent yeirlie tua chalderis victuall—Summa of the victuall threttie ane chalderis threttine bollis extending in money at lxxx lb the chalder to tua thowsand fyve hundreth fourtie sex pundis v s. quhairof defeased payit be his

lordschip. To the minister of Maddertie yeirlie in his stipend fyve hundreth merkis—to the minister of Foullis yeirlie in his stipend four hundreth pundis—to the ministeris of the paroches of Moneyvaird and Strowane ane hundreth fourscore xij li. x s. Summa of the defeases nyne hundreth tuentie fyue pundis xvj s. viij d. quhairof restis of frie rent ane thowsand and sex hundreth tuentie pundis viij s. iiij d. taxt to xliij li. vj s. ij d.

3. Johne Lord Maddertie for the taxt of the tak dewties payit to him be taksmen of the teyndis of the said lordschip of Inchaffray as is particularly efterwrettin defeaseit unto them in the articles of thir rentis extending in money to ane hundreth fourscore nyne pundis iiij s. taxt to v li. iiij s. v d.

4. George vicount of Dupling Lord Chancellor, &c. for the taxt of his landis of Cairne wood confest be himselff to be worth of rent yeirlie ane hundreth merkis money his toune and landis of Cairdine ellevin chalderis tua bollis victuall—his lands of Dalchorroche three chalderis victuall his landis of Cheppelland four chalderis victuall—Summa of the victuall aughtene chalderis tua bollis victuall extending in money at lxxx li. the chalder to ane thowsand foure hundreth and fyftie pundis—Summa of the haille silver abowe written ane thowsand fyve hundreth sextene pundis xiiij s. iiij d. taxt to xlj li. ix s. v d.

5. Johne Drummond portioner of Easter Craig for the taxt of his three merkland of Easter Craig estimat in regaird of his absence to be worth of yeirlie rent ane chalder four bollis victuall extending in money at lxxx li. the chalder to ane hundreth pund taxt to liiij s. viij d. j f.

6. Patrick Erle of Tullibardine and William Murray his chamberland for the taxt of his landis of the Kirktown of Trinitie estimat in regaird of thier absence to be worth of rent yeirlie fourtie bollis victuall extending in money at lxxx li. the chalder to ij^e li. taxt to v li. ix s. iiij d. ii f.

7. The said Patrick Erle of Tullibarden for the taxt of Muckeroft estimat in his

absence to be worth of rent fourtie bollis victuall extending in money at lxxx li. the chalder to ij^e li. taxt to v li. ix s. iiij d. ii f.

8. The said Patrick Erle of Tullibarden for the taxt of his teyndis of the barronie of Gask possessit be himself lyand within the Lordschip of Inchaiffray estimat in regaird of his absence to be worth of rent yeirle aught chalderis victuall—his teyndis of the landis of Balgoure lyand within the barronie of Gask perteing to the laird of Duncrub yeirle twenty tua bollis victuall—Summa of the victuall nyne chalderis sex bollis extending in money at lxxx li. the chalder to sewin hundredreth and fyftie pundis taxt to xx li. x s. ij d. i f.

9. William Blair of Tarsappie for the taxt of his fourtin merkland of Williamstoun estimat in his absence to be worth of rent yeirle ten chalderis victuall—his x s. land callit S^t Annas Land yeirle aught bollis victuall—his tua merkland of Souttertoun to be worth yeirle tuentie bollis victuall—his aught schilling land of South Syd to be worth yeirle ane chalder victuall—Summa of the haill victuall tuelff chalderis tuelff bollis victuall extending in money at lxxx li. the chalder to ane thowsand and tuentie pund taxt to xxvij li. xvij s. x d.

10. Christiane Murray relict of vmquhill Thomas Bawnikill wodsett haver of the landis underwritten for hir taxt of ane merkland of Souttertoun estimat in regaird of hir absence to be worth of rent yeirle nyn bollis victuall—fyve schilling land of Woleroft to be worth of rent yeirle tua bollis victuall extending in the haill to ellewin bollis victuall in money at lxxx li. the chalder to l li. taxt to
xxvij s. iiij d.

11. Maister Patrick Murray of Woodend for the taxt of xxx s. land of Woodend with the teyndis includit confessit be himselff to be worth of rent yeirle tua chalderis victuall—his iiij s. land of Woleroft confest be himselff to be worth yeirle sex fir-lottis victuall—his xx s. land of Thornehill and xxxij s. land of Tulliechandie confest be himselff to be worth of rent yeirle three chalderis victuall—his sex aikeris of land callit Windmylne Hill confest be himselff to be worthe of rent yeirle ane

chalder victuall—Summa of the haill victuall sex chalderis j boll j f. extending in money at lxxx li. the chalder to iiij^e lxxxvij li. x s. taxt to xiiij li. vj s. viij d. j f.

12. George and Robert Murrayes in Arbeny for the taxt of ther xl s. land of Arbeny and vj s. viij d. land of the Westhill of Arbeny estimat in regaird of thier absence to be worth of rent yeirlie tua chalderis four bollis victuall extending in money at lxxx li. the chalder to ane hundreth lxxx li. taxt to iiij li. xvij s. v d. j f.

13. Patrick Murray portioner of Arbenny for the taxt of his tuentie four schilling land of Burnehead and Burnefute confest be himselff to be worth rent yeirlie xiiij bollis victuall—his xl s. land of Arbeny to be worth in rent yeirlie tua chalderis—his vj s. viij d. land of the Westhill of Arbeny to be worth of rent yeirlie iiij bollis victuall—Summa of the victuall three chalderis tua bollis extending in money at lxxx [li.] the chalder to tua hundreth and fyftie pundis taxt to vj li. xvj s. iiij d. ij f.

14. The said Patrick Murray portioner of Arbeny for the taxt of his landis callit the Abbottis Croft in Arbeny confest be himselff to be worth of rent yeirlie tuelff bollis victuall extending in money at lxxx li. the chalder to lx [li.] taxt to xxxij s. jx d. ij f.

15. George and Robert Murray portionaris of Arbeny for the taxt of ther xl s. of Arbeny estimat in thair absence to be worth of rent yeirlie tua chalderis victuall extending in money at lxxx li. the chalder to ane hundreth lx li. taxt to iiij li. vij s. vj d.

16. Agnes Grahame lyvrenter of the xx s. land of Meekven and Johne Robertstone hir spous for his entres for the taxt therof estimat for regaird of thair absence to be worth of rent yeirlie tuelff bollis victuall extending in money at lxxx li. the chalder to lx [li.] taxt to xxxij s. ix d. ij f.

17. The said Agnes Grahame and hir said spous for the taxt of the teyndis of the landis within the parochine of Monyvaird estimat in regaird of thair absence to be

worth of rent yeirlie of teynd victuall ane chalder viij bollis extending in money at lxxx li. the chalder to ane hundreth tuentie pund and of teynd siluer ane hundreth and fyftie merkis Summa of the forsaid siluer tua hundreth and tuentie pund quhairof defeased payit be them of tak dewtie to my Lord of Madertie yeirlie xiiij li. vj s. xiiij d. and to the minister of Monyvaird in his stipend yeirlie xxxiiij li. vj s. viij d. Summa of the defeaseis abowe written xlvj li. xiiij s. iiij d. Sua restis of frie rent ane hundreth threescore threttine pundis sex schilling aught penneyes taxt to iiij li. xij s. ix d.

18. Sir Andro Rollok of Duncrub knight for the taxt of his iiij merkland of Kinludie estimat in regaird of his absence to be worth of rent yeirlie fourtie bollis victuall extending in money at lxxx li. the chalder to tua hundreth pundis taxt to
v li. jx s. iiij d. ij f.

19. The said Sir Andro Rollok for the taxt of the teyndis of the parochie of Dunning estimat in regaird of his absence to be worthe of rent yeirlie sextene chalderis victuall extending in money at lxxx li. the chalder to j^m ij^e lxxx li. quhairof defeaseit payit be him yeirlie to the minister of Dunning in his stipend fyve hundreth merkis Sua restis of frie rent jx^e xlvj li. xiiij s. iiij d. taxt to xxv li. xvij s. viij d.

20. Campbell for the taxt of the xl s. land of Auchincloich in Lorne estimat in regaird of his absence to be worth of rent yeirlie ane hundreth threttie three pundis vj s. viij d. taxt to iij li. xij s. xj d.

21. Antone Murray of Carshead for the taxt of xxxiiij s. iiij d. land of Calsyend confest be himselff to be worth of rent yeirlie ane chalder of victuall extending in money to four score pundis taxt to xliij. s. ix d.

22. The said Antone Murray for the taxt of his ane merkland of Wardenis Croft confest be himselff to be worth of rent yeirlie aught bollis victuall extending in money at lxxx li. the chalder to fourtie pund taxt to xxj s. x d. ij f.

23. Johne Maxwell of Templehill for the taxt of his ane merkland of Dundowis

estimat in regaird of his absence to be worth of rent yeirlie aught bollis victuall extending in money at lxxx li. the chalder to xl li. taxt to xxj s. x d. ij. f.

24. Patrick Drummond of Colthrie for the taxt of his xx s. land of Portt of Monyvaird estimait in regaird of his absence to be worth of rent yeirlie sex bollis victuall extending in money at lxxx li. the chalder to xxx li. taxt to xvj s. iiij d. iij. f.

25. Elizabeth Alexander lyverenter of the xl s. land of Wester Dubhead for hir taxt therof estimat in regaird of her absence to be worth of rent yeirlie ane chalder and fourtten bollis victuall extending in money at lxxx li. the chalder to ane hundreth and fyftie pund taxt to iiij li. ij s. j f.

26. George Loutfut of Dischaikar for the taxt of his xxxij s. iiij d. land of Dischaikar Sklaitter landis and Cuningfald estimat in regaird of his absence to be worth of rent yeirlie aught bollis victuall extending in money at lxxx li. the chalder to fourtie pundis taxt to xxj s. x d. ij f.

27. Christiane Craigane lyverenter of the xvj s. land of Readfurd estimat in regaird of hir absence to be worth of rent yeirlie aught bollis victuall extending in money at lxxx li. the chalder to fourtie pundis taxt to xxj s. x d. ij f.

28. Thomas Kippen in Machanie for the taxt of his tua merkland of Bellelone estimat in respect of his absence to be worth of rent yeirlie ten bollis victuall extending in money at lxxx li. the chalder to l li taxt to xxvij s. iiij d.

29. Thomas Drummond in Ochirardour for the taxt of the xx s. land of the Kirkhill of Ochirardour estimat in regaird of his absence to be worth of rent yeirlie ane hundreth merks taxt to xxxvj s. v d.

30. Johne Gray portioner of Souttertounne for the taxt of his xxv s. merkland of Souttertounne to be worth of rent yeirlie nyn bollis victuall extending in money at lxxx li. the chalder to fourtie fyve pund taxt to xxiiij s. vij d. j f.

31. Hew Michell portioner of North Kinkell for the taxt of his xvj s. land of Nether Dubhead estimat in respect of his absence to be worth of rent yeirlie ane chalder victuall—his xvj s. viij d. land of Tom Machellis Croft and Brounfald to be worth of rent yeirlie aught bollis victuall—Summa of the victuall ane chalder aught bollis extending in money at lxxx li. the chalder to ane hundreth and tuentie pund taxt to iij li. v s. vij d.
32. Katharene Murray lyverenter and William Murray of Tulliebardin for the taxt of their sex merkland of Bellettone estimat in regaird of ther absence to be worth of rent yeirlie threttie bollis victuall extending in money at lxxx li. the chalder to ane hundreth and fyftie pundis taxt to iij li. ij s. j f.
33. Margrat Drummond lyverenter of the ten merkland of Bellentone and Donald Campbell hir spous for his entreis for the taxt therof estimat in regaird of ther absence to be worth of rent yeirlie three chalderis tua bollis victuall extending in money at lxxx li. the chalder to tua hundreth and fyftie pundis taxt to vj li. xvj s. viij d.
34. James Fentoun for the taxt of his fyv merkland of the East Mylne of Erne estimat in regaird of his absence to be worth of rent yeirlie fyve chalder victuall extending in money at lxxx li. the chalder to four hundreth pundis taxt to x li. xvij s. jx d.
35. Johne Erle of Perth for the taxt of his half merkland of Trephill estimat in his absence to be worth of rent yeirlie ten pundis taxt to v s. v d. ij f.
36. Johne Campbell for the taxt of his teyndis of Clithik and Branchre estimat in regaird of his absence to be worth of rent yeirlie tuentie bollis victuall extending in money at lxxx li. the chalder to ane hundreth pund quhairof defeaset payit be him of tak dewtie to my Lord of Maddertie tuentie merkis Sua restis of frie rent fourscore sex pund xij s. viij d. taxt to xlvij s. v d.
37. Kathrane Murray lyfrenter of the aught merkland of Ardwne with the Toddis

Croft and William Murray hir spous for his entres for the taxt therof estimat in regaird of ther absence to be worth of rent yeirlie foure chalderis ten bollis victuall extending in money at lxxx li. the chalder to three hundreth threescore ten pundis taxt to x li. ij s. iiij d.

38. Grahame of Wrehill for the taxt of his fyve merkland of Rahalloch estimat in regaird of his absence to be worth of rent yeirlie threttie bollis victuall extending in money at lxxx li. the chalder to ane hundreth and fyftie pund taxt to iiij li. ij s.

39. Robert Grahame of Panhillis for the taxt of the vther fyve merkland of Rahalloche estimat in regaird of his absence to be worth of rent yeirlie threttie bollis victuall entending in money at lxxx li. the chalder to ane hundreth I pund taxt to iiij li. ij s.

40. Annabill Livingstone lyfrenter of the landis of Little Cairdine and Nimiane Graham of Garrok hir spous for his entres for thair taxt of their ij li. land of Littill Cairdine estimat in regaird of ther absence to be worth of rent yeirlie four chalder victuall extending in money at lxxx li. the chalder to three hundreth and tuentie pund taxt to viij li. xv s.

41. Antone Murray of Reath for the taxt of the xl s. land of his pairt of the Mure of Bellelone estimat in regaird of his absence to be worth of rent yeirlie ten merk taxt to ij s. viij d.

42. David Murray fear of Reath for the taxt of his fourtie schilling land of Reath estimat in regaird of his absence to be worth of rent yeirlie tua chalderis tuelff bollis victuall extending in money at lxxx li. the chalder to tua hundreth and tuentie pund taxt to vj li. iiij d.

43. Grahame in for the taxt of the x s. land of Bowtoun in Killbryd estimat in regaird of his absence to be worth of rent yeirlie tuentie four bollis victuall extending in money at lxxx li. the chalder to j^c xx li. taxt to iiij li. v s. vij d.

44. Johne Erle of Montrois and Laurance Graham his chamberlane for his entres for the taxt of the teyndis of the barronie of Gask callit Trinitie Gask estimat in regaird of his absence to be worth of rent yeirlie fyve chalderis victuall—his teyndis of Tulle Eting and Sossnell lyand within the parochin of Ochtirardour to be worth yeirlie ten chalderis victuall—his teyndis of the landis within the parochine of Abbaruthven to be worth of rent yeirlie aught chalderis sex bollis victuall—Summa of the victuall tuentie three chalderis sex bollis extending in money at lxxx li. the chalder to ane thowsand aught hundreth threescore ten pundis quhairof defeaseit payit be him to the minister of Trinitie Gask in his stipend yeirlie fourscore sextine pund—to the minister of Ochtirardour in his stipend lv li. xj s. j d.—to the minister of Abbaruthven in his stipend yeirlie lxxxx li.—Summa of the defeaseis tua hundreth fourscore pundis xj s. j d.—Sua restis ane thowsand sex hundreth xxviiij li. viij s. xj d. taxt to xliij li. x s. vj d.
45. William Erle of Menteith for the taxt of his teyndis of the barronie of Killbryd estimat in regaird of his absence to be worth of rent yeirlie four chalderis xiiij bollis victuall extending in money at lxxx li. the chalder to three hundreth fourscore ten pundis quhairof defeasit payit be him of tak dewtie to my Lord of Madertie yeirlie tuentie four pundis. Sua restis of frie rent iij^e lxxvj li. taxt to
x li. ij d.
46. S^r James Campbell of Laweris knight for the taxt of his teyndis of the landis of Sordew Aberlydnoeh and Ballmuk extending in the haill to xxj merkland estimat in his absence to be worth of rent yeirlie ane chalder xiiij bollis ij f. ij peckis victuall extending in money at lxxx li. the chalder to ane hundreth fourtie aught pundis ij s. vj d. taxt to iiij li. xj d.
47. David Vicount of Stormont for the taxt of his teyndis of the landis lyand within the halff of the parochine of Strowane estimat in regaird of his absence to be worth of rent yeirlie the chalderis of victuall and sowmes of money efter following, viz.—his teyndis of the half landis of Ermmarcharrigane ten bollis victuall—his teyndis of the half landis of Trewin tuentie tua bollis victuall—his teyndis of the half landis of Easter Lochlane four bollis victuall—his teyndis of the landis of Wester

Lochlane tuelff bollis victuall—his teyndis of the landis of Strowane Etowne aughtene bollis victuall—his teyndis of the half landis of Glescherre and Duntarvie sex bollis victuall—his teyndis of the half landis of Glenteiff sex bollis victuall—his teyndis of the half landis of the xx merkland of Dalbeith tuelff bollis victuall and tuelff pundis sex schilling aught penes of silver—his teyndis of the half landis of Dundarne with the pertinentis ane hundreth pundis—his teyndis of the half landis of Inerzeleis fourtie ane pund threttine schilling four penies—his silver teynd of the half of the tuelff merkland of Ardoiche and Derre tuentie fyve pund—and his teyndis of the half landis of Edinkip tuentie fyve pundis—Summa of the teynd silver abowewritten tua hundreth pund—Summa of the teynd victuall abowewritten fyve chalder ten bollis victuall extending in money at lxxx li. the chalder to four hundreth and fyftie pund—Summa of the haill silver abowewritten sex hundreth and fyftie pundis taxt to . . . xvij li. xv s. v d.

48. David Vicount of Stormont for the taxt of his teyndis of his landis lyand within the old parochine of Tulliechetill estimat in regaird of his absence to be worth of rent yeirlye the chalderis of victuall and sowmes of money underwritten, viz.—his teyndis of the landis of Dalniskae ten bollis victuall—his teyndis of the landis of Drumermoch xvj bollis victuall—his teyndis of the landis of Farnes xij bollis victuall—his teyndis of the landis of Tulliebanocher xvij bollis victuall—his teyndis of the landis of Cwltar Birgane with the pertinentis xvij bollis victuall—his teyndis of the landis of Barrones Landis being jx akeris of land iij bollis victuall—his teyndis of the landis of Three Megouris sex bollis victuall and lvj li. xij s. iij d. money—his teyndis of the landis of the Blairmonar fyftie pund—his teyndis of the remanent of Culterbriganis landis fyftie pund—his teyndis of the landis of Cullincarie xvj li. xij s. iij d.—his teyndis of the landis of Finglen xvj li. xij s. iij d.—his teyndis of the landis of Auchinschelache xxxij li. vj s. viij d.—his teyndis of the tak land of Drumthark viij li. vj s. viij d.—Summa of the silver abowewritten ij^c xxxj li. xij s. iij d.—Summa of the victuall fyve chalderis ane boll extending in money at lxxx li. the chalder to iij^c v li.—Summa of the haill silver vj^c xxxvj li. xij s. iij d. taxt to . . . xvij li. viij s. ij d.

49. Hendrie Readhewche in Abirlydnock and David Readhewche his brother for the

taxt of the teyndis of the landis of Wester Abirlydnoche and Tamparrone estimat in ther absence to be worth of rent yeirlie tuentie bollis victuall extending in money at lxxx li. the chalder to ane hundreth pund quhairof defeased payit be them of tak dewtie to my Lord of Madertie yeirlie v li. and to the minister of Monevaird in his stipend yeirlie xvj li. viij s. viij d. Sua restis of frie rent lxxvij li. xij s. iij d. taxt to xlij s. vj d.

49. James Readochie of Cars for the taxt of his teyndis of Cars estimat in regaird of his absence to be worth of rent yeirlie vij bollis victuall extending in money at lxxx li. the chalder to xxxv li. quhairof defeased payit be him of tak dewtie to my Lord yeirlie xl s. and to the minister of Monyvaird yeirlie fyve pund. Sua restis of frie rent tuentie aucht pund taxt to xv s. iij d.

50. Marjorie Campbell relict vmquhill James Readhutchie of Culterbrigane for the taxt of the halff of the teyndis of the landis of Easter Aberlydnoch and Logane estimat in regaird of hir absence to be worth of rent yeirlie xvij bollis victuall extending in money at lxxx li. the chalder to lxxxv li. quhairof defeased payit of tak dewtie to my Lord of Madertie yeirlie ten merk and to the minister of Monyvaird in his stipend yeirlie tuentie fyve merkis. Sua restis lxj li. xij s. iij d. taxt to xxxij s. jx d.

51. Patrick Grahame of Inchbrakie and Sir James Drummond of Machanie or any of them haveing best right to the teyndis efter specifeit for the taxt of the teyndis of the landis of Perney Strathie and Perney hill with ther pertinentis within the parochine of Abbaruthven estimat in regaird of ther absence to be worth of rent yeirlie tua chalderis xj bollis victuall extending in money at lxxx li. the chalder to tua hundreth and fyftine pund quhairof defeased payit be him to the minister of Abbaruthuen in his stipend yeirlie threttie pund. Sua restis j^c lxxxv li. taxt to v li. j s. ij d.

52. Patrick Grahame of Inchbrakie for the taxt of his teyndis of the parochine of Ochtirardour be north the Water of Ruthuen estimat in regaird of his absence to be worth of rent yeirlie ten chalderis victuall extending in money at lxxx li. the

chaldre to viij li. quhair of defeasit payit be him to the minister of Ochirardour and Abbaruthven in thair stipend yeirlie j^e vj li. xij s. iij d. Sua restis ij^e lxxxij li. vj s. viij d. taxt to xvij li. xix s. iij d.

53. Sir James Drummond of Makhanie knight for the taxt of his teyndis of the lands of Gorthie estimat in regaird of his absence to be worth of rent yeirlie iij chalders iij bollis victuall extending in money at lxxx li. the chaldre to ij^e xl li. quhair of defeasit payit be him of tak dewtie to my Lord Madertie xx li. xij s. iij d. Sua restis ij^e xix li. vj s. viij d. taxt to viij li. xij s. jx d.

54. Sir James Drummond of Machanie for the taxt of his teyndis of his pairt of Kinkell estimat in regaird of his absence to be worth of rent yeirlie vij chalders tua bollis victuall extending in money at lxxx li. the chaldre to v^e lxx li. quhair of defeasit payit be him yeirlie to the minister of Kinkell in his stipend lx li. Sua restis v^e x li. taxt to xij li. xvij s. xj d.

55. The said Sir James Drummond of Machanie for the taxt of his pairt of the teyndis of the parochine of Abbaruthven estimat in regaird of his absence to be worth of rent yeirlie xliij bollis victuall tua peckis iij lipes extending in money at lxxx li. the chaldre to ij^e xv li. xvij s. iij d. quhair of defeasit payit be him to my Lord of Madertie vij li. vj s. and to the minister of Abbaruthven in his stipend xxxj li. Sua restis ane hundreth lxxvij li. xj s. iij d. taxt to iij li. xvij s. j d.

56. of Macknaughtane for the taxt of the teyndis of the Kirk of Kirkmoriche estimat in regaird of his absence to be worth of rent yeirlie j^e lxxvj li. xij s. iij d. quhair of defeasit payit be him of tak dewtie to my Lord of Madertie yeirlie viij li. Sua restis j^e lvij li. xij s. iij d. taxt to iij li. vj s. jx d.

57. Patrick McKairtour of Tullierodiche for the taxt of his teyndis of the landis of Inchecheall estimat in regaird of his absence to be worth of rent yeirlie ij^e xxxij li. vj s. viij d. quhair of defeasit payit be him of tak dewtie to my Lord of Madertie yeirlie xij li. Sua restis ij^e xxj li. vj s. viij d. taxt to vj li. j s.

58. Lennox of Blaorinschegall for the taxt of his teyndis of the parochie of Balfrone estimat in regaird of his absence to be worth of rent yeirlie vij chalders xv bollis victuall extending in money at lxxx li. the chalder to vij^c xxxv li. taxt to xvij li. vij s. iij d.
59. Murray of Strowane for the taxt of the teyndis of Cairsmoir estimat in regaird of his absence to be worth of rent yeirlie viij bollis victuall extending in money to xl li. quhairof defeasit payit be him of tak dewtie to my Lord Madertie x s. Sua restis xxxix li. x s. xxj s. vij d.
60. Andro Stewart in Gortinforrene for his taxt of his pairt of the pendicles of Monyvaird estimat in regaird of his absence to be worth of rent yeirlie j^c xxxiij li. vj s. viij d. quhairof defeasit payit be him of tak dewtie to my Lord of Madertie xxix li. vj s. viij d. Sua restis j^c iij li. taxt to lvj s. x d. ij f.
61. George Hay of Kilour for the taxt of the teyndis of the barronie of Killour estimat in regaird of his absence to be worth of rent yeirlie iij chalder viij bollis victuall extending in money at lxxx li. the chalder to three hundreth lx li. quhairof defeasit payit be him to my Lord of Madertie xxviij li. Sua restis of frie rent three hundreth threttie tua pund taxt to jx li. j s. vj d.
62. Mr William Murray of Ochertyre for the taxt of his teyndis of the landis of Ochertyre Cog and Craiglen estimat in regaird of his absence to be worth of rent yeirlie tua chalders ane boll victuall extending in money at lxxx li. the chalder to j^c lxxv li. quhairof defeasit payit be him of tak dewtie to my Lord of Madertie yeirlie tuelff pundis xij s. iij d. Sua restis of frie rent ane hundreth fyftie tua pundis vj s. viij d. taxt to iij li. iij s. iij d.
63. Sir William Murray of Abercarney for the taxt of his xx s. land of Inchettick estimat in regaird of his absence to be worth of rent yeirlie aught bollis victuall extending in money at lxxx li. the chalder to foirtie pund taxt to xxj s. x d.
64. Sir Johne Monereiff of that ilk knight and Sir William Murray of Abercainrie for

the taxt of the Abbottis Croft in Gorthie estimat in regaird of his absence to be worth of rent yeirlie aught bollis victuall extending in money at lxxx li. the chalder to fourtie pundis taxt to xxj s. x d.

65. Sir Johne Moncreiff of that ilk knight and Sir William Murray of Abercairnie for the teyndis of the landis of the parochine of Foullis, viz. the teyndis of the landis of Auchallis Bolnollis Easter and Wester Letterbannoche halff of Kintoche Leacok Drumfin Casseltoun Pitlandie Toftis and Channachar estimat in regaird of ther absence to be worth of rent yeirlie nyn chalderis aught bollis victuall extending in money at lxxx li. the chalder to seivin hundreth threescore pundis quhairof defeasit payit to the minister of Toullis in his stipend yeirlie fourtie pund. Sua restis of frie rent seivin hundreth and seivintine pund taxt to xix li. xij s. j d.

66. Sir William Murray of Abercairdnie for the taxt of the teyndis of the landis of Conathernie estimat in regaird of his absence to be worth of yeirlie rent xxxiij li. vj s. viij d. quhairof defeasit payit be him of tak deutie to my Lord of Madertie xlvij s. Sua restis of frie rent threttie pundis xvij s. viij d. taxt to xvij s.

67. James Earle of Glencarne his xl s. land of the forrest of Balthrone estimat to be worth of rent yeirlie aught bollis victuall extending in money at lxxx li. the chalder to xl li. taxt to xxj s. x d.

Sic subscribitur,

Duplin,
MR THO. MURRAY.

This is the just copy of the principall taxt roll extractit by me,

A. OGILVIE, *Clerk.*

IV.

CARTAE RECENTIORES DE INCHAFFERY.

EX AUTOGRAPHIS.

De licencia piscandi pro anguillis in Polpefery.

- 1 Robertus Mersar de Inuerpefery . . . Nouerit vniuersitas vestra me . . . cum consensu et assensu Alexandri Mersar heredis mei et cum consensu et assensu Andree Mersar de Inchebreky auunculi mei cui diete terre de Inchebreky sunt impignorate . . . dedisse . . . pro salute anime mee et animarum Jonete sponse mee Alexandri heredis mei supradicti et omnium successorum meorum abbati et conuentui Insule missarum . . . licenciam perpetuam piscandi per arcas retia aut alia instrumenta quecunque pro anguillis et aliis piscibus capiendis necessaria in loco qui vulgariter dicitur ly Polpefery infra dominium meum de Dullory ac vnā vel plures arcas retia aut alia instrumenta pro huiusmodi piscibus habendis conuenientia . . . locandi super ly Polpefery . necnon et strues lignorum congeries lapidum ac muros terrarum faciendi . . . terrarumque fodiendi ac lapides scindendi et optinendi super terras meas predictas de Dullory . . . pro sustentacione . . . instrumentorum pro captura predictorum piscium . . . Insuper si contingat me aut heredes meos . . . donacionem diete libertatis et licencie piscandi . . . aliquatenus revocare obligo me heredes meos . . . in centum libris ꝥsualis monete Seocie . . . Eciam volo et concedo casu quo contingat me et heredes meos . . .

imponere seu locare arcam uel arcas rete aut retia seu alia quecunque instrumenta ad pisces capiendos in predicto loco de Polpefery quod pro tunc licitum sit predictis abbati et conuentui . . . easdem arcas retia seu instrumenta capere . . . et ad proprios vsus appropriare . . . sine . . . repeticione per me vel heredes meos. In cuius rei testimonium sigillum mei Roberti Mersar nec non et sigillum Andree Mersar auunculi mei presenti carte mee sunt appensa coram hiis testibus. Tristramo de Gorty Johanne Quhytson Alexandro Cardeny Willelmo Bonar de Kelty Alexandro Scharp de Strathy et Johanne Crab scutifero cum multis aliis 24 Junij A.D. 1454.

- 2 Carta feudifirmaria ab Alexandro Atheniensi archiepiscopo commendatarioque perpetuo monasterij Insule Missarum pro certa pecuniarum summa facta Johanni Eldar super terris vulgariter Tullechandich vocatis jacentibus in baronia de Cairdry Reddendo annuatim veteri firma in pecuniam commutata summam quadraginta solidorum inuehendo etiam annuatim ad monasterium triginta duas lie meterelis petarum et pro qualibet marcata dictarum terrarum vnum onus vulgo *ane hors lede* cementi siue calcis et vnum simile onus tegularum ad monasterium et ecclesias eiusdem fenum autem in modum solitum et consuetum . brasium ad molendinum portando . et pro quibuslibet duobus marcatis dictarum terrarum vnum equum cum trahea vulgariter *ane sled* ad vecturam decimarum ministrando . vectori et officario granum argentum et stramina more solito solvendo necnon pro qualibet marcata vnam ferlotam avenarum et vnum lie thraif straminum. Data sub communi sigillo apud monasterium Insule Missarum 8 Aprilis 1557. Subscribunt

Alexander Commendatarius
Johannes Maineris prior
Thomas Gardener supprior
Paulus Cunygham

Georgius Spens
Johannes Rauff
Willelmus Melrose
Alexander Murray

Alexander Wycht
Jacobus Donaldson

- 3 Carta feudifirmaria ab Alexandro archiepiscopo Atheniensi ad episcopatum Sodorensem postulato ac commendatario perpetuo monasteriorum de Incheffray et Ycolmkill facta pro summa mille librarum Patricio Murray vicario pensionario de

Fowlis super duodecim mercatis terrarum de Newraw et quatuor mercatis terrarum vocatarum Kirkland de Maderty cum prato vocato Kirk medo et terris de Wynminhill vna cum privilegio lucrandi fodiendi duodecim dietas petarum in occidentalibus merresiis de Incheffray Reddendo inde annuatim summam sexdecim librarum septem solidorum et quatuor denariorum cum aliis prestationibus consuetis. Data sub communi sigillo atque subscriptionibus manualibus conventus apud monasterium de Incheffray 10 Feb. 1558.

4 Preceptum sasine datum eodem die.

5 Instrumentum sasine in eisdem terris datum 16 Septembris A.D. 1559.

6 Discharge by Alexander Archbishop of Athenis to dene Patrik Murray vicar portionar of Fowlis for the sowme of tuelf hundreth pundis that is to say ane thousand pundis for the few of the landis callit the tuelf merk landis of Newraw the four merk land callit the Kirk land of Madirty with the Kirk medow and the landis of Wynminhill and the remanent tua hundreth pundis for the fewis of the Ward Hay grene Todhill and the Kirkland of Kinkell. Givin under the commone scill and superscriptionis manuall A.D. 1559.

7 Carta feudifirme ab eodem facta pro summa mille librarum domino Patricio Murray vicario pensionario de Fowlis super duodecim mercatis terrarum de Newraw quatuor mercatis terrarum ecclesiasticarum vocatarum Kirkland de Maderty cum prato vocato Kirkmedo et terris de Winmyhill cum pertinenciis jacentibus in baronia de Cairdny in dominio de Incheffray Reddendo summam pecunie extendentem in toto ad vndecim libras novemdecim solidos et quatuor denarios necnon horreum molendinum et *lie miln leid* in modum solitum sustentando multurasque soluendo solvendo etiam *catur et officiar corne* argentum ac stramina solita vna cum equis pro

inductione decimarum feni et brasii . solvendo etiam herezeldam cum per mortem contigerit seu pro eadem quatuor libras monete. Data apud Incheffray 10 Feb. 1558 sub communi sigillo capituli et subscriptionibus manualibus que sequuntur.

Alexander Commendatarius	Johannes Rauff	Alexander Murray ⁷
Thomas Gardener Prior	Pawlus Cwnygham	Andreas Farnour.
Jacobus Ramaldson	Willelmus Melrose	
Johannes Car	Willelmus Ruthwen	

8 Carta ab eodem facta Patricio Murray super duodecim mercatis terrarum de Newraw antiqui extentus cum pertinentiis jacentibus in parochia de Maderty quadraginta solidatis terrarum de Thornyhill alias Wallace land cum prato et domibus et hortis earundem terris de Wynmynhill terris de Warde Todhill et Haygrene bondatis vt sequitur viz. inter silvam vocatam Incheviott et lie gait passand fra the Todhill to the lang medo ex occidentali viridem hortum vulgariter the grene zaird aminirlane zaird et lie priouris medo ex orientali et lie pow ex boriali et lie weil croft et ackorne fauld ex australi partibus et super prato vulgo vocato priouris medo et diversis domibus et lie ged stankis et pastura animalium in lie duobus West Mossis et lie braid Inche de Incheffray vna cum privilegio lucrandi et fodiendi octodecim dietas petarum in dietis marresiis Reddendo inde annuatim viginti libras quatuordecim solidos et octo denarios necnon duplicando dictam summam introitu cuiuslibet heredis. Data sub communi sigillo et subscriptionibus capituli apud monasterium Insule Missarum 10 Feb. 1558.

9 Instrumentum cum precepto sasine super eisdem datum 17 Sep. 1559.

10 Carta feudifirmaria cum precepto sasine ab eodem pro summa duarum mille librarum monete Scotie facta Patricio Murray filio Antonij Murray de Dullerie super terris subscriptis videlicet duodecim marcatis terrarum de Newraw antiqui extentus

terris de Ward Todhill et Hay grene cum decimis garbalibus earundem terris de Wynmyhill cum decimis garbalibus earundem vna cum lie grene rysk jacentibus infra Warddyk et Welcroft vna cum prato vocato priouris medow viginti solidatis terrarum de Thornyhill alias Wallace land cum decimis garbalibus earundem prato et mora eiusdem que mora bondatur ut sequitur videlicet lie Calsey que ducit ad silvam de Inchecheviot ex orientali pratum occupatum per Edwardum Graham ex occidentali dicta sylva de Inchecheviot ex boreali lie Eldaris land et Thornyhill ex australi partibus ac etiam super quibusdam domibus et hortis et lie ged stankis et super viginti quatuor solidatis terrarum de Burnheid et Burnfute cum decimis garbalibus earundem necnon super sylva de Inchecheviott et petia terre vocata *the Blair* cum decimis garbalibus eiusdem Reddendo inde annuatim summam viginti duarum librarum et sex solidorum ac duplicando dictam feudifirmam introitu cuiusque heredis. Data sub communi sigillo atque subscriptionibus manualibus conventus apud monasterium de Inchaffray 11 Aprilis A.D. 1559.

11 Instrumentum sasine in eisdem datum 17 Julij 1561.

12 Carta feudifirmaria cum precepto sasine ab eodem commendatario pro summa octo librarum facta Patricio Smyth alias Baxtar et eius sponse super terris vocatis Wellcroft vna cum domibus edificiis et ortis per ipsos ac Finlaum Smyth alias Paxtar patrem dieti Patricij occupatis jacentibus inter lie Well strand ex occidentali et ortum vocatum ducat zaird ex orientali publicum vicum quo itur ad ecclesiam de Madirtie ex boreali et croftam vocatam Palice croft ex australi partibus in baronia de Cardny vna cum privilegio fodiendi duas dietas petarum in occidentali marisio de Incheffray et ex parte boreali silve de Incheviot Reddendo inde annuatim decem solidos vna cum duabus pultreis solvendo etiam herezeldam cum per mortem contigerit seu pro eadem viginti solidos necnon duplicando feudifirmam introitu cuiuslibet heredis. Data sub communi sigillo atque subscripta apud monasterium de Inchaffray 12 Octobris A.D. 1559.

13 Instrumentum sasine super eadem datum 17 Octobris 1559.

14 Carta feudifirmaria ab Alexandro Atheniensi archiepiscopo commendatarioque perpetuo monasterii Insule Missarum facta cum consensu capituli Patricio Murraye super terris subscriptis viz. duodecim mercatis terrarum de New Raw antiqui extentus cum pertinentiis jacentibus in parochia de Maderdie quadraginta solidatis terrarum de Thorny Hill alias Wallace land cum prato et moris earundem terris de Wynniuhill cum domibus et hortis earundem terris de Warde Todhill et Hay grene cum singulis earundem pertinentiis bondatis ut sequitur viz. inter sylvam vocatam Inchecheviot and lie peit gait passand fra ye west nuke of ye Todhill to ye lang medo ex occidentali viridem hortum vulgariter ye grene zaird ammirlane zaird et lie prioris medo ex orientali et lie pow ex boreali et lie well croft et accorne fauld ex australi partibus vna cum prato vulgo vocato prioris medo ac etiam diuersis domibus et lie ged stankis et etiam lie breade jnche jacente ex parte boreali sylve de Incheviot vna cum pastura animalium in lie duobus west mossis jacentibus ex australi et boreali partibus dicte sylve de Inchecheviot vna cum privilegio lucrandi et fodiendi octodecim dietas petarum viz. *auchtene day workis peitis* in dictis marresiis easdemque abducendi tempore solito Reddendo . . . Data sub communi sigillo apud monasterium Insule Missarum A.D. 15 * * et subscripta

Alexander Commendatarius
Alexander Murray
Willelmus Melros

Thomas Gardener, prior
Robertus Car
Georgius Speus
Pawlus Cwnygham.

15 Discharge under the common seill by the commendator and convent of Inchaffray in favour of Patrick Murray chamberlain of the said abbay for his intromissioun with the fruitis rentis proffitis dewities jowellis and vther graith pertenyng thairto. Subscrivit at A.D. 15 * *

16 Confirmatio Commendatarii et capituli de Inchaffray super carta Patricij Murray filii Anthonii Murray de Doloray qua cum consensu coniugis vendit honorabili viro Wilhelmo Murray filio et heredi apparenti Willelmi Murray de Tulibardyn duodecim marcas terrarum de New Raw quatuor marcas terrarum de Thorny Hill cum prato eiusdem terras de Wynmynhill terras vocatas lie Ward Todhill et Hay grene vna cum privilegio lucrandi fodiendi sedecim dietas petarum in occidentalibus merresiis de Inchechaffray ac etiam cum pastura animalium in dietis merresiis. Data sub communi sigillo et subscriptionibus manualibus capituli apud . . . A.D. 15 * *

17 Carta feudifirmaria ab eodem commendatario pro summa mille librarum facta Patricio Murray filio Anthonij Murray de Doloray super terris subscriptis viz. duodecim marcatis terrarum de New Raw quatuor marcatis terrarum de Thorny Hill alias Wallace land vocatarum cum prato eiusdem terris de Wynmynhill vna cum privilegio lucrandi fodiendi sedecim dietas petarum in occidentalibus marresiis de Inchechaffray easdemque petas abducendi tempore solito ac etiam cum pastura animalium in dietis marresiis Reddendo annuatim in integro pro predictis terris summam novemdecim librarum et duodecim solidorum necnon molendinum et lie mylne leid in modum solitum sustentando multurasque solvendo et duplicando antedictam feudifirmam primo anni introitus cujusque heredis. Data sub communi sigillo capituli apud A.D. 15 * * et subscribunt

Alexander Commendatarius
Georgius Spens
Alexander Murray

Robertus Car
Andreas Farmour

Thomas Gardener Prior
Willelmus Melrose
Pawlus Cwnygham

18 Instrumentum sasine in favorem Patricii Murray vicarij de Fowlis super tribus bollis victualium annuatim levandis de lie Brewlandis de Ardbany. Datum 26 April A.D. 1560.

- 19 Preceptum sasine ab Alexandro Archiepiscopo Atheniensi ad episcopatum Soderensem postulato in favorem Patricij Murray filii Anthonij Murray de Doleray super duodecim mercatis terrarum de Newraw quatuor mercatis terrarum ecclesiasticarum de Madertie cum prato vocato Kirkmedow et terris de Wynmynhill datum 8 Marcij 1561.
- 20 Resignation be Margaret Hay in Madertie of ane croft of land liand in the said toune of Madertie callit the Welcroft wedset be hir and vmquhile Patrik Baxter alias Smyth hir spous to Williame Johnnestoun in Pertht vpoun the sownie of twenty merkis in favouris of dene Paule Cunynghame channone of Inchechaffray and also of the rest of nyuetene zeiris takkis of ane aiker of land in Wyndmylne [hill] liand in ye said toun yat ar to rin furtht set be dene Patrik Murray in Newraw to hir and hir said vmquhile spous. Dated 9 April 1563.
- 21 Grant by Alexander bischope of Galloway commendatar of the abbay of Incheffray and convent thairof in favour of Alexander Murray sone and apperand air to Patrik Murray of Newrow for all the dayis of his lyfytyme of ane yeirlie pensioun of the sowme of twenty tua pundis money of this realme to be liftit of the malis and teynd sylver of Newraw Burneheid and Burnefute Ward Todhill and Hay grene Thorniehill alias Wallaceland and Wod and Wodland of Inchecheviot and the Blair adjacent therto. Subscrivit and gevin under the chaptoure seill of the abbay at Inchecheffray 30 Apryle 1563.
- 22 Charter with precept of sasine be Alexander Bischope of Galloway commendatur of Inchechaffray and convent thairof in favour of Patryk Murray of Newraw Elizabeth Murray his spous Alexander Murray thair sone and ane air of the said Alexander of the teynd schawis of Newraw the Kirkland of Madertie Wynmynhill the Brewland of Arbanay and Burnheid payand thairfor yeirlie the sowme of ten merkis thrie

schillingis four pennies. Gevin under the commoun seill of the chaptour and sub-scriuit at Incheffra 14 Julij 1563.

23 Instrument of sasine thairon dated 24 July 1563.

24 Discharge be Alexander bischop of Galloway Commendatur of Incheffray in favour of Patrik Murray of Newraw of the few mailis fermis teyndis teynd siluer and all vtheris deuteis aucht to the said commendatur of Newraw Thorny hilla Burneheid Brewland of Ardbany Wynminhill Ward Haygrene Todhill with the mailis of the wod of Incheviot and mos therof thrattene acre and ane half land callit the mains of Incheffray Ester and Wester Cammagiis meikle and littill Incheuallois the lang medow the toft and croft occupeit be Sir Andro Rollok and the abbatis barne and barneyarde at Incheffray. 1 Aug. 1564.

25 Instrumentum sasine in favorem Patricij Murray de Newraw super silva de Incheviot terris in quibus dicta silva crescit duobus marresiis jacentibus boreali et australi partibus dicte silve, octo rigis, paleis croft, accornfald Almerij yard, Grene yard, abbotis barn cum horto eiusdem et quibusdam domibus et hortis et decimis garbalibus predictarum terrarum. Datum 28 Augusti A.D. 1564.

26 Instrumentum sasine in favorem Alexandri Murray filii Patricii Murray de Newraw in duodecim mercatis terrarum de Newraw antiqui extentus quadraginta solidatis terrarum de Thorniehill alias Wallace land terris de Wyndmylnhill terris de Ward Todhill Hay grene cum prato vocato Priouris medow silva vocata Incheviot et aera crofte vocata Accornefald Almeray yairde et octo rigis vocatis Paleis croft Abades croft Barne yairde necnon super quibusdam domibus croftis toftis et hortis cum decimis garbalibus omnium predictarum terrarum. Datum 18 Marcij A.D. 1565.

27 Band between David Lord Drummond and Williame Lyndesay sone to vmquhile David Lyndesay of Cultrany on that ane part and Patrik Murray of Newraw on that vther in which it is appoyntit that the said William Lyndesay sall resign in the handis of the said noble Lord his immediat superior to remane with the said noble Lord and his airis all and hail the Yuche callit the Bred Yuche lyand vpon the west and north partis of the wode of Incheviot and his thrattie schilling land liand beside the end of the said wode of Incheviot and als that pice of land callit the Rone togidder with the teynd schawis of the samyn landis liand in the lordship of Maderty quhilk resignatioune sua being maid be the said William the said noble Lord sall infest the said Patrik Murray of Newraw and his airis heritable in all the forsaid landis togidder with the tua medowis callit Incheuallas and the croft callit the smyddie croft ffor the quhilk caus the said Patrik Murray biudis him and his airis at the command of the said noble Lord to infest the said Williame Lyndesay and his airis male quhilkis failyeing James Drummond secund sone to the said noble Lord and his airis in his landis callit the Palice croft with the abbotis barne and barne yairde with certain houssis and yairdis the gedstankis togidder with the smyddie croft with the Almerie yairde and Greene yairde the medo callit the Priouris medo with the Ilay grene and Warde fra the auld wod dyck eist to the grene yairde and Priouris medo with the moss lyand vpon the north syde of the Todhill to the lang medo stank fray the payit gett eist to the Calsay and with the teynd schawis of the samyn landis. At Incheffray 3 February A.D. 1566.

28 Instrumentum resignationis predictarum terrarum de Wodend Bred Inche etc. a Willelmo Lyndesay facte in manibus David domini Drummond in favorem supra nominati Patrieij Murray. Datum 4 Februarij A.D. 1566.

29 Confirmatio Jacobi abbatis monasterii Insule Missarum vna cum Davide domino Drummond eius coadjutore cuiusdam carte venditionis a Davide Eldare de Tullychandich facte suo fratri Johanni Eldare super terris vocatis Tullychandich. Data

apud Incheffraye sub communi sigillo et subscriptionibus capitali vnacum sigillo et subscriptione prefati Davidis domini Drummond 13 Marcij A.D. 1566.

Jacobus Abbas	William Ruthuen
Dauid Lord Drummond	Andreas Farnour
Thomas Gardener Prior	Georgius Spens
Alexander Murray	Pawlus Cwnygham.

30 Carta Patricii Murray de Newraw cum consensu Elizabethæ Murray sponse et Alexandri Murray filii sui facta Thome Gaw super annuali redditu viginti librarum percipiendi de terris de Wodend Inchechewah Tullechandy et Thornye hill. Data apud Wodend 10 May A.D. 1579.

31 Ratification of the above charter by the said Alexander Murray now efter his perfyte age of tuentie ane yeiris. At Perth 31 Dec. 1586.

32 Extract ratification by Jeane Cheisholme spows to James Drummond of Inverpeffray commendator of Incheaffray of a renunciation be her to Patrik Murray of Newraw Elizabeth Murray hes spows and Alexander Murray thair sone of her lyferent richt to the fourtie schilling land of Thorniehill with the medow and inuer of the same Wynmynhill tua aker of land callit auchtriggis Tullychandieh with the lang medow togidder with the teind schewis of the saidis landis. At Incheaffray 3 Junij A.D. 1585.

33 Charter by James Commendatar of the abbay of Incheaffray and convent thair of to Patrik Murray of Wodend during all the dayis of his lyfytyme for payment of ane thowsand merkis, of ane yeirle pensione of twentie fowr pundis and of the wicarage victuall and vther dewties of Wodend meikle and litle Incheuailayis the lang medow the Todhill the Accorne fauld the Blair the wodland and wod

of Incheviot with the mossis and wtheris pertinentis lyand on the northe and sowthe pertis of the above wretin landis the toft and croft occupeit sumtyme be sir David Rollok and Grene risk benethe the samyn the aucht rigis Wynmilhill Tulliehande Thornehill alias Wallaceland Brewland of Ardbany Burneheid with all thair pertinentis. At Incheaffray under the commowne seill of the abbay 6 Junij A.D. 1585.

- 34 Grant be James commendatar of Incheaffray and convent thairof to Alexander Murraye sone of Patrik Murray of Wodend for all the dayes of his lyftyme and to thre his airis ilk ane eftir vther successiue for all the dayes of thair lyftymes and eftir the deceis of the last of the thre airis to the airis of the said Alexander for the space of nyneteine yeiris, of all and haill the maillis ferme siluer teind siluer wicarage with vtheris dewties of the landis of Wodend and vtheris above specifeit, becaus the said Patrik Murray of Wodend hes demittit to Jeane Cheisholme spows to the said commendatar and to Johnne Drummond thair sone his rycht and title to the landis Newraw Warde Hay grene the aceris callit the New yairde New yairde heid Smidde croft Paleis croft Almerie yaird and grene yaird Ester and Wester Cammages with the abbottis barne and barne yaird, for the sowme of ane thowsand pundis delyverit to the said commendatar by the said Alexander Murray. At Incheaffray under the commoun seill of the abbay 6 Junij A.D. 1585.

James commendatar Alex^r Murray.
Pawll Cunygham

- 35 Instrument of exoneration in favour of Patrik Murray of Wodend from payment of an anuel rent of fourtie merkis due to Johnne Murray of Ardbany and Agnes Murray his spous out of the landis of Newraw. Dated 4 April 1586.
- 36 Carta Willelmi Grahame servi Johannis comitis de Montrois Andree Grahame suo fratri facta super venditione annui redditus duarum bollarum farine et duarum

ollarum ordeï annuatim levandi de terris de Tullichandich. Data apud Ald Montrois 22 Septembris A.D. 1588.

37 Discharge by the said Andro Graham to Alexander Murray of Wodend from payment of the above annual redeemed by the sowme of fifty markis money vsuall of this realme. Perth 9 Merche A.D. 1594.

38 Carta cum precepto sasine ab Alexandro Murray de Wodend Patricio Murray suo filio primogenito ac Egedie Murray filie Johannis Murray de Tibbermwre future sponse dicti Patricij facta pro impletione sue partis cuiusdam contractus matrimonialis super triginta solidatis terrarum prope finem silue de Incheviot ex occidentali parte eiusdem vulgo dictis Wodend petia terre vocata lie Rone insula vocata Braidinche cum marresiis eiusdem petia silve ex parte australi dicte lie Braidinche iacente silva de Incheviot terrisque silvariis eiusdem petia terre vocata lie Blair Todhill Incheualayis cum lie Langmedow et lie mossis Accornefauld cum domibus et hortis ac cum omnibus decimis garbalibus dictarum terrarum et lie Wellcroft et lie grene eirth necnon super Windmilhill quadraginta solidatis terrarum de Thornihill cum prato et mora eiusdem Tullichandich cum lie grene risk ac lie aucht riggis cum pertinentiis et decimis garbalibus earundem terrarum. Data apud Wodend 28 Februarij A.D. 1614.

E REGISTRO DE INNERPEFFERY.

Carta Joannis Loutfute super Balmaclone.

- 39 . . . Jacobus permissione divina commendatarius perpetuus monasterii de Inchecheffray et ejusdem loci conventus . . . Sciatis nos quandam cartam . . . factam per Alexandrum Loutfute . . . Johanni Loutfute juniore suo filio et heredibus suis . . . ad plenum intellexisse sub hac forma . . . Alexander Loutfute . . . Noveritis me . . . vendidisse . . . meo filio juniore Johanni Loutfute . . . meas duas marcas terrarum de Balmaclone cum pertinentiis . . . jacentes in baronia de Maderdie . . . pro summa ducentarum marcarum . . . Reddendo inde annuatim . . . mihi et heredibus meis unum denarium . . . necnon abbati seu commendatario et conventui de Inchecheffray . . . summam triginta trium solidorum et quatuor denariorum monete Scotie ad duos anni terminos consuetos . . . ac etiam duos capones et duas pulturas et pro qualibet marca dictarum terrarum quindecim lie met crelis petarum unum onus vulgariter *ane horse loed* cementi sive calcis unum simile onus tegularum ad dictum monasterium de Inchecheffray . . . cum administratione unius equi cum trahea ad vecturam decimarum garbaliu ad horreum . . . horreum et molendinum ad modum solitum reparando et sustentando terrasque dominicales vulgariter *lie mains* in modum solitum pro rata terrarum colendo et laborando vectori et officario vulgo *caterer and officier corne* argentum et stramina solita et consueta necnon *lie kill stra* ad quantitatem solitam ministrando brasium vulgariter *malt* ad molendinum in modum solitum portando . . . solvendo etiam pro dictis terris octo peccas auenarum quatuor lie thravas straminum ad sustentationem et pabulum jumentorum dicti loci . . .

Apud Craig 5 Octobris A.D. 1570 . . . Quamquidem cartam . . . confirmamus . . . apud idem nostrum monasterium 18 Decembris A.D. 1579.

Carta Willelmi Drummond super terris de Ardenny.

- 40 Jacobus permissione divina commendatarius perpetuus monasterii Insule Missarum . . . Noveritis . . . nos . . . ad feudifirmam seu emphiteosim hereditarie dimisisse . . . Willelmo Drumond . . . et Margarete Rollok sponse ipsius Willelmi . . . terras de Ardewyn cum singulis suis pertinentiis jacentes in baronia nostra de Cardiny dominio de Maderdy . . . Reddendo inde annuatim . . . summam octo marcarum usualis monete regni Scotie . . . cum multuris molendinis nostris solitis . . . ac etiam summam viginti sex solidorum et octo denariorum . . . unacum duabus bollis auenarum vulgo *lie hors corne* et octo *lie thravis* straminum in augmentationem nostri rentalis . . . ac molendinum nostrum sustentabunt more solito ac solvendo officario nostro granum suum debitum et consuetum . . . Insuper heredes sui . . . tenebuntur integram feudifirmam unius anni duplicare primo anno eorum introitus solvendo etiam unam herezeldam sive sex marcas pro eadem quoties per mortem contigerit . . . Insuper . . . ballivis nostris . . . mandamus quatenus . . . sasinam . . . predictarum terrarum de Ardewny . . . prefatis Willelmo Drumond et Margarete Rollok ejus sponse . . . deliberetis . . . apud dictum nostrum monasterium A.D. 1580.

Tak Laird Tullibardin of the teyndis of Foullis.

- 41 Be it kend till all men be thir present lettres We James commendatar of Incheffray and convent of the samin to have sett . . . to the richt honourabill Sr Johne Murray of Tullibardin knight . . . the teynd schavis of the town and landis of Lacok extending in victuall to tuelff bollis meill six bollis bear, the teynd schavis of Pitlandy extending to ten firlottis meill six firlottis bear, the teynd schavis of Casteltoun extending to tuentie tua bollis mele aucht bollis bear, the teynd schavis of toftis extending to thre bollis mele ane boll beir, the teynd schavis of Schannochar

extending to tua bollis mele ane boll bear, the teynd schavis of Drumfyn' extending to fourtene bollis meill four bollis bear, the teynd schavis of the ane half of Kyntochir extending to ten bollis tua firlottis meill six bollis bear, the teynd schavis of Kerss and Craganis croft extending to thre bollis tua firlottis meill four bollis bear, the teynd schavis of Lettirbannochre extending to sevin bollis mele thre bollis bear, the teynd schavis of Achloyis extending to fyftene bollis mele fyve bollis bear, the teynd schavis of Ballinoldois extending to fyftene bollis meill four bollis bear with thair pertinentis all liand within the parochioun of Foullis and sherifdome of Perth extending in the hail to nyne chalderis sex bollis mele and bear as ilk toun respective aboue-writtin devydit be thameselff at mair lenth beris For all the dayis yeiris and termis of nyntene yeiris . . . payand thairfor yeirlie . . . fourtie thre pundis money usuall of this realme . . . and . . . we mak . . . our balleis . . . committand to thame . . . our full power to pas to the foirsaidis landis . . . and entir the said S^r Johnne . . . in and to the teynd schavis thairof . . . Attoure I the said James commendatar foirsaid bindis and oblisses me and my airis . . . To sett in tak . . . to the said S^r Johnne and his foirsaidis all and hail the said teynd schavis . . . For the hail space . . . of uther nyntene yeiris nixt and immediatly following the last yeir of this present nyntene yeir tak . . . ffor yeirlie payment . . . of the sowmes of money aboue specifeit . . . Provyding alwayis that at the ischa and outryning of this present first nyntene tak . . . The said Sir Johnne and his foirsaidis sall . . . delyuer to me and my foirsaidis . . . the sowme of nyntene hundreth fyftie pundis . . . in name of gressum and entres siluer . . . At the kirk of Trinitie gask 10 June A.D. 1603 . . . Befoir thir witnesses Alex^r Murray of Wodend Androw Drummond of Belliclone Anthone Murray in Dowald Johnne Broun and Adame Osuald notaries.

Tak laird Inchebrakie off Quarter Drumphingallie.

- 42 Be it kend till all men be thir present lettres We James commendatar of Incheffray and convent of the samin to have set . . . to . . . Patrik grahame of Inchebrakie . . . the teynd schavis of the west schado quarter landis of Drumphingallie witht the pertinentis extending yeirlie to four bollis victuall thairof thre bollis mele ane boll bear presentlie occupeit be the said Patrik lyand withtin the Stewartrie of

Stratherne and shrefdome of Perth ffor all the dayis space yeiris and termis of nyntene yeiris . . . Payand thairfor yeirle . . . threttene schillings four penyis money of Scotland . . . And . . . we mak . . . our bailleis . . . to pas to the said west schado quarter landis of Drumphingallie and enter the said Patrik . . . to the teynd schavis therof . . . Attoure I the said James Commendatar foirsaid bindis and oblissis me . . . at the ischa . . . of the saidis nyntene yeiris tak . . . to set . . . to the said Patrik . . . the saidis teynd schavis . . . for uthyr nyntene yeiris . . . Provyding . . . the said Patrik . . . delyuer to me . . . the sowme of ffiftie pundis . . . in name of gressum and entres siluer . . . At the paroche kirk of Trinitie gask 10 June A.D. 1603.

Tak James Drummond off the teyndis of Gorthye.

- 43 Be it kend till all men . . . We James commendatar of Incheffray and convent thairof . . . ffor ane great sowme of money payit and delyuerit to us to the intent of the making beirof Be Sr Johne Chisholme of Buttergask knyecht mother brother to James Drummond secund laifull sone to me the said James commendatar . . . to haif set . . . to the said James Drummond ffor all the dayes of his lyf tyme and to his assignayis and eftir his deceis to thre his aires succeeding to him successiue eftir utheris ffor all the days yeiris and termis of thair thre lyftymes . . . And thairefter to the aires of the last of the said thre aires . . . ffor the haill space of thre nyntene yeiris . . . the teynd scheavis of the townes and landis of ovir and nathir Gorthyis witht partis pendicles and pertinentis thairof . . . Payand thairfoir yeirle . . . the sowme of twenty ane pund sex schillingis viij d. . . At Immerpeffrie the 20 July 1604.

Tak Erle of Mortoun off the teyndis of Kelouris.

- 44 Be it kend till all men be thir present lettres We James Commendatar of the abbay of Incheffray . . . witht expres consent and assent of the channounnis conuent and chaptour of the said abbacie . . . to haif set . . . to . . . William Erle of Mortoun

. . . the teind schavis of all and haill the landis and baronie of Kelour with the pertinentis That is to say . . . of the tounis and landis of Eister Kelour Wester Kelour Borland Craigend Dalthairnot [mylne] landis of Dalthairnot . . . for nyntene yeiris . . . Payand thairfoir yeirlie . . . the sowme of fourtie tua markis . . . quhilk is the auld dewtie usit and accustomat to have bene payit for the saidis teind schavis . . . In witnes of the quhilk . . . Our proper seall togidder witht the commoun chapter seall of the said abbacie in supplement of the subscriptionis of sa mony of the convent as are depairtit this mortall lyf ar heirto appendit. At Perth 20 April A.D. 1606.

Tak Laird of Glengarnock off the kirk of Balfrone.

- 45 Be It kend till all men be thir present lettres Me James Commendatar of Incheffray fforamekill as S^r James Cuninghame of Glengarnock knight and his predecessores Lairdis of Glengarnok hes bene kyndlie tenentis and takismen in tyme bygane past memorie of man . . . off all . . . the personage and vicarage teyndis of the Kirk of Balfrone quhilk is ane of the proper kirkis of the said abbacie . . . to haif sett . . . witht the aduise and consent of Dene Alexander Murray ane of the conventis of the said abbacie now onlie on lyfe and witht the aduise and consent of S^r Duncane Campbell of Glenurquhy knight at qubais instance I the said James Commendatar of Incheffray am interdytit for his entres and sic lyke witht the aduise and consent of Sir Johnne Drummond of Innerpeffrie knight eldest sone and apperand air to me the said James . . . to the said S^r James Cunynghame of Glengarnok knyght . . . the teind scheavis fructis rentis prouentis emolimentis baith of the said personage and vicarage of the said kirk of Balfrone . . . for twenty ane yeiris . . . Payand thairfoir yeirlie . . . the sowme of fourtie markis gude and usuall money of North Britane togidder witht fourtene stane of cheis . . . At Innerpeffrie 12 Januar A.D. 1607.

Tak to Alexander M^cNaichtane of the teind brokis of Kilmorithe.

46 Be it kend till all men . . . We James Lord of Madertie Commendatar of Inchaifray . . . to haiff sett . . . to . . . Alex^r M^cNaichtane of Dundaraw . . . the teind schavis and utheris teindis callit the brokis fruitis and rentis baithe great and small of the peroche kirk and perochin of Kilmorithe personage and vicarage thair of lyand within the diocie of Argyll sa far as the fruitis of the said kirk ar ane pairt and pertinent of the abbacie of Inchaifray . . . for nynteine yeiris . . . Payand thairfoir yeirlie . . . the soume of aucht pundis usuall money of this realme . . . as als payand to the minister serving the cure at the said kirk . . . the haill dewties assignit or to be assignit be the comissioneris of parliament to be payit to the minister for oure part of the said kirk for thair stipend and for furnessing the elementis to the communioun . . . In witnes of the quhilk . . . oure commoun seill of the said abbay in place of the consent of the convent thair of thay being all departit this lyf is hungin at Edinburgh 4 Marche A.D. 1618 Befoir thir witnesses James Campbell of Laweris Coleine and Andrew Campbell his brether germen M^r Thomas Rollok aduocat and . . . Jon Nicoll wretar and Robert Campbell of Glenfallot.

Tak of the teindis of Inschald sett to Patrik M^rArtour of Torvadtie.

47 Be it kend till all men . . . Us James Lord of Madertie Commendatar of Inchaifray for certane soumes of money presentlie payit . . . be Patrik M^rArtor of Torvadtie . . . to haiff Sett In tak . . . to the said Patrik M^rArtor . . . the teind schavis and utheris teindis callit the Brokis frutis and rentis baithe great and small of the peroche kirk and perochin of Inschald personage and vicarege thair of Lyand within the diocie of Argyll sa far as the fruitis of the said kirk ar ane pairt and pertinent of the Abbacie of Inchaifray and patrimonie thair of and that for all the dayis yeiris termes tyme and space of nynteine yeiris next efter the said Patrik and his foirsaidis entrie thairto . . . Payand thairfoir . . . tuelf pundis usuall money of this realme of Scotland at Sanct Androis day being the last day of November yeirlie . . . As als payand to the minister serving the cure at the said kirk present and to cum the haill dewteis

assynit or to be assynit be the Comissioneris of parliament to be payit to the minister for our pairt of the said kirk . . . Provyding aluayis that notwithstanding of this present tak and assedatioun it sal be lesun to Maister Donald Campbell of Barbleklochow . . . to bruike . . . and uplift all and sindrie the teind schavis and utheris teindis of the landis of Barbreklochow sa far as appertenis of the patrimonie of the said Abbacie . . . at Edr 4 Marche 1618 . . . Befoir thir witnesses James Campbell of Laweris Coleine and A^w Campbell his brether and ye said John Nicoll wretar and Mr Thomas Rollok advocat and Robert Campbell of Glenfallot.

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V.

ACT IN FAVORS OF SIR ROBERT MURRAY OF
ABERCAIRNIE AND OTHER HERITORS UPON THE
POW OF INCHAFFRAY. OCTOBER 9, 1690.

AT EDINBURGH the ninth day of October one thousand six hundred and ninety six years Anent the Petition given in and presented to His Majesties High Commissioner and the Honourable Estates of Parliament by Sir Robert Murray of Abercairnzie Sir Patrick Murray of Auchtertyre Mungo Graham of Gorthie and James Oliphant of Williamstoun Heritors upon the Pow of Inchaffray, Humbly Shewing that the said Pow of Inchaffray being a long tract of levell ground subject to unseasonable inundations and overflowings of the water wherby the adjacent ground and meadows become marish and the grass and corns of severall Heritors of the saids Lands are frequently lost and rendered useless The draining and ditching wherof in a convenient and effectuall manner might not only prevent the saids Losses and damnges sustained by the Heritors but likeways be a mean of considerable improvement of so large a tract of ground to the great advantage and utility of all concerned And the Petitioners Predecessors with other Heritors upon the said Pow havinge endeavoured by Submissions Decreits arbitrall and otherwayes to adjust the differences that might arise in carrying on and consumating so good a work their designs therin have been hitherto frustrat partly by minority of some of the Heritors concerned and partly by the dissenting of others that conceived they might have

no advantage by the said work and so through want of unanimous Concurrence of all concerned so good and necessary a work tending to the common utility of most of the Heritors has been retarded. And therfor Craveing His Grace and Estates of Parliament to Grant Warrant and Commission to John Hadden of Glenegleis James Graham of Orchill John Drummond of Pitkellanie David Drummond of Invermay Duncan Campbell of Monzie David Smith brother german to the Laird of Meffen Mr William Murray of Arbennie Thomas Hay of Balbousie Coline Campbell of Lochland John Drummond of Colquhillie and Mr Mungo Murray brother german to Patrick Murray of Dollary and such others as His Grace and their Lordships should please to add or any five of them hereby declared to be a quorum to meet and convene at the day of nixt to come and thereafter at such days and places as they shall appoint with full power to them after due intimation to all the adjacent Heritors and the Tutors and Curators of such of them as are Minors to cause drain and ditch the said Pow As also to divide and appropriate the same with any parcells of the adjacent Lands as shall be necessary to square marches among the saids adjacent Heritors and to repair any Loss that any of them shall sustain by the draining ditching and dividing forsaid by taxing the same upon such as shall have the benefite As also to appoint workmen for the work forsaid and tax and levie their Expenses upon the saids adjacent Heritors having the benefite and to take effectuell course for maintaining the said ditch and draining And generally to do all things else that may perfit the said work and if need beis to cite witnesses take depositions and give out their Sentences as accords which Sentences in the haill premises as to the Heritors adjacent shall have the force and strength of a decreet arbitral as upon their Submission as the said Petition bears. Which being this day read in presence of and considered by His Majesties High Commissioner and the Estates of Parliament they have Granted and hereby Grants the desire therof And have Granted and hereby Grants Warrant and Commission to the persons above mentioned or any five of them to meet and convene at Creiff upon the first second third fourth or fifth dayes of December nixt to come and thereafter at such places and on such dayes as they shall appoint with full power to them after due intimation to all the adjacent Heritors and the Tutors and Curators of such of them as are Minors to cause drain and ditch the said Pow as also to divide and appropriate the same with any parcells of the adjacent Lands as shall be necessary to square marches amongst

the saids adjacent Heritors and to repair any Loss that any of them shall sustain by the draining ditching and divideing forsaïd by taxing the same upon such as shall have the benefite as also to appoint workmen for the work forsaïd and to tax and levy their expenses upon the saids adjacent Heritors haveing the benefite and to take effectuall course for maintaining the said ditch and draining and generally to do all things else that may perfect the said work and if need beis to cite witnesses take depositions and give out their Sentences as accords which in the whole Premises as to the Heritors adjacent shall have the force and strength of ane Decreet Arbitrall as upon their Submission.

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